

SOLICITATION, OFFER, AND AWARD <i>(Construction, Alteration, or Repair)</i>	1. SOLICITATION NUMBER W51DQV25RA002	2. TYPE OF SOLICITATION ☐ SEALED BID (IFB) INVITATION FOR BID ☒ NEGOTIATED (RFP) REQUEST FOR PROPOSAL	3. DATE ISSUED	PAGE OF PAGES 1 140
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IMPORTANT - The "offer" section on the reverse must be fully completed by offeror.

4. CONTRACT NUMBER	5. REQUISITION/PURCHASE REQUEST NUMBER W51DQV	6. PROJECT NUMBER 113454
7. ISSUED BY W2SR TF VIPR 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN SAN JUAN 00918-0000 PUERTO RICO JACLYN YOCUM, EMAIL: JACLYN.C.YOCUM@USACE.ARMY.MIL	CODE PR 00918-0000	8. ADDRESS OFFER TO
9. FOR INFORMATION CALL:	a. NAME JACLYN YOCUM	b. TELEPHONE NUMBER <i>(Include area code) (NO COLLECT CALLS)</i> (787) 200-2398

SOLICITATION

NOTE: In sealed bid solicitations "offer" and "offeror" mean "bid and "bidder".

10. THE GOVERNMENT REQUIRES PERFORMANCE OF THE WORK DESCRIBED IN THESE DOCUMENTS *(Title, identifying number, date)*

PROJECT TITLE: RIO PUERTO NUEVO FLOOD CONTROL PROJECT, SUPPLEMENTAL CONTRACT 3: CHANNEL BOTTOM AND WALL IMPROVEMENTS
PROJECT LOCATION: SAN JUAN, PUERTO RICO.

THIS IS A REQUEST FOR PROPOSAL (RFP) WHICH WILL RESULT IN THE AWARD OF ONE (1) FIRM-FIXED-PRICE (FFP) DESIGN-BID-BUILD (DBB) CONSTRUCTION CONTRACT.

GENERAL SCOPE OF WORK: REFER TO SECTION 00 31 32.

MAGNITUDE OF CONSTRUCTION (DFARS 236-204): OVER \$500 MILLION.

THE NORTH AMERICAN INDUSTRY CLASSIFICATION IS 237990 WITH A SMALL BUSINESS STANDARD SIZE OF \$45 MILLION.

IN ACCORDANCE WITH FAR 52.236-27 ATL I, AN ORGANZIED SITE VISIT HAS BEEN SCHEDULED.

*** OFFERORS ARE NOTIFIED THAT REAL ESTATE IS NOT CURRENTLY CLEARED FOR CONSTRUCTION BUT WILL BE BY ISSUANCE OF THE FULL NOTICE TO PROCEED. ***

11. The contractor shall begin performance within 10 calendar days and complete it within 2190 calendar days after receiving ☐ award, ☒ notice to proceed. This performance period is ☒ mandatory ☐ negotiable. (See FAR 52.211-10).	12a. THE CONTRACTOR MUST FURNISH ANY REQUIRED PERFORMANCE AND PAYMENT BONDS? <i>(If "YES", indicate within how many calendar days after award in Item 12b.)</i> ☒ YES ☐ NO	12b. CALENDAR DAYS 10
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13. ADDITIONAL SOLICITATION REQUIREMENTS:

a. Sealed offers in original and _____ copies to perform the work required are due at the place specified in Item 8 by 10:00 AM *(hour)*
local time 03 JUL 2025 (date). If this is a sealed bid solicitation, offers will be publicly opened at that time. Sealed envelopes
containing offers shall be marked to show the offeror's name and address, the solicitation number, and the date and time offers are due.

b. An offer guarantee ☒ is, ☐ is not required.

c. All offers are subject to the (1) work requirements, and (2) other provisions and clauses incorporated in the solicitation in full text or by reference.

d. Offers providing less than 120 calendar days for Government acceptance after the date offers are due will not be considered and will be rejected.

Created On:
18 Apr 2025, 11:52 AM Central Daylight Time

OFFER (Must be fully completed by offeror)

14. NAME AND ADDRESS OF OFFEROR (Include ZIP Code)		15. TELEPHONE NUMBER (Include area code)	
		16. REMITTANCE ADDRESS (Include only if different than Item 14.)	
CODE	FACILITY CODE		

17. The offeror agrees to perform the work required at the prices specified below in strict accordance with the terms of this solicitation, if this offer is accepted by the Government in writing within _____ calendar days after the date offers are due. (Insert any number equal to or greater than the minimum requirement stated in Item 13d. Failure to insert any number means the offeror accepts the minimum in Item 13d.)

AMOUNTS



18. The offeror agrees to furnish any required performance and payment bonds.

19. ACKNOWLEDGMENT OF AMENDMENTS (The offeror acknowledges receipt of amendments to the solicitation -- give number and date of each)									
AMENDMENT NUMBER									
DATE									

20a. NAME AND TITLE OF PERSON AUTHORIZED TO SIGN OFFER (Type or print)	20b. SIGNATURE	20c. OFFER DATE
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AWARD (To be completed by Government)

21. ITEMS ACCEPTED:	

22. AMOUNT	23. ACCOUNTING AND APPROPRIATION DATA
24. SUBMIT INVOICES TO ADDRESS SHOWN IN (4 copies unless otherwise specified)	25. OTHER THAN FULL AND OPEN COMPETITION PURSUANT TO THE UNITED STATES CODE AT ☐ 10 U.S.C. 3204(a) () ☐ 41 U.S.C. 3304(a) ()
26. ADMINISTERED BY	27. PAYMENT WILL BE MADE BY

CONTRACTING OFFICER WILL COMPLETE ITEM 28 OR 29 AS APPLICABLE

☐ 28. NEGOTIATED AGREEMENT (Contractor is required to sign this document and return _____ copies to issuing office.) Contractor agrees to furnish and deliver all items or perform all work requirements identified on this form and any continuation sheets for the consideration stated in this contract. The rights and obligations of the parties to this contract shall be governed by (a) this contract award, (b) the solicitation, and (c) the clauses, representations, certifications, and specifications incorporated by reference in or attached to this contract.	☐ 29. AWARD (Contractor is not required to sign this document.) Your offer on this solicitation is hereby accepted as to the items listed. This award consummates the contract, which consists of (a) the Government solicitation and your offer, and (b) this contract award. No further contractual document is necessary.
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30a. NAME AND TITLE OF CONTRACTOR OR PERSON AUTHORIZED TO SIGN (Type or print)		31a. NAME OF CONTRACTING OFFICER (Type or print)	
30b. SIGNATURE	30c. DATE	31b. UNITED STATES OF AMERICA BY	31c. DATE

Section 00 10 00 - Solicitation, Contract Line Item Number (CLIN) Schedule**Additional Information/Notes – This Section is to be submitted in Stage 2**

Item	Supplies/Service	Quantity	Unit	Unit Price	Amount
0001	Mobilization and Demobilization The Contractor shall furnish all labor, equipment, materials, and perform all task necessary for this requirement in accordance with the provided plans and specifications. Pricing Arrangement: Firm Fixed Price	1	Job		
0002	Erosion and Sediment Control and Turbidity Monitoring The Contractor shall furnish all labor, equipment, materials, and perform all task necessary for this requirement in accordance with the provided plans and specifications. Pricing Arrangement: Firm Fixed Price	1	Job		
0003	Environmental Species Monitoring The Contractor shall furnish all labor, equipment, materials, and perform all task necessary for this requirement in accordance with the provided plans and specifications. Pricing Arrangement: Firm Fixed Price	1	Job		
0004	Vibration Control and Monitoring The Contractor shall furnish all labor, equipment, materials, and perform all task necessary for this requirement in accordance with the provided plans and specifications. Pricing Arrangement: Firm Fixed Price	1	Job		
0005	Contracting Officer's Field Office (Fixed Costs) The Contractor shall furnish all labor, equipment, materials, and perform all task necessary for this requirement in accordance with the provided plans and specifications. Pricing Arrangement: Firm Fixed Price	1	Job		

0006	Contracting Officer's Field Office (Recurring Costs) (Estimated Quantity, Note 2) The Contractor shall furnish all labor, equipment, materials, and perform all task necessary for this requirement in accordance with the provided plans and specifications. Pricing Arrangement: Firm Fixed Price	68	Months		
0007	Partnering Regroups (Estimated Quantity, Note 2) The Contractor shall furnish all labor, equipment, materials, and perform all task necessary for this requirement in accordance with the provided plans and specifications. Pricing Arrangement: Firm Fixed Price	11	Each		
0008	As-Built Drawings & Close Out Submittals The Contractor shall furnish all labor, equipment, materials, and perform all task necessary for this requirement in accordance with the provided plans and specifications. Pricing Arrangement: Firm Fixed Price	1	Job		
0009	Clearing and Grubbing (Estimated Quantity, Note 2) The Contractor shall furnish all labor, equipment, materials, and perform all task necessary for this requirement in accordance with the provided plans and specifications. Pricing Arrangement: Firm Fixed Price	25	Acre		
0010	Demolition The Contractor shall furnish all labor, equipment, materials, and perform all task necessary for this requirement in accordance with the provided plans and specifications. Pricing Arrangement: Firm Fixed Price	1	Job		
0011	Demolition - Remnant Removal at De Diego Bridge The Contractor shall furnish all labor, equipment, materials, and perform all task necessary for this requirement in	1	Job		

	accordance with the provided plans and specifications. Pricing Arrangement: Firm Fixed Price				
0012	Temporary Bypass Sheet Pile (Estimated Quantity, Note 2) The Contractor shall furnish all labor, equipment, materials, and perform all task necessary for this requirement in accordance with the provided plans and specifications. Pricing Arrangement: Firm Fixed Price	324,552	Square Foot		
0013	Permanent Sheet Piles (Estimated Quantity, Note 2) The Contractor shall furnish all labor, equipment, materials, and perform all task necessary for this requirement in accordance with the provided plans and specifications. Pricing Arrangement: Firm Fixed Price	27,765	Square Foot		
0014	Transition Sheet Piles - RPN (Estimated Quantity, Note 2) The Contractor shall furnish all labor, equipment, materials, and perform all task necessary for this requirement in accordance with the provided plans and specifications. Pricing Arrangement: Firm Fixed Price	24,857	Square Foot		
0015	Transition Sheet Piles - Josefina (Estimated Quantity, Note 2) The Contractor shall furnish all labor, equipment, materials, and perform all task necessary for this requirement in accordance with the provided plans and specifications. Pricing Arrangement: Firm Fixed Price	7,947	Square Foot		
0016	Demonstration Wall The Contractor shall furnish all labor, equipment, materials, and perform all task necessary for this requirement in accordance with the provided plans and specifications. Pricing Arrangement: Firm Fixed Price	1	Job		
	Drilled Shaft - Type 5B (Estimated				

0017	Quantity, Note 2) The Contractor shall furnish all labor, equipment, materials, and perform all task necessary for this requirement in accordance with the provided plans and specifications. Pricing Arrangement: Firm Fixed Price	30,729	Linear Foot		
0018	Drilled Shaft - Type 6A (Estimated Quantity, Note 2) The Contractor shall furnish all labor, equipment, materials, and perform all task necessary for this requirement in accordance with the provided plans and specifications. Pricing Arrangement: Firm Fixed Price	82,560	Linear Foot		
0019	Drilled Shaft - Type 6B (Estimated Quantity, Note 2) The Contractor shall furnish all labor, equipment, materials, and perform all task necessary for this requirement in accordance with the provided plans and specifications. Pricing Arrangement: Firm Fixed Price	78,554	Linear Foot		
0020	Drilled Shaft - Type 6C (Estimated Quantity, Note 2) The Contractor shall furnish all labor, equipment, materials, and perform all task necessary for this requirement in accordance with the provided plans and specifications. Pricing Arrangement: Firm Fixed Price	612	Linear Foot		
0021	Drilled Shaft Cap Beam The Contractor shall furnish all labor, equipment, materials, and perform all task necessary for this requirement in accordance with the provided plans and specifications. Pricing Arrangement: Firm Fixed Price	1	Job		
0022	Jet Grout Seals (Estimated Quantity, Note 2) The Contractor shall furnish all labor, equipment, materials, and perform all task necessary for this requirement in accordance with the provided plans	3,589	Linear Foot		

	and specifications. Pricing Arrangement: Firm Fixed Price				
0023	Jet Grouting - Ground Improvement The Contractor shall furnish all labor, equipment, materials, and perform all task necessary for this requirement in accordance with the provided plans and specifications. Pricing Arrangement: Firm Fixed Price	1	Job		
0024	Guardrail (Estimated Quantity, Note 2) The Contractor shall furnish all labor, equipment, materials, and perform all task necessary for this requirement in accordance with the provided plans and specifications. Pricing Arrangement: Firm Fixed Price	3,206	Linear Foot		
0025	Handrail (Estimated Quantity, Note 2) The Contractor shall furnish all labor, equipment, materials, and perform all task necessary for this requirement in accordance with the provided plans and specifications. Pricing Arrangement: Firm Fixed Price	4,417	Linear Foot		
0026	Channel Excavation (Sta 83+40 to Sta. 118+50) (Estimated Quantity, Note 2) The Contractor shall furnish all labor, equipment, materials, and perform all task necessary for this requirement in accordance with the provided plans and specifications. Pricing Arrangement: Firm Fixed Price	260,274	Cubic Yard		
0027	Channel Excavation (Sta 118+50 to Sta. 147+40) (Estimated Quantity, Note 2) The Contractor shall furnish all labor, equipment, materials, and perform all task necessary for this requirement in accordance with the provided plans and specifications. Pricing Arrangement: Firm Fixed Price	119,337	Cubic Yard		

0028	Embankment Excavation (Estimated Quantity, Note 2) The Contractor shall furnish all labor, equipment, materials, and perform all task necessary for this requirement in accordance with the provided plans and specifications. Pricing Arrangement: Firm Fixed Price	208,182	Cubic Yard		
0029	Backfill - Fill #1 (Estimated Quantity, Note 2) The Contractor shall furnish all labor, equipment, materials, and perform all task necessary for this requirement in accordance with the provided plans and specifications. Pricing Arrangement: Firm Fixed Price	5,045	Cubic Yard		
0030	Backfill - Fill #2 (Estimated Quantity, Note 2) The Contractor shall furnish all labor, equipment, materials, and perform all task necessary for this requirement in accordance with the provided plans and specifications. Pricing Arrangement: Firm Fixed Price	30,249	Cubic Yard		
0031	Wall Groundwater Drains and Filter (Estimated Quantity, Note 2) The Contractor shall furnish all labor, equipment, materials, and perform all task necessary for this requirement in accordance with the provided plans and specifications. Pricing Arrangement: Firm Fixed Price	9,445	Linear Foot		
0032	Finish Grading (Estimated Quantity, Note 2) The Contractor shall furnish all labor, equipment, materials, and perform all task necessary for this requirement in accordance with the provided plans and specifications. Pricing Arrangement: Firm Fixed Price	54,931	Square Yard		
0033	Gabion Baskets for Bedding (Estimated Quantity, Note 2) The Contractor shall furnish all labor, equipment, materials, and perform all task necessary for this	4,623	Each		

	requirement in accordance with the provided plans and specifications. Pricing Arrangement: Firm Fixed Price				
0034	Marine Mattress (Estimated Quantity, Note 2) The Contractor shall furnish all labor, equipment, materials, and perform all task necessary for this requirement in accordance with the provided plans and specifications. Pricing Arrangement: Firm Fixed Price	15,105	Square Foot		
0035	Riprap - Class III (Estimated Quantity, Note 2) The Contractor shall furnish all labor, equipment, materials, and perform all task necessary for this requirement in accordance with the provided plans and specifications. Pricing Arrangement: Firm Fixed Price	3,961	Short Ton		
0036	Riprap - Class IV (Estimated Quantity, Note 2) The Contractor shall furnish all labor, equipment, materials, and perform all task necessary for this requirement in accordance with the provided plans and specifications. Pricing Arrangement: Firm Fixed Price	9,573	Short Ton		
0037	Riprap - Class VII (Estimated Quantity, Note 2) The Contractor shall furnish all labor, equipment, materials, and perform all task necessary for this requirement in accordance with the provided plans and specifications. Pricing Arrangement: Firm Fixed Price	8,379	Short Ton		
0038	Riprap - Class VIII (Estimated Quantity, Note 2) The Contractor shall furnish all labor, equipment, materials, and perform all task necessary for this requirement in accordance with the provided plans and specifications. Pricing Arrangement: Firm Fixed Price	1,272	Short Ton		
	Articulating Concrete Block				

0039	Revetment (Estimated Quantity, Note 2) The Contractor shall furnish all labor, equipment, materials, and perform all task necessary for this requirement in accordance with the provided plans and specifications. Pricing Arrangement: Firm Fixed Price	31,974	Square Foot		
0040	Concrete Armor Units (Estimated Quantity, Note 2) The Contractor shall furnish all labor, equipment, materials, and perform all task necessary for this requirement in accordance with the provided plans and specifications. Pricing Arrangement: Firm Fixed Price	15,105	Square Foot		
0041	15" RCP Headwalls (Estimated Quantity, Note 2) The Contractor shall furnish all labor, equipment, materials, and perform all task necessary for this requirement in accordance with the provided plans and specifications. Pricing Arrangement: Firm Fixed Price	1	Each		
0042	36" RCP Headwalls (Estimated Quantity, Note 2) The Contractor shall furnish all labor, equipment, materials, and perform all task necessary for this requirement in accordance with the provided plans and specifications. Pricing Arrangement: Firm Fixed Price	1	Each		
0043	48" RCP Headwalls (Estimated Quantity, Note 2) The Contractor shall furnish all labor, equipment, materials, and perform all task necessary for this requirement in accordance with the provided plans and specifications. Pricing Arrangement: Firm Fixed Price	1	Each		
0044	Storm Drainage Piping - 15" RCP (Estimated Quantity, Note 2) The Contractor shall furnish all labor, equipment, materials, and perform all task necessary for this	106	Linear Foot		

	requirement in accordance with the provided plans and specifications. Pricing Arrangement: Firm Fixed Price				
0045	Storm Drainage Piping - 18" RCP (Estimated Quantity, Note 2) The Contractor shall furnish all labor, equipment, materials, and perform all task necessary for this requirement in accordance with the provided plans and specifications. Pricing Arrangement: Firm Fixed Price	132	Linear Foot		
0046	Storm Drainage Piping - 24" RCP (Estimated Quantity, Note 2) The Contractor shall furnish all labor, equipment, materials, and perform all task necessary for this requirement in accordance with the provided plans and specifications. Pricing Arrangement: Firm Fixed Price	317	Linear Foot		
0047	Storm Drainage Piping - 30" RCP (Estimated Quantity, Note 2) The Contractor shall furnish all labor, equipment, materials, and perform all task necessary for this requirement in accordance with the provided plans and specifications. Pricing Arrangement: Firm Fixed Price	45	Linear Foot		
0048	Storm Drainage Piping - 36" RCP (Estimated Quantity, Note 2) The Contractor shall furnish all labor, equipment, materials, and perform all task necessary for this requirement in accordance with the provided plans and specifications. Pricing Arrangement: Firm Fixed Price	190	Linear Foot		
0049	Storm Drainage Piping - 42" RCP (Estimated Quantity, Note 2) The Contractor shall furnish all labor, equipment, materials, and perform all task necessary for this requirement in accordance with the provided plans and specifications. Pricing Arrangement: Firm Fixed Price	92	Linear Foot		
	Storm Drainage Piping - 48" RCP				

0050	(Estimated Quantity, Note 2) The Contractor shall furnish all labor, equipment, materials, and perform all task necessary for this requirement in accordance with the provided plans and specifications. Pricing Arrangement: Firm Fixed Price	37	Linear Foot		
0051	Storm Drainage Piping - 60" RCP (Estimated Quantity, Note 2) The Contractor shall furnish all labor, equipment, materials, and perform all task necessary for this requirement in accordance with the provided plans and specifications. Pricing Arrangement: Firm Fixed Price	11	Linear Foot		
0052	Concrete Double Box Culvert - 5'x6.1' (CIP) The Contractor shall furnish all labor, equipment, materials, and perform all task necessary for this requirement in accordance with the provided plans and specifications. Pricing Arrangement: Firm Fixed Price	1	Job		
0053	30" Flapgate (Estimated Quantity, Note 2) The Contractor shall furnish all labor, equipment, materials, and perform all task necessary for this requirement in accordance with the provided plans and specifications. Pricing Arrangement: Firm Fixed Price	3	Each		
0054	36" Flapgate (Estimated Quantity, Note 2) The Contractor shall furnish all labor, equipment, materials, and perform all task necessary for this requirement in accordance with the provided plans and specifications. Pricing Arrangement: Firm Fixed Price	6	Each		
0055	42" Flapgate (Estimated Quantity, Note 2) The Contractor shall furnish all labor, equipment, materials, and perform all task necessary for this requirement in	4	Each		

	accordance with the provided plans and specifications. Pricing Arrangement: Firm Fixed Price				
0056	60" Flapgate (Estimated Quantity, Note 2) The Contractor shall furnish all labor, equipment, materials, and perform all task necessary for this requirement in accordance with the provided plans and specifications. Pricing Arrangement: Firm Fixed Price	1	Each		
0057	Drop Inlets (Estimated Quantity, Note 2) The Contractor shall furnish all labor, equipment, materials, and perform all task necessary for this requirement in accordance with the provided plans and specifications. Pricing Arrangement: Firm Fixed Price	1	Each		
0058	Storm Drainage Manholes (Estimated Quantity, Note 2) The Contractor shall furnish all labor, equipment, materials, and perform all task necessary for this requirement in accordance with the provided plans and specifications. Pricing Arrangement: Firm Fixed Price	33	Each		
0059	Stormwater Bypass The Contractor shall furnish all labor, equipment, materials, and perform all task necessary for this requirement in accordance with the provided plans and specifications. Pricing Arrangement: Firm Fixed Price	1	Job		
0060	Concrete Slab on Grade (Estimated Quantity, Note 2) The Contractor shall furnish all labor, equipment, materials, and perform all task necessary for this requirement in accordance with the provided plans and specifications. Pricing Arrangement: Firm Fixed Price	365	Square Yard		
	Utility Bridge - Drilled Shaft - Middle Pier (Estimated Quantity,				

0061	Note 2) The Contractor shall furnish all labor, equipment, materials, and perform all task necessary for this requirement in accordance with the provided plans and specifications. Pricing Arrangement: Firm Fixed Price	82	Linear Foot		
0062	Utility Bridge - Precast Beams (Estimated Quantity, Note 2) The Contractor shall furnish all labor, equipment, materials, and perform all task necessary for this requirement in accordance with the provided plans and specifications. Pricing Arrangement: Firm Fixed Price	4	Each		
0063	Utility Bridge - Middle Pier Cap (CIP) The Contractor shall furnish all labor, equipment, materials, and perform all task necessary for this requirement in accordance with the provided plans and specifications. Pricing Arrangement: Firm Fixed Price	1	Job		
0064	Utility Bridge - Bridge Slab (CIP) The Contractor shall furnish all labor, equipment, materials, and perform all task necessary for this requirement in accordance with the provided plans and specifications. Pricing Arrangement: Firm Fixed Price	1	Job		
0065	48" DIP Waterline Crossing The Contractor shall furnish all labor, equipment, materials, and perform all task necessary for this requirement in accordance with the provided plans and specifications. Pricing Arrangement: Firm Fixed Price	1	Job		
0066	Traffic Control The Contractor shall furnish all labor, equipment, materials, and perform all task necessary for this requirement in accordance with the provided plans and specifications. Pricing Arrangement: Firm Fixed Price	1	Job		

0067	Granular Subbase Course (Estimated Quantity, Note 2) The Contractor shall furnish all labor, equipment, materials, and perform all task necessary for this requirement in accordance with the provided plans and specifications. Pricing Arrangement: Firm Fixed Price	16,077	Square Yard		
0068	Asphaltic Concrete Pavement (Estimated Quantity, Note 2) The Contractor shall furnish all labor, equipment, materials, and perform all task necessary for this requirement in accordance with the provided plans and specifications. Pricing Arrangement: Firm Fixed Price	2,653	Short Ton		
0069	Asphaltic Concrete Pavement (Estimated Quantity, Note 2) The Contractor shall furnish all labor, equipment, materials, and perform all task necessary for this requirement in accordance with the provided plans and specifications. Pricing Arrangement: Firm Fixed Price	16,077	Square Yard		
0070	Parking Lot Striping The Contractor shall furnish all labor, equipment, materials, and perform all task necessary for this requirement in accordance with the provided plans and specifications. Pricing Arrangement: Firm Fixed Price	1	Job		
0071	Permanent Access Road (Estimated Quantity, Note 2) The Contractor shall furnish all labor, equipment, materials, and perform all task necessary for this requirement in accordance with the provided plans and specifications. Pricing Arrangement: Firm Fixed Price	3,994	Square Yard		
0072	Chain Link Fencing (Estimated Quantity, Note 2) The Contractor shall furnish all labor, equipment, materials, and perform all task necessary for this requirement in accordance with the provided plans	2,512	Linear Foot		

	and specifications. Pricing Arrangement: Firm Fixed Price				
0073	Ornamental Fencing (Estimated Quantity, Note 2) The Contractor shall furnish all labor, equipment, materials, and perform all task necessary for this requirement in accordance with the provided plans and specifications. Pricing Arrangement: Firm Fixed Price	481	Linear Foot		
0074	Metal Steps The Contractor shall furnish all labor, equipment, materials, and perform all task necessary for this requirement in accordance with the provided plans and specifications. Pricing Arrangement: Firm Fixed Price	1	Job		
0075	Vehicular Gates (Estimated Quantity, Note 2) The Contractor shall furnish all labor, equipment, materials, and perform all task necessary for this requirement in accordance with the provided plans and specifications. Pricing Arrangement: Firm Fixed Price	3	Each		
0076	Bollards (Estimated Quantity, Note 2) The Contractor shall furnish all labor, equipment, materials, and perform all task necessary for this requirement in accordance with the provided plans and specifications. Pricing Arrangement: Firm Fixed Price	17	Each		
0077	Sodding (Estimated Quantity, Note 2) The Contractor shall furnish all labor, equipment, materials, and perform all task necessary for this requirement in accordance with the provided plans and specifications. Pricing Arrangement: Firm Fixed Price	25,974	Square Yard		
0078	Seeding (Estimated Quantity, Note 2) The Contractor shall furnish all labor, equipment, materials, and	28,958	Square Yard		

	perform all task necessary for this requirement in accordance with the provided plans and specifications. Pricing Arrangement: Firm Fixed Price				
0079	Restoration The Contractor shall furnish all labor, equipment, materials, and perform all task necessary for this requirement in accordance with the provided plans and specifications. Pricing Arrangement: Firm Fixed Price	1	Job		
0080	TRS Overtopping (Estimated Quantity, Note 2) The Contractor shall furnish all labor, equipment, materials, and perform all task necessary for this requirement in accordance with the provided plans and specifications. Pricing Arrangement: Firm Fixed Price	2	Each		
0081	TRS Overtopping - Dewatering Equipment Standby (Estimated Quantity, Note 2) The Contractor shall furnish all labor, equipment, materials, and perform all task necessary for this requirement in accordance with the provided plans and specifications. Pricing Arrangement: Firm Fixed Price	4	Months		
0082	LUMA Electrical Power Charges The Contractor shall furnish all labor, equipment, materials, and perform all task necessary for this requirement in accordance with the provided plans and specifications. Allowance of \$282,501.00. Pricing Arrangement: Firm Fixed Price	1	Job		
0083	AT&T/Liberty Telecommunications Charges The Contractor shall furnish all labor, equipment, materials, and perform all task necessary for this requirement in accordance with the provided plans and specifications. Pricing Arrangement: Firm Fixed Price	1	Job		

0084	Claro Telecommunications Charges. The Contractor shall furnish all labor, equipment, materials, and perform all task necessary for this requirement in accordance with the provided plans and specifications. Allowance of \$4,364.00 Pricing Arrangement: Firm Fixed Price	1	Job		
0085	Sanitary Siphon - Temporary Retaining Structures The Contractor shall furnish all labor, equipment, materials, and perform all task necessary for this requirement in accordance with the provided plans and specifications. Pricing Arrangement: Firm Fixed Price	1	Job		
0086	Sanitary Siphon - Headwalls The Contractor shall furnish all labor, equipment, materials, and perform all task necessary for this requirement in accordance with the provided plans and specifications. Pricing Arrangement: Firm Fixed Price	1	Job		
0087	Sanitary Siphon - Influent Box, Effluent Box, and Piping The Contractor shall furnish all labor, equipment, materials, and perform all task necessary for this requirement in accordance with the provided plans and specifications. Pricing Arrangement: Firm Fixed Price	1	Job		
0088	Sanitary Siphon - Boring and Jacking The Contractor shall furnish all labor, equipment, materials, and perform all task necessary for this requirement in accordance with the provided plans and specifications. Pricing Arrangement: Firm Fixed Price	1	Job		
0089	Concrete Privacy Wall Replacement The Contractor shall furnish all labor, equipment, materials, and perform all task necessary for this requirement in accordance with the provided plans and specifications.	1	Job		

	Pricing Arrangement: Firm Fixed Price				
0090	Debris Removal for Dredging and Excavation (Estimated Quantity, Note 2) The Contractor shall furnish all labor, equipment, materials, and perform all task necessary for this requirement in accordance with the provided plans and specifications. Pricing Arrangement: Firm Fixed Price	100	Short Ton		
0091	Municipal Tax (5.5% of the Subtotal Line Items 0001 through 0090) The Contractor shall furnish all labor, equipment, materials, and perform all task necessary for this requirement in accordance with the provided plans and specifications. Pricing Arrangement: Firm Fixed Price	1	Job		

TOTAL PROPOSED PRICE (LINE ITEMS 0001 – 0091): \$_____

*NOTE: QUANTITIES SHOWN ARE ESTIMATED; ACTUAL QUANTITIES MAY VARY SEE FAR CLAUSE 52.211-18 “VARIATION IN ESTIMATED QUANTITY” UNDER SECTION 00 72 00.

**CLINS 0082 AND 0084 ARE ESTIMATED COST FROM UTILITY PROVIDER

Section 00 21 00 - Instructions

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.204-7	System for Award Management.	Nov 2024		
52.204-16	Commercial and Government Entity Code Reporting	Aug 2020		
52.204-22	Alternative Line Item Proposal.	Jan 2017		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.204-7019	Notice of NIST SP 800-171 DoD Assessment Requirements.	Nov 2023		

FAR Clauses Incorporated by Full Text

52.233-2 Service of Protest. (Sep 2006)

As prescribed in 33.106 , insert the following provision:

Service of Protest (Sept 2006)

(a) Protests, as defined in section 33.101 of the Federal Acquisition Regulation, that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), shall be served on the Contracting Officer (addressed as follows) by obtaining written and dated acknowledgment of receipt from Contracting Officer, Renee Booth, via email at Meranda.R.Booth@usace.army.mil.

(b) The copy of any protest shall be received in the office designated above within one day of filing a protest with the GAO.

(End of provision)

52.236-27 Site Visit (Construction). (Alternate I) (Feb 1995) Alternate I (Feb 1995)

Alternate I (Feb 1995). If an organized site visit will be conducted, substitute a paragraph substantially the same as the following for paragraph (b) of the basic provision:

(b) An organized site visit has been scheduled for-

June 12, 2025 at 8:30 AM (AST)

(c) Participants will meet at-

Location will be provided by the contract administration office via telephone.

Participants should call Maria Torres at 787-220-0827 on or before June 9, 2025 to make arrangements

(End of provision)

52.252-1 Solicitation Provisions Incorporated by Reference. (Feb 1998)

As prescribed in 52.107(a), insert the following provision:

Solicitation Provisions Incorporated by Reference (Feb 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

For FAR: <https://www.acquisition.gov/browse/index/far>

For DFARS: <https://www.acquisition.gov/dfars>

(End of provision)

52.252-5 Authorized Deviations in Provisions.

(Nov 2020)

As prescribed in 52.107(e), insert the following provision in solicitations that include any FAR or supplemental provision with an authorized deviation. Whenever any FAR or supplemental provision is used with an authorized deviation, the contracting officer shall identify it by the same number, title, and date assigned to the provision when it is used without deviation, include regulation name for any supplemental provision, except that the contracting officer shall insert "(DEVIATION)" after the date of the provision.

Authorized Deviations in Provisions (Nov 2020)

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the provision.

(b) The use in this solicitation of any **Defense Federal Acquisition Regulation Supplement** (48 CFR Chapter **2**) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of provision)

Section 00 21 16 - Instructions to Proposers

A. PROPOSAL SUBMISSION

1.1 PROPOSAL SUBMISSION REQUIREMENTS

The Offeror's proposal shall be submitted electronically, as described below. The use of hyperlinks in the proposal is prohibited. The offeror's proposal due date is anticipated by no later than the date & time specified in the SF 1442 solicitation.

Each volume shall be submitted electronically in the Solicitation Module at the Procurement Integrated Enterprise Environment (PIEE) website <https://PIEE.EB.MIL>. Electronic copies of each volume shall be submitted through the Solicitation Module of PIEE. Any portion of the proposal that is changed (as a result of negotiations or proposal revisions) should be annotated and dated. Each volume shall be clearly labeled with its Title and a copy number (e.g., copy 1 of 5).

NOTE: The only authorized transmission method of proposals in response to the subject solicitation is electronically via the Procurement Integrated Enterprise Environment (PIEE) website. No other transmission methods, such as facsimile, hand-carried, proprietary or DOD SAFE submissions, proposals submitted by mail, etc. will be accepted. Offers submitted via any other transmission method other than the Procurement Integrated Enterprise Environment (PIEE) website may not be evaluated.

Offerors shall verify that the information for all forms submitted are current, correct, and complete, including names of points of contact, email addresses, and telephone numbers. The Government will not evaluate any material that exceeds the page limits specified within each evaluation factor. Any material in excess of what is requested, such as corporate marketing information, will not be considered. Failing to submit or completely fill out attachments properly may result in rejection of the offer without further evaluation. Therefore, Offerors are urged to follow instructions and raise questions through inquiries if instructions are not understood. Do not include references to material or information not found within its respective volumes. Information submitted in the wrong volumes could lead to an Offeror's proposal being determined "Unacceptable" if materially incomplete in any aspect.

1.2 INSTRUCTIONS FOR SUBMITTING ELECTRONIC PROPOSALS: The Offeror's proposal must be received by the Government no later than the date/time specified in the solicitation. Offerors shall submit their proposal using this link <https://piee.eb.mil/>.

For instructions on how to establish an account in PIEE, please refer to the Vendor User Registration guide in this link: https://piectraining.eb.mil/wbt/portal/portal/Vendor_Registration.pdf

Government Administrators cannot help vendors with their accounts. For issues with vendors account, please use the Vendor Customer Support link to submit an issue or contact the help desk.

Vendor Customer Support link: <https://piee.eb.mil/xhtml/unauth/web/homepage/vendorCustomerSupport.xhtml>

Help Desk: 866-618-5988

Email: disa.global.servicedesk.mbx.eb-ticket-requests@mail.mil

Fax: 801-605-7453

Help Desk Hours

Monday - Friday, 06:30 – 24:00 EST

If there is a system outage, see below. All proposals received after the exact time specified for receipt shall be treated as late submissions and will be handled in accordance with FAR 15.208.

For instructions on how to post an offer, please refer to the Posting Offer demo: https://piectraining.eb.mil/wbt/sol/Posting_Offer.pdf.

There are two vendor roles (Proposal Manager and Proposal View Only) for the PIEE Solicitation Module. The Proposal Manager role is required to submit an offer to a solicitation posted in the PIEE Solicitation Module. Additionally, please be advised that when using the PIEE Solicitation Module, the user's e-mail address in PIEE must match the e-mail address on file in SAM.gov. Also, be advised that submitting files to the Unsolicited Proposal Module will NOT CONSTITUTE a responsive submission to this solicitation. The Proposal Manager must ensure that his or her profile is complete and has been updated as is necessary to ensure a compliant submission in accordance with this solicitation and is highly encouraged to take steps to do so at the earliest opportunity.

OFFERORS ARE STRONGLY ENCOURAGED TO AVOID WAITING UNTIL THE LAST MINUTE TO ATTEMPT TO TRANSMIT THEIR PROPOSALS. TECHNICAL ISSUES WITH UPLOAD MAY RENDER YOUR PROPOSAL TO BE LATE.

For the purposes of establishing whether a proposal submission is considered timely, the Government considers the date and time the submission is completely uploaded into the PIEE website. For multiple submissions, the Government will consider the date and time the last submission is completely uploaded into the PIEE website. Do not assume that electronic communication is instantaneous. It can take several hours for completion of upload.

The Government intends for PIEE to serve as the primary means for submitting the proposals. Accordingly, proposals received by email, modifications thereto, or cancellations of proposals will not be accepted unless the offeror sends an email containing the required

proposal documents along with an explanation as to why the proposal was not submitted via PIEE. Emails are to be sent to the Contract Specialist and the Contracting Officer and must be received by the Government electronic infrastructure prior to the exact time set for receipt. The offeror will be solely responsible for ensuring that the email and the proposal in its entirety are received timely. The emailed version will then serve as the offeror's official submission.

The Government is not responsible for submissions delivered to any location or to anyone other than those designated to receive proposals.

- 1.3 NAMING CONVENTION:** To ensure submissions are received and processed appropriately, it is important that interested parties CAREFULLY ensure their electronic files adhere to the following naming convention. Each file name shall begin with the solicitation number, followed by the word “RESPONSE”, followed by the firm’s name and, finally, a brief file description.

EXAMPLES

- (1) “W51DQV25RA002 RESPONSE Firm name Volume I.pdf”
- (2) “W51DQV25RA002 RESPONSE Firm name Volume II.pdf”
- (3) “W51DQV25RA002 RESPONSE Firm name Volume III.pdf”

- 1.4 SPECIFIC REQUIREMENTS:** Offerors are required to submit proposals with the content specified herein. Proposals without the specified content may be determined “Unacceptable” and removed from the competition. The Government will not make assumptions concerning intent, capabilities, or experiences. Clear identification of proposal details shall be the sole responsibility of the Offeror. All proposals shall contain the evaluation requirements stated herein, and each volume shall also contain: Table of Contents, List of Tables (if required), List of Figures (if required), List of Appendixes, and Name/Address/Telephone Number/e-mail address of the Offeror. Proposal clarity, organization, and cross-referencing are mandatory. No material (information not part of proposal) shall be incorporated by reference. The offeror shall submit in the proposal the requested information specified herein.

Offers providing less than 120 calendar days for Government acceptance after the date offers are due may not be considered for award.

Submissions shall be in Adobe PDF format.

Although hard copies are not accepted, each file shall be clearly indexed, and logically assembled. Font size shall be 10 point or larger.

Offerors shall prepare proposals in the English language. Proposals shall be in a narrative format, organized and titled so that each section of the proposal follows the order and format of the factors. Information presented should be organized so as to pertain to only the evaluation factor in the section that the information is presented. Information pertaining to more than one evaluation factor should be repeated in each section for each factor.

Interested parties shall submit responses no later than the date prescribed. Offerors should time upload efforts with prudence by not waiting until the last few minutes—this will allow for unexpected delays in the transmittal process. Submissions after the deadline may still be uploaded to the PIEE Solicitation Module but be advised, they will be considered late and will be processed in accordance with FAR 15.208.

- 1.5** Each paragraph should be single spaced and shall be separated by at least one blank line. A standard, 10-point minimum font size or larger applies. Arial or Times New Roman fonts are required. Tables and illustrations may use a reduced font size no less than 8-point and may be produced in landscape mode.

The following volumes shall be submitted:

TABLE 1

Volume	Tab	Title	Maximum Pages
VOLUME I - TECHNICAL PROPOSAL – STAGE ONE			
I	A	Factor I - Technical Approach	90
I	B	Factor II - Organizational Structure and Quality Control	40
I	C	Factor III - Risk and Resource Identification	20
I	D	Factor IV – Past Performance	No page limit
VOLUME II - SMALL BUSINESS DOCUMENTS – STAGE TWO			
II	A	SMALL BUSINESS PARTICIPATION PLAN (FACTOR 5) Stage Two	No page limit
VOLUME III - PRICE AND PROFORMA INFORMATION (STAGE TWO)			

III	A	Standard Form 1442 Solicitation, Offer and Award - with box 19 acknowledgement of all amendments and a completed Section 00 10 00 – Solicitation, Contract Line Item Number (CLIN) Schedule	No page limit
	B	Bid Guarantee	No page limit
III	C	➤ Proposal Data Sheet (Attachment 4) ➤ Section 00101, Representations, Certifications and Other Statements of Offerors ➤ Determination of Responsibility Form (Attachment 5) ➤ Small Business Subcontracting Plan (SBSP) – ONLY FOR LARGE BUSINESSES	No page limit

NOTE: Volumes that exceed the page limitation in the above table will not be evaluated beyond the total allowable number of pages.

- 1.6 The Caribbean District is utilizing the stage receipt of proposals method for this project. The initial proposal submission (Stage One) will be based on 95% plans and specifications and offerors will only be required to submit a proposal consisting of the information identified in paragraph 1.8. The amendment for the Stage Two will be issued only to responsive offerors and all responsive offerors who submitted a proposal by the due date and time required for the initial receipt of proposal will move forward to Stage Two. This amendment will provide additional instructions for the submission of the required information as identified in paragraph 1.9. All proposal materials, submitted via the PIEE website, will be required to conform to the solicitation requirements.

2. **PROPOSAL FILES**

- a. **Format.** The submission shall be clearly indexed and logically assembled. Each volume shall be clearly identified and shall begin at the top of a page. All pages of each volume shall be appropriately numbered and identified by the complete company name, date and Request for Proposal (RFP) number in the header and/or footer. A Table of Contents should be created using the Table of Content feature in MS Word. MS Word (doc) files shall use the following page setup parameters:

Margins – Top, Bottom, Left, Right – 1” Gutter – 0”
From Edge – Header, Footer 0.5” Page Size, Width – 8.5”
Page Size, Height – 11” The following additional restrictions apply:

- b. **Content Requirement.** All information shall be confined to the appropriate file. The offeror shall confine submissions to essential matters, sufficient to define the proposal in a concise manner, to permit a complete and accurate evaluation of each proposal. Each file of the proposal shall consist of a Table of Contents, Summary Section, and the Narrative discussion. The Summary Section shall contain a brief abstract of the file. Proprietary information shall be clearly marked. The following shall be included in the Narrative discussion:

2.1. VOLUME I –SUBMISSION REQUIREMENTS (TECHNICAL PROPOSAL, FACTORS 1-4):

2.1.1 For purposes of this solicitation, an “offeror” may include a group of two (2) or more entities that have formed a “contractor team arrangement,” as the term is defined in the Federal Acquisition Regulation, Part 9.6. In the case of entities that have formed a contractor team arrangement, the experience and performance history of any member of the team, whether or not gained while working with the other member(s) of the currently proposed contractor team arrangement, will be considered as a part of the evaluation of the offeror’s proposal.

An offeror that relies upon the experience and performance history of a member, members or affiliates of a proposed contractor team arrangement must provide a teaming agreement or commitment (in the case of any affiliates) signed by all parties. The teaming agreement/commitment shall:

- a. Identify the legal name(s), UEI number, and cage code(s) of all entities.
- b. Describe the nature of each entity’s relationship (partnership, joint venture, prime/sub or mentor/protégé) and their role on this project as a part of their proposal. The offeror will be expected to maintain that arrangement during performance of any contract awarded to that offeror under this solicitation.
- c. The estimated percentage of work to be completed by each member submitted for the solicitation.

The following are to be used in determining the status of the Offeror’s team for evaluation of project submissions under Factor 4:

- In the case of contractor team arrangements involving a prime contractor and subcontractor(s), where the prime contractor submits the proposal in response to this solicitation, the prime contractor is considered the “prime offeror”.
- In the case of joint ventures, the “prime offeror” experience can come from any of the entities involved in the venture.
- In the case of mentor/protégé relationships, the relationship must be established by the two offerors and approved by the **Small Business Administration (SBA)** prior to proposal submission. Once the relationship has been approved, the “prime offeror”

experience can come from any of the entities involved in the relationship. **The approved mentor/protégé document from the Small Business Administration (SBA) must be submitted along with the teaming agreement.**

- In the case of contractor team arrangements involving a prime contractor and subcontractor(s), where the experience (submitted project) comes from a subcontractor, the subcontractor shall submit the final cost of the work executed within the project along with the total project cost. Submission must comply with requirements under this section.
- In the case of offerors that are large, multi-functioning firms (consisting of subsidiaries), experience must only be submitted by the segment of the firm (e.g., division, group, unit, office) submitting a proposal in response to this solicitation.
- In the case of affiliates, past performance of an offeror's "affiliate," as that term is defined in FAR 2.101, will be evaluated (as described within this section) if the offeror demonstrates a firm commitment that the affiliate will participate meaningfully (e.g. roles, responsibilities, etc.) in the performance of the contract. This commitment, nature of each entity's relationship, and meaningful participation shall be described in a document signed by authorized representatives.

2.2. FACTOR 1 – TECHNICAL APPROACH (STAGE ONE):

2.2.1 In responding to this factor, the objective should be to instill confidence that the offeror thoroughly understands the requirements of the solicitation, has the adequate resources to execute, and has the expertise and experience required to successfully satisfy or exceed the solicitation requirements within the required period of performance (See Section 00700, FAR Clause 52.211-10).

The offeror must submit a Technical Approach Plan, in a narrative form, to describe how the offeror intends to execute the project. The technical approach must describe in detail how the offeror intends to perform key construction activities which includes, at a minimum:

- Installation of the utility bridge, sanitary siphon, 48-inch water main relocation, and channel walls.
- Construction of drilled shaft walls using slurry fluids.
- Noise and vibration controls during the sheet piles and drilled shafts installations.
- Erosion control placement in wet.
- Water diversion, surface and ground water control.
- Electrical utility relocation including coordination with local agencies and utility owners.
- Material excavation and disposal including procedures and equipment. Include methods of disposal using barges (Ocean disposal and disposal at La Chuleta or approved disposal site) and trucking as applicable.

The areas of work identified above represent areas of particular concern to the Government. Therefore, for each such area of work, the offeror must affirmatively explain whether it intends to self-perform the work or whether it intends to subcontract the work. If the offeror intends to subcontract the work, the offeror must identify the subcontractor proposed and submit a letter of commitment from that contractor using the template in Attachment 2.

2.2.2. The Technical Approach Plan must include a schedule narrative describing the construction sequence /process for successful completion of the project within the duration shown in FAR 52.211-10. The sequence of activities must represent work through the entire project from mobilization to demobilization and provide the basis for proposed timeframes of required work items proposed in the Construction Schedule, including all assumed contingencies.

2.2.3. In support of the sequence of activities, offers must include a conceptual construction schedule in the form of a Gantt, Pert, or similar graphical timeline. This summary schedule is used for evaluating the offeror's proposal for reasonableness; the successful offer will, after contract award, replace the proposed construction schedule with a project schedule in accordance with contract requirements after award. The purpose of the conceptual construction schedule is to evaluate the offeror's approach to satisfying the project requirements within the Period of Performance provided in the maximum contract duration, to review logic between activities, sequence of work, and evaluate the offeror's understanding of the overall project requirements and constraints.

At a minimum, the construction schedule must clearly show the interdependence of activities (i.e schedule logic) and start and completion dates for the activities listed in paragraph 2.2.1, as well as the following:

- a. Project initiation activities and demobilization of all work items
- b. Preconstruction submittals (e.g., Accident Prevention Plan, Environmental Protection Plan, Quality Control Plan, etc.).
- c. Critical submittals (e.g., Dewatering Plan, long lead items, Traffic Control Plan, Preconstruction Logistic Plan, Drilled Shaft Installation Plan, etc.).
- d. Procurement and delivery of long lead items.
- e. Channel Excavation and material disposal.
- f. Temporary sheet pile installation.
- g. Drilled shaft installation.
- h. Construction of the utility bridge.
- i. Construction of transitions.
- j. Utility relocations including the electrical and 48-inch water main.
- k. Installation of the sanitary siphon including the required temporary cofferdam.

2.3. FACTOR 2 – ORGANIZATIONAL STRUCTURE AND QUALITY CONTROL (STAGE ONE):

2.3.1. Provide an organizational chart to include, at a minimum, all key personnel, and major subcontractors (and subcontractor key personnel). Provide a narrative describing lines of authority throughout key personnel and both internal and external lines of communication. This should provide a clear understanding of means of directing work internally as well as intended method of communicating with USACE counterparts, subcontractors and suppliers, and local organizations and authorities.

2.3.2. In a narrative form, describe the team's quality control approach, corporate systems and/or processes, and capabilities to maintain quality control of construction. Describe the proposed quality control organization, including the proposed staffing plan to include positions, roles, and responsibilities.

Provide information on how you will handle internal and external requests for information, shop drawings, submittal reviews, progress meetings, contract completion, closeout, as-built, and completion documentation. Proposal must demonstrate adequate quality control processes to give the government confidence of the offeror's ability to successfully manage the material submittal process and ensure subcontractor compliance with contract documents.

Provide a detailed explanation of how quality issues are dealt with on various types of construction projects for all items identified above and inspections, correction of non-compliant work, and how you intend to ensure non-reoccurrence and reporting of quality problems to Government officials. There is no need to submit a quality control plan or proposed staff resumes as the successful offeror will provide that after award.

2.3.3 A letter of commitment (Attachment 2) shall be included for each subcontractor performing one or more of the key construction activities identified under paragraph 2.2 Factor 1 – Technical Approach. A letter of commitment is defined as a letter from a subcontractor on official company letterhead addressed to the offeror as the prime contractor, identifying the work the subcontractor intends to perform, and stating that the subcontractor is willing to be bound to perform the identified work if the offeror is awarded a contract. A letter of commitment simply stating that a subcontractor commits to submit pricing to the offeror does not satisfy this requirement.

Identify the work intended to be self-performed by the prime offeror (Refer to Section 0700, FAR Clause 52.236-1).

2.4 FACTOR 3 – RISK AND RESOURCE IDENTIFICATION (STAGE ONE):

2.4.1. Provide a narrative outlining major risks and challenges related to the key activities identified in Factor 1 as well as the environmental and administrative conditions that may affect work. Narrative should include discussion of how risks will be mitigated proactively to prevent delays in work.

2.4.2. Provide a narrative describing means of identification, procurement, storage and transportation of key materials, equipment, and resources. Include discussion about identifying sources of general and skilled labor considering the availability and utilization of local resources, and any associated risks identified.

2.5 FACTOR 4 – PAST PERFORMANCE (STAGE ONE) NO PAGE LIMIT:

2.5.1. The submitted material must be organized sequentially under tabs for each numbered section to facilitate evaluation. **All narratives must contain sufficient detail to demonstrate recency and relevancy (see Section B3 "Findings Definitions" for the definition of recency and relevancy).**

The offeror will demonstrate experience by the successful and contractual completion of applicable projects under Factor 4. The information that is required to be supplied is identified on the form provided entitled "COMPANY SPECIALIZED EXPERIENCE FORM" (Attachment 1). Offerors are not required to use the form itself as part of their proposals, but the information requested on the form must be in the offeror's proposals. Each project description must include all information included on Attachment 1. Offerors may expand the form as necessary to accommodate the required project information.

2.5.2. CORPORATE EXPERIENCE: Using the Company Specialized Experience Form (Attachment 1), offerors shall provide no more than seven (7) examples of completed projects, which demonstrate the offerors recent, relevant experience. If any offeror provides more than seven projects, only the first seven projects submitted in order of submission will be evaluated; no additional consideration or evaluation will be given for the remaining submissions.

Note: Projects submitted must be completed or 80% physically completed within the last 10 years from the issuance date of the solicitation. Offerors may submit a relevant completed portion of a larger project IF that portion of work has been accepted by the customer and the offeror provides evidence of completion and acceptance as indicated in the corresponding PPQ. The Government will only consider those portions of work specifically identified as complete/accepted.

Note: Similar scope refers to projects including features of work described under Factor 1. Relevancy will be evaluated using the parameters described in Table 3 - Past Performance Relevancy Ratings; see section D.5 FACTOR 4: Past Performance.

Projects considered similar in scope to this project include the following:

1. Drilled shafts technique – Experience successfully constructing three (3) projects using drilled shafts technique within the last 10 years. Of the three (3) projects, at least one (1) must be a drilled shaft project with a diameter of at least 48”- inches and with a depth of at least 70’ (feet).
2. Reinforced and/or prestressed concrete multi-span vehicular or multi-span utility bridge
3. Sanitary siphon relocations.
4. Cofferdam construction with dewatering system(s) including, but not limited to, sheet pile and pumping.
5. Utility relocation work such as electrical, telecommunications, lighting, and water lines relocation.
6. Placement of erosion control systems below water level conditions such as riprap and gabion baskets.
7. Channel excavation of at least 15 feet in depth in dry and wet conditions.

Additional consideration may be given for projects that contain the following relevant specialized experience:

8. Conducting work under similar structures and conditions i.e. - in similar environmental conditions; governed by the same regulations, policies, and permitting requirements; requiring coordination with the same local and federal agencies; teaming with the same major subcontractors etc.
9. Building on-site cement batch plant(s).
10. Projects that demonstrate experience with tangent drilled shaft wall or secant drilled shaft wall installation.

NOTE: Individual projects need not reflect all required criteria to be considered relevant. However, to receive an overall confidence rating higher than neutral, all seven **required** criteria must be identified through a combination of projects. Criteria identified as additional consideration items will contribute to individual relevancy determination but are **not** considered required for the purpose of the overall confidence rating.

If any firm has multiple functions or divisions, limit the project examples to those performed by the division, unit or team member submitting the offer. If submitting a proposal as a joint venture, the experience of each joint venture partners can be submitted for the joint venture entity. These projects will be evaluated separately; however, confidence will be rated for the joint venture as a whole. Contractors submitting an offer as a joint venture must provide a written copy of the joint venture agreement with the initial proposal. The joint venture agreement must be signed by both parties and will be subject to review. In addition, the joint venture must be registered in the System for Award Management website (SAM.gov) as a joint venture at the time of receipt of proposals in order for an award to be made.

Offerors should ensure UEI number and CAGE Code are included. UEI number will be used to access CPARS data. Offerors should also provide any other assigned number that identifies them in the CPARS database. If a separate UEI has been created for a Joint Venture (JV), that UEI must also be submitted. Also provide any other UEI that identifies individual member firms in the JV.

2.5.3 For each of the projects submitted in response to paragraph 2.5.2. above, provide a Contractor Performance Assessment Reporting System (CPARS) evaluation, if available. If an interim or final CPARS evaluation is available, a Past Performance Questionnaire (PPQ) is not required to be submitted. If an interim or final CPARS evaluation is not available, a PPQ for the reference project is to be submitted. The PPQ shall be completed by a representative of the owner that provides the owner’s opinion of the Offeror’s past performance for the project. The PPQ included in the RFP (attachment 3) is provided for the Offeror or its team members to submit to the owner for each project. Ensure correct phone numbers and email addresses are provided for the owner point of contact. Organize all Past Performance Information in the same order in which the Projects are submitted.

Submit completed PPQs with your proposal. If the Offeror is unable to obtain a completed PPQ from an owner for a project(s) before proposal closing date, the offeror should complete and submit with the proposal the first page of the PPQ, which will provide contract and client information for the respective project(s). At the owner’s discretion, PPQs may be submitted directly to the Government’s point of contact Ms. Jaclyn Yocum, via email at Jaclyn.c.yocum@usace.army.mil prior to proposal closing date.

Previously completed PPQs may be submitted provided that the documents do not reference any other solicitation. Submitted PPQs must only reference this solicitation.

Submit copies of Federal /DoD/Navy/Army performance reviews even if they may be in the agency’s databases or likely within the agency’s army’s reach, i.e., Contractor’s copy of CPARS evaluation for each of the projects submitted, to ensure the agency has all relevant past performance information.

Provide the UEI number(s) and CAGE code(s) for the prime contractor and all teaming partners, i.e., design firms, key

subcontractors, joint venture partners, whose experience is included in this Factor. While the Government may elect to consider data from other sources, the burden of providing detailed, current, accurate, and complete past performance information rests with the Offeror.

The Government plans to contact and interview the owner’s representative identified on the Past Performance Questionnaires and reserves the right to interview other individuals acting for the owner’s representative if the owner’s representative is not available. In addition, the Government may review any other sources of information for evaluating past performance.

Past performance information may be obtained from any other sources available to the Government, to include, but not limited to, Contractor Performance Assessment Reporting System (CPARS), Federal Awardee Performance and Integrity Information System (FAPIS), Electronic Subcontract Reporting System (eSRS), or other databases; interviews with Owners, Program Managers, Contracting Officers, and Fee Determining Officials; and the Defense Contract Management Agency.

At no time during this process, or during any debriefing, or after any award, will the names of the individuals providing reference information about an Offeror’s past performance be revealed to the Offerors or to any other party. If discussions are held, Offerors may be afforded the opportunity to respond to adverse comments made by references in accordance with guidelines identified in FAR Part 15.3. In this case, relevant comments will be extracted and provided to the Offeror.

2.6 VOLUME II: FACTOR 5 – SMALL BUSINESS PARTICIPATION PLAN (STAGE TWO):

2.6.1. All Offerors (both large and small businesses) regardless of size status are required to complete a Small Business Participation Plan (SBPP) in accordance with DFARS 215.304. Offerors shall address their planned small business usage for this requirement and will be evaluated on the level of proposed participation of US small businesses in the performance of this acquisition (as small business prime offerors or small business subcontractors) relative to the objectives, requirements and goals established herein. Offerors shall articulate within their SBPP how they intend to meet and/or exceed the small business objectives, requirements, and goals.

The SBPP will be incorporated into any resultant prime contract as the basis for a formal Small Business Subcontracting Plan. The successful Offeror (if a large business) will be required to submit the Small Business Subcontracting Plan upon contract award. The Small Business Participation Plan shall be based on the Offeror’s best effort; however, it must meet the minimum total Small Business Participation goal of 13% as well as the individual program goals identified below of the total contract value. Offerors unable to meet the minimum overall small business goal of 13% or any of the individual program goals shall provide an explanation of why this target cannot be met with their proposal.

Minimum Small Business Participation Goals:

- For SB, the goal should not be less than 13%.
- For SDB, the goal should not be less than 5%.
- For WOSB, the goal should not be less than 2.3%.
- For HUBZone, the goal should not be less than 1%.
- For VOSB, the goal should not be less than 0.5%.
- For SDVOSB, the goal should not be less than 0.5%.

2.6.2 The Small Business Participation Plan shall be organized as follows:

- (1) Prime Contractor type of business (check all that apply): ☐ Large
☐ Small (also check type of small business) ☐ Small Non-Disadvantaged Business
☐ Small Disadvantaged Business ☐ Woman-Owned Small Business ☐ HUBZone Small Business
☐ Veteran Owned Small Business
☐ Service Disabled, Veteran Owned Small Business

- (2) Percentage of your participation as a prime contractor: _____%

NOTE: Small Business primes' self-performance counts as Small Business Participation, and small business primes may achieve small business participation goals through their own performance/participation as a prime and/or through subcontracting to other small businesses.

- (3) Percentage of total contract value of subcontracts planned for:

Individual Program	Percent of Total Contract Value
Large	%
Total Small	%

Small Non-Disadvantaged	%
Small Disadvantaged	%
Small Woman Owned	%
Small HUB Zone	%
Small Veteran Owned	%
Small Service-Disabled Veteran Owned	%

Each percentage above shall be accompanied by detailed supporting documentation regarding individual commitments.

NOTE: The sum of the percentages of Small Non-Disadvantaged and Small Disadvantaged should equal the entries for the Total Small; however, the sum of all of the percentages need not equal 100% since the prime is not included and individual subcontractors may be counted towards more than one category.

- (4) List Principal Supplies/Services (be specific and include company names where available) to be subcontracted to each of the programs identified above.

	Name of Company	Type of Service/Supply
Large		
Small Non-Disadvantaged		
Small Disadvantaged		
Small Woman Owned		
Small HUB Zone		
Small Veteran Owned		
Small Service-Disabled Veteran-Owned		

- (5) Prior Performance Information: Offerors must provide detailed information substantiating their track record of utilizing small business on past contracts. This should include:
- Small Business Utilization Data: Specific examples of past contracts with the percentage of subcontracted work awarded to small businesses. Include types of small businesses engaged (e.g., small disadvantaged, woman-owned, services disabled veteran owned).
 - Subcontractor Details: List of small business subcontractors used on previous contracts, including the business name, location, and type of services or products provided.
 - Goal Achievement: Evidence demonstrating the attainment of small business subcontracting goals, such as performance evaluations or compliance reports. Include any relevant subcontracting plan or reports (e.g., SF 294 or SF 295).
 - Awards and Recognitions. Details of any awards or recognition received related to small business utilization.
 - Development Initiatives. Information on mentor-protégé programs or other small business development initiatives participated in by the offeror.
 - Small Business Liaison Information. Information about the designated Small Business Liaison Officer (SBLO) or equivalent, including their role in promoting small business participation.
- (6) For large **and** small businesses, provide descriptive information for all small business categories. Any information concerning long-term relationships with small business subcontractors, such as mentor-protégé relationships, should be provided.
- (7) Extent of Commitment: Provide documentation regarding enforceable commitments to utilize any small business category as defined in FAR Part 19 as subcontractors. Reference attachment 2 for sample letter template.
- (8) Small Business Subcontracting Plan: Each **Large Business Offeror** shall provide a Small Business Subcontracting Plan that contains all of the elements required by FAR Clause 52.219-9. This Plan shall be submitted separately from the Small Business Participation information required above. The Subcontracting Plan is not a requirement for evaluation in source selection but rather a requirement for award to a Large Business. The approved Small Business Subcontracting Plan will be incorporated into any resultant contract.

*NOTE: The Price Breakout Schedule being issued with Stage 1 is intended FOR INFORMATION ONLY and is subject to change. The price proposal will only be a required to be a submission of Stage 2. For Stage 2 Proposal, the Offeror must enter a price for each item listed in the proposal price breakout schedule.

2.7.1 Offerors shall fill-in the Pricing Schedule listed in Section 00 10 00, Line Items and Pricing Schedule of the SF 1442. The total price will be considered for evaluation.

2.7.2 Each offeror shall complete (fill-in and signatures) the solicitation sections indicated below using the file (without modification to the file) provided with the RFP. An authorized official of the firm shall sign the SF 1442 and all modification to the file) provided with the RFP. An authorized official of the firm shall sign the SF 1442 and all certifications requiring original signature. An Acrobat PDF file shall be created to capture the signatures for submission.

- a. SF 1442 (Solicitation, Offer and Award);
- b. Proposal Data Sheet (Attachment 4);
- c. Section 00101, Representations, Certifications and Other Statements of Offerors;
- d. In accordance with FAR Clause 52.228-1, Bid Guarantee, an electronic copy of the bid guarantee shall be submitted with the offer. The electronic copy must be signed and legible;
- e. Determination of Responsibility Form (Attachment 5) for each partner, along with a copy of your latest financial statements (Balance Sheet and Income Statement);
- f. Small Business Subcontracting Plan (SBSP) (for Large Businesses only).
- g. Bonds format. Offerors shall submit bid bonds (Standard Form 24) in electronic format. Electronic copies of bid bonds shall be included in Volume III: Cost/Price. Hard copies of bid bonds with the raised seal are no longer required to be mailed in at this time and are not to be sent to the contracting office. Verification of Bid Bonds with sureties will be completed during the evaluation process and before award. Bid bond submissions shall be due by the proposal due date and time. Offerors are responsible for the accurate submission of the Bid Bonds with all signatures and seals applied.

2.7.3 Compliance. Failure to comply with the RFP requirements for Cost information may result in an adverse assessment of an Offeror's proposal and reduce or eliminate its chance of being selected for award. Each Offeror shall ensure that the information presented in this volume is consistent and correlates with the information contained in the other proposal volumes. Also, the Offeror shall ensure that the information submitted in this volume is consistent with and fully supports the amounts set forth in the SF1442 and continuation sheets.

2.7.4 General Instructions. In accordance with Federal Acquisition Regulation (FAR) 15.402 and 15.403-1, certified cost or pricing data are not required based on the fact that adequate competition is expected for this procurement. Information submitted shall be prepared following the instruction in FAR 15.403-5. If after receipt of proposals the Contracting Officer determines that there is insufficient information available to determine price reasonableness and none of the exceptions at FAR 15.403-1 apply, the Offeror may be required to submit cost or pricing data. Additionally, in the event that adequate competition is not obtained, the Contracting Officer may incorporate FAR 52.215-20 entitled, "Requirements for Cost or Pricing Data or Information Other Than Cost or Pricing Data," into the solicitation and request a Certificate of Current Cost or Pricing Data. There are no page limitations for this volume. Proposal information included in this volume which is not directly related to Cost will be disregarded.

B. BASIS FOR AWARD

The award will be made based on the best overall (i.e., best value) proposal that is determined to be the most beneficial to the Government, with appropriate consideration given to the six (6) evaluation factors:

Factor 1 - Technical Approach

Factor 2 - Organizational Structure and Quality Control Factor 3 – Risk and Resource Identification

Factor 4 – Past Performance

Factor 5 – Small Business Participation Plan Factor 6 – Price

The evaluation process will consider the following five non-price factors listed in descending order of importance: (1) Technical Approach, (2) Organizational Structure and Quality Control, (3) Risk and Resource Identification, (4) Past Performance, and (5) Small Business Participation Plan. All non-price factors, when combined, are considered approximately equal to price. To receive consideration for award, a rating of no less than "Acceptable" must be achieved for the factors 1, 2, 3, and 5. Additionally, any other than small business offeror must have an acceptable Small Business Subcontracting Plan to receive an award in accordance with FAR 19.702(a). Offerors will be cautioned that the award may not necessarily be made to the lowest cost offered. **NOTE: ALL NON-PRICED FACTORS COMBINED ARE CONSIDERED APPROXIMATELY EQUAL TO COST/PRICE.**

C. FACTORS TO BE EVALUATED

Award will be made to the offeror whose proposal is most advantageous to the Government based upon an integrated assessment of the evaluation factors described below. The following evaluation factors will be used to evaluate each proposal:

Factor 1: Technical Approach (Stage 1):. A detailed explanation of the criteria for the evaluation is set forth in the “Evaluation Approach”, Paragraph D. During evaluation of each proposal, the Source Selection Evaluation Board (SSEB) will assign an adjectival rating and develop a narrative evaluation reflecting the identified findings.

Factor 2: Organizational Structure and Quality Control (Stage 1): Each offeror’s proposal for this factor will be evaluated on their approach to managing the project and maintaining quality standards throughout performance of the contract.

Factor 3: Risk and Resource Identification (Stage 1): Each offeror’s proposal for this factor will be evaluated on their proposed plan in identifying and managing risks and resources throughout contract performance.

Factor 4: Past Performance (Stage 1): Each offeror’s past performance will be reviewed to determine a recency, relevancy, and confidence assessment.

Factor 5: Small Business Participation (Stage 2): Each offeror’s level and degree of commitment to utilize small business in execution of the requirement will be evaluated.

Factor 6: Cost/Price (Stage 2): The resulting award will be a firm fixed price contract. Price reasonableness will be utilized in the evaluation of the Firm-Fixed Price effort.

D. EVALUATION APPROACH

Offerors are cautioned that “parroting” of the Technical requirements with a statement of intent to perform does not reflect an understanding of the requirement or capability to perform. Offerors are responsible for including sufficient details to permit a complete and accurate evaluation of each proposal.

All proposals shall be evaluated by the Source Selection Team (SST).

D1.1 The overarching evaluation approach for all factors is as follows:

- a. Adequacy of Response. The proposal will be evaluated to determine whether the offeror’s methods and approach have adequately and completely considered, defined, and satisfied the requirements specified in the RFP. The proposal will be evaluated to determine the extent to which each requirement has been addressed in the proposal in accordance with the proposal submission section of the RFP.
- b. Feasibility of Approach. The proposal will be evaluated to determine the extent to which the proposed approach is workable and the end results achievable. The proposal will be evaluated to determine the extent to which successful performance is contingent upon proven approaches and techniques. The proposal will be evaluated to determine the extent to which the offeror is expected to be able to successfully complete the proposed tasks and technical requirements within the required schedule.

D1.2 In accordance with the DoD Source Selection Procedures the methodology for evaluating Technical Approach and Related Risk is the Combined Technical/Risk Rating, (see Table 2 below). This methodology considers risk, in conjunction with the strengths, weaknesses, significant weaknesses, uncertainties, and deficiencies in determining technical ratings. The SSEB will assign an adjectival rating for Factors 1, 2, 3, & 5.

TABLE 2 – COMBINED TECHNICAL/RISK RATINGS		
Color	Rating	Description
Blue	Outstanding	Proposal demonstrates an exceptional approach and understanding of the requirements and contains multiple strengths and/or one significant strength, and risk of unsuccessful performance is low.
Purple	Good	Proposal indicates a thorough approach and understanding of the requirements and contains at least one strength or significant strength, and risk of unsuccessful performance is low to moderate.

Green	Acceptable	Proposal meets requirements and indicates an adequate approach and understanding of the requirements, and risk of unsuccessful performance is no worse than moderate.
Yellow	Marginal	Proposal has not demonstrated an adequate approach and understanding of the requirements, and/or risk of unsuccessful performance is high.
Red	Unacceptable	Proposal does not meet requirements of the solicitation, and, thus, contains one or more deficiencies and is unawardable, and/or risk of performance is unacceptably high.

D1.3 Bifurcated Request for Proposal (RFP) Procurement Process: The acquisition approach for this project will be a Bifurcated Best Value RFP following FAR Part 15. The initial solicitation (Stage One) will include a draft bid schedule (for information purposes) draft (95% completed) Plans and Specifications. As the result of the solicitation, the contractor will be required to provide the Stage One proposal, as described below. While the Government intends to begin review of proposals upon receipt, no discussions will be held until after submission and evaluation of Stage Two proposal information. The Government reserves the right to seek clarifications if apparent discrepancies in requirements are identified during initial evaluations prior to the receipt of Stage Two proposals. An amendment will be issued only to the contractors that have provided a Stage One proposal. The amendment will consist of the final bid schedule, the 100% certified Plans and Specification and will provide instructions along with approximately an additional 30 calendar days for the offerors to submit the Stage Two proposals. All responsive offerors having submitted a Stage One proposal will receive the Stage Two Request. If revisions to Stage One offers are necessary during Stage Two proposal development, Offerors should clearly identify in subsequent submissions any changes made during this phase. The Government will utilize both Stage One and Stage Two submission to arrive at the proposal/offeror that is determined to be the most beneficial to the Government.

D.2 FACTOR 1 – TECHNICAL APPROACH (STAGE ONE):

The Government will evaluate the Technical Approach plan based on the criteria established under paragraph 2.2 Factor 1 Technical Approach, Division 01 Specifications, and Plans and Technical Specifications in this Solicitation. The offeror shall demonstrate through the narrative plan to have full understanding of contract requirements, adequate resources to execute and the expertise and experience to successfully perform the work, including but not limited to the key construction activities identified under paragraph 2.2 Factor 1 Technical Approach, within the period of performance established. The Government will evaluate the narrative for realism, logic, and understanding of the contractual requirements.

Additional consideration may be given to offeror's that include a comprehensive and thorough approach for how the construction is planned to be executed, especially those proposals which provide approaches that enhance cost, time, and/or quality benefits during contract performance, which are advantageous to the Government. Thorough approaches are those which provide information to support proposed construction methodology and techniques, identification and adequacy of resources, and logistics working in constraint areas, in a way that gives confidence the offeror has a comprehensive understanding of the requirements, risks, and site complexities associated with the construction of this project.

The Proposed Construction Schedule evaluation determines the degree to which the offeror's proposal meets the requirements of the solicitation, the feasibility of the proposed approach, and ability to identify the flow of work. The Government will evaluate the offeror's schedule narrative using calendar days, not dates. The schedule narrative will be evaluated based on the understanding of events, particularly the items identified under paragraphs 2.2.3 and 2.2.1 for Factor 1-Technical Approach, and the offeror's capability to complete the schedule within the contract duration. Narratives that demonstrate a clear understanding of the schedule impacts of the major milestones and tasks and provide a thorough approach for successfully completing the contract within the contract duration may receive additional consideration.

A Proposed Construction Schedule shorter than the contract duration may indicate the Offeror is placing additional risk on the Government for any delays between the scheduled completion date and the required contract completion period which will make it unacceptable. The schedule should not exceed the prescribed period of performance and any projected delays or gaps in the schedule must be accompanied by a narrative explanation.

The Source Selection Team (SST) will use a combined technical/risk rating system that includes consideration of risk in conjunction with the strengths, weaknesses, and deficiencies in determining technical ratings. Assessment of technical risk, which is manifested by the identification of weakness(es), considers potential for disruption of schedule, increased costs, degradation of performance, the need for increased Government oversight, and/or the likelihood of unsuccessful contract performance.

Combined technical/risk evaluations shall utilize the combined technical/risk ratings listed in Table 2.

Ratings will be assigned for each of the technical evaluation factors for each offeror. No overall rating will be assigned.

D.3 FACTOR 2 – ORGANIZATIONAL STRUCTURE AND QUALITY CONTROL (STAGE ONE):

The Government will evaluate the Organizational Structure and Quality Control Approach narrative based on the criteria established under paragraph 2.2.1 and 2.3. FACTOR 2 – ORGANIZATIONAL STRUCTURE AND QUALITY CONTROL APPROACH, Division 01 Specifications, and Plans and Technical Specifications in this Solicitation. The offeror shall demonstrate through the narrative the level of understanding of the work and the involvement the contractor will have in the management, oversight, control, and coordination of the work performed during construction of the project; in addition it must demonstrate to have the necessary structure and experienced, qualified personnel within its organization to effectively manage, control, administer and execute the construction operations, quality control program and subcontracts. Narratives that demonstrate a clear understanding of the project requirements and provide a thorough approach for successfully managing the solicited project may be rated more favorably by the Government.

The offeror's organizational chart will be evaluated based on the clarity, adequacy, capabilities, strengths for successfully managing the solicited project, and how well it is formulated, structured and staffed to execute the entire scope of work. If applicable, joint venture participants' contribution to the organization should be commensurate with their skills and background. The Government will evaluate the firm's understanding of the scope of the project, the requirements described in the Division 01 specifications of this Solicitation, and the capability to execute the project based on organizational experience, resources and workload.

Offeror's understanding and ability to coordinate and communicate with major subcontractors while making sure all requirements are met, and schedule impacts are avoided will also be evaluated. Additional consideration may be given for organizational structures that clearly identify efforts to streamline communication, improve transparency, or offer redundancy to lower the risk of error and improve efficiency to the benefit of the Government or general public.

The Government will evaluate the offeror's capabilities and understanding of the contractually required quality control processes during construction which is critical to the successful execution of construction contracts. The offeror Quality Control approach will be evaluated based on the clarity, adequacy, capabilities and strengths for managing a successful project. Plans that demonstrate a clear understanding of the quality control requirements, identify streamline efficiency, increase transparency, and are likely to provide for significant efforts to identify project risks or potential failures prior to impacts to schedule or cost (beyond the efforts required by standard quality control procedures) may be given additional consideration.

D.4 FACTOR 3 – RISK AND RESOURCE IDENTIFICATION (STAGE ONE):

The Government will evaluate the firm's understanding of the requirements described in Paragraph 2.4 of this solicitation as well as Division 01 requirements and the plans and technical specifications of the Solicitation and the capability to execute the project. Risk identification will be evaluated based on the degree to which it demonstrates an understanding of the unique conditions and environment of the project. Risk mitigation will be evaluated with relation to how comprehensive the efforts are and how likely they are to successfully resolve the impact of the risks. Resource identification will be similarly evaluated with relation to how well it demonstrates an understanding of the total requirement as well as the constraints of the region and how likely the plan is to successfully produce necessary resources and mitigate resource constraints.

Additional consideration may be given to plans that offer redundancy in mitigating efforts likely to positively impact the success of the project. Additional consideration may also be given to plans that clearly identify how offerors will actively work to avoid excessive burden or to stimulate growth and development of local resources.

D.5 FACTOR 4 - PAST PERFORMANCE (STAGE ONE):

The Government will review the proposal to ensure the submission requirements have been met. The Government will then review the Offeror's past performance information, determine the performance recency, relevancy, and quality and assign an overall performance confidence assessment rating. The Government may review any sources of information for evaluation of past performance.

D.5.1. Recency of Past Performance. The first aspect of past performance evaluation is to determine if the past performance is recent. Recency requirements are specified in paragraph 2.5.2.

D.5.2. Relevance of Past Performance. The second aspect of the past performance evaluation is to determine how relevant the past performance is. Relevance requirements are specified in paragraph 2.5.2.

To be assigned a confidence rating higher than 'neutral' all relevancy criteria provided under as 'Required' must be identified through the totality of the Factor 4 submission. Individual projects may be assessed a higher relevancy if they include a larger variety of the criteria, including those items listed as 'Beneficial'.

More relevant past performance will typically be a stronger predictor of future success and have more influence on the past performance confidence rating than past performance of lesser relevance.

Past performance that has little, or no relevance does not typically influence the performance confidence rating; however, adverse past performance on these projects could reflect larger company-wide concerns and may impact the past performance confidence rating.

Relevancy is not separately rated; however, the following criteria (see Table 3) will be used to establish what is relevant which shall include

similarity of service/support, complexity, dollar value, contract type, and degree of subcontract/teaming.

Table 3- Past Performance Relevancy Ratings	
Rating	Definition
Very Relevant	Present/past performance effort involved essentially the same scope and magnitude of effort and complexities this solicitation requires.
Relevant	Present/past performance effort involved similar scope and magnitude of effort and complexities this solicitation requires.
Somewhat Relevant	Present/past performance effort involved some of the scope and magnitude of effort and complexities this solicitation requires.
Not Relevant	Present/past performance effort involved little or none of the scope and magnitude of effort and complexities this solicitation requires.

D.5.3. Quality. The third aspect of the past performance evaluation is to establish the overall quality of the offeror's past performance. The Government determines the quality of the offeror's performance, general trends, and usefulness of the information and incorporate these into the performance confidence assessment.

D.5.4. Performance Confidence Assessment. The past performance confidence assessment rating is based on the offeror's overall record of recency, relevancy, and quality of performance. It will be based on the past performance of the firm or that of its predecessor, if applicable. An entity may not establish past performance based on the past performance of its key personnel apart from that of the entity.

In the case of offerors for which no recent and relevant performance record is available or the offeror's performance report is so sparse that no meaningful confidence assessment rating can be reasonably assigned the offeror may not be evaluated favorably or unfavorably on the factor of past performance. In this case, the offeror's past performance is unknown and assigned a performance confidence rating of 'neutral'.

The SSEB will use Table 4 below to select the most appropriate confidence level for each Offeror. The rationale for the conclusions reached are included in the SSEB report.

TABLE 4 - Performance Confidence Assessments	
Rating	Definition
Substantial Confidence	Based on the offeror's recent/relevant performance record, the Government has a high expectation that the offeror will successfully perform the required effort.
Satisfactory Confidence	Based on the offeror's recent/relevant performance record, the Government has a reasonable expectation that the offeror will successfully perform the required effort.
Neutral Confidence	No recent/relevant performance record is available, or the offeror's performance record is so sparse that no meaningful confidence assessment rating can be reasonably assigned. The Offeror may not be evaluated favorably or unfavorably on the fact of past performance.
Limited Confidence	Based on the offeror's recent/relevant performance record, the Government has a low expectation that the offeror will successfully perform the required effort.
No Confidence	Based on the offeror's recent/relevant performance record, the Government has no expectation that the offeror will be able to successfully perform the required effort.

D.6 FACTOR 5 – SMALL BUSINESS PARTICIPATION (STAGE TWO):

IAW Defense FAR Supplement (DFARS) 215.304(c)(i), the extent to which offeror's identify and commit to small business performance of the contract shall be evaluated. Offerors shall submit a Small Business Participation Plan (SBPP) which specifies the offeror's level and degree of commitment to small business utilization/participation in performance of this requirement. An SBPP is required from all offerors, including companies with comprehensive subcontracting plans. The Government will evaluate the following:

- 1) FAR 52.219-8 Utilization of Small Business Concerns
 - a. Actual prior use of small businesses.
 - b. Use of small businesses in the socioeconomic categories.

- c. Types of work performed by small businesses.
- d. Complexity of the work performed by small businesses.
- e. Reporting of small business performance in the CPARS.
- f. History of prompt payments to small businesses.
- g. In order to comply with the requirements for the Small Business Participation Commitment Document, please be sure you have:
 - a) based your percentages on Total Acquisition Value.
 - b) included detail documentation supporting the minimum quantitative requirement (MQR) you have proposed and a valid reason why MQRs specified by the Government in the solicitation cannot be met or exceeded.

2) FAR 52.219-9 Small Business Subcontracting Plan (only required for Large Businesses)

- a. Performance against subcontracting plan goals.
- b. Compliance with the subcontracting plan in general.
- c. Timely eSRS reporting (FAR 52.219-9 1 (l) & (2)).
- d. Reduced or untimely payments (as defined in 19.701), made to small business subcontractors, determined by the contracting officer to be unjustified. (FAR 42.1502 (g)).

The SSEB will use Table 5 below to assign an adjectival rating for Factor 5 – Small Business Participation Plan.

TABLE 5 – Small Business Ratings		
Color	Rating	Description
Blue	Outstanding	Proposal indicates an exceptional approach and understanding of the small business objectives.
Purple	Good	Proposal indicates a thorough approach and understanding of the small business objectives.
Green	Acceptable	Proposal indicates an adequate approach and understanding of the small business objectives.
Yellow	Marginal	Proposal has not demonstrated an adequate approach and understanding of the small business objectives.
Red	Unacceptable	Proposal does not meet small business objectives.

D7. FACTOR 6 - Cost/Price Factor (STAGE TWO): Adjectival ratings shall not be used for offerors' Cost/Price proposals. For award purposes, the total proposed price for all CLINs will be added together into a total sum (contract value). The Offeror's Cost/Price proposal will be evaluated as follows.

- a. FFP Evaluation. For a price to be fair and reasonable, it must represent a price to the Government that a prudent person would pay in the conduct of competitive business. The Offeror's proposed fixed-price CLINs may be evaluated, using one or more of the techniques described in FAR 15.404-1 in order to determine if they are fair and reasonable.
- b. Overall Cost/Price Proposal Evaluation: The overall Cost/Price proposal will be evaluated for the following:
 - 1) Compliance: The Cost/Price proposal submitted by the Offeror will be evaluated for compliance based upon the proposal submission requirements.
 - 2) Unbalanced Pricing: The Offeror's overall Cost/Price proposal will be evaluated for unbalanced pricing as defined in FAR 15.404-1(g). An offer may be rejected if the contracting officer determines that the lack of balance poses an unacceptable risk to the Government (see FAR 15.404-1(g)(1) through FAR 15.404- 1(g)(3)).
 - 3) Errors: The Offeror's Cost/Price proposal will be reviewed for errors. The Offeror may be given an opportunity to clarify certain aspects of their proposal at the sole discretion of the Contracting Officer.
 - 4) Total Evaluated Price: The Total Evaluated Price consists of summing the Offeror's proposed firm fixed-price (FFP) CLIN prices.

E. DISCUSSIONS

- 1. GENERAL INFORMATION. In accordance with FAR 15.306(d), discussion sessions with each offeror in the competitive range will be held. After discussions take place, all offerors in the competitive range will be allowed a minimum of seven (7) calendar days

to submit Final Proposal Revisions.

2. **DISCUSSION SCHEDULING.** If discussions are conducted, the Contracting Officer will schedule the discussion sessions, and each offeror will be notified of the time and place at least three (3) business days prior to their discussion session. The Contracting Officer will provide additional instructions with the notification. The discussion sessions will take place online via Microsoft Teams.

F. ATTACHMENTS

- Attachment 1 – Company Specialized Experience Form (The space provided may not be sufficient. If this is the case, offerors are encouraged to provide additional information on supplemental pages attached to the collection sheet).
- **Attachment 2 – Letter of Commitment for Key Subcontractor**
- **Attachment 3 – NAVFAC/USACE Past Performance Questionnaire**
- **Attachment 4 – Proposal Data Sheet**
- Attachment 5 – Determination of Responsibility Form

G. Inquiries/Questions: Technical inquiries and questions relating to this solicitation shall be submitted via Bidder Inquiry in ProjNet at (<https://www.projnet.org>). To submit and review inquiry items, prospective offerors will need to use the Bidder Inquiry Key presented below and follow the instructions listed below the key for access. A prospective offeror who submits a comment / question will receive an acknowledgement of their comment/question via email. Another email to the same address will notify the prospective offeror once the reply is available for viewing.

***Please Note: Offerors shall only submit one question per inquiry and all submitted questions must be in English. All inquiries containing multiple questions shall be rejected.

The Solicitation Number is: W51DQV25RA002

The Bidder Inquiry Key is: **4QNTHC-4X9JSW**

G.1. Instructions for first-time ProjNet Bid Inquiry Access:

1. From the ProjNet home page linked above, click on Quick Add on the upper right side of the screen.
2. Identify the Agency. Select agency USACE.
3. Key. Enter the Bidder Inquiry Key listed above.
4. Email. Enter the email address you would like to use for communication.
5. Click Continue. A page will then open saying that a user account was not found and will ask you to create one using the provided form.
6. Enter your First Name, Last Name, Company, City, State, Phone, Email, Secret Question, Secret Answer, and Time Zone. Make sure to remember your Secret Question and Answer as they will be used from this point on to access the ProjNet system.
7. Click Add User. Once this is completed you are now registered within ProjNet and are currently logged into the system.

G.2. Instructions for future ProjNet Bid Inquiry Access:

1. For future access to ProjNet, you will not be provided any type of password. You will utilize your Secret Question and Secret Answer to log in.
2. From the ProjNet home page linked above, click on Quick Add on the upper right side of the screen.
3. Identify the Agency. Select agency USACE.
4. Key. Enter the Bidder Inquiry Key listed above.
5. Email. Enter the email address you used to register previously in ProjNet.
6. Click Continue. A page will then open asking you to enter the answer to your Secret Question.
7. Enter your Secret Answer and click Login. Once this is completed you are now logged into the system.

The Bidder Inquiry System will be unavailable for new inquiries **ten (10) calendar days** before proposal due date in order to ensure adequate time is allotted to form an appropriate response to inquiries and amend the solicitation if necessary.

Offerors are requested to review the specification in its entirety and review the Bidder Inquiry System for answers to questions prior to submission of a new inquiry.

The ProjNet call center operates weekdays from 8AM to 5PM U.S. Central Time Zone (Chicago) or by appointment for OCONUS. The telephone number for the Call Center is 1-833- 389-1097. Email to staff@rcesupport.com.

ATTACHMENT 1 - COMPANY SPECIALIZED EXPERIENCE FORM

Provide the following information to show examples of projects your company or subcontractors constructed within the last ten years indicating experience with projects of similar type and scope. Use one form per project.
NOTE: Use additional pages as necessary to provide the information requested.

1. Type of Project Represented
2. Your Firm's Name
3. Project Name and Contract Number
4. Location of Project and Conditions. Also, provide duration, any unusual coordination requirements, and any innovative ideas that were required during construction.
5. Owner
6. General Scope of Construction Project
7. Describe how this project is relevant to the elements of the solicited project. Use additional pages as necessary to provide this information. A narrative must be provided that explains in detail how each provided demonstrated experience is similar to the work described in the solicitation. This narrative should demonstrate that the offeror clearly has the capability to successfully complete the project. (Relevancy is defined in the DoD Source Selection Guide for collection and use of past performance as "information that has a logical connection with the matter under consideration and applicable time span."). Offerors should be as specific as possible when explaining how a project experience is relevant to this project. Provide information on problems encountered on identified contracts and the corrective action taken.
8. Your Role (Prime, Joint Venture, or Subcontractor, etc.) and Work Your Company Self-Performed:
9. Construction Cost:
10. Extent and Type of Work You Subcontracted Out
11. Dates Construction: Began Completed
12. Your Performance Evaluation by Owner and Awards and Recognitions (if any)
13. Were You Terminated or Assessed Liquidated Damages? (If either is "Yes", attach an Explanation)
14. Owner's Point of Contact for Reference (Name and Company). Also, provide address, office and cell telephone numbers, as well as email address.
15. Any unusual conditions requirements.

ATTACHMENT 2 - LETTER OF COMMITMENT OF KEY SUBCONTRACTOR

(USE SUBCONTRACTOR’S COMPANY LETTERHEAD)

TO: (NAME OF COMPANY TO WHOM COMMITMENT IS MADE)

SUBJECT: Letter of Commitment for Proposed Contract for _____

Dear Sir or Madam:

I hereby make the unequivocal commitment that, in the event of an award of a contract to (Fill in name of Proposer/Offeror), that (insert name of firm) will fulfill the duties of (state role on a project)

Sincerely, (Authorized Subcontractor Official)

Date: _____

Acknowledgement

(Principal for Company to which Commitment is Made)

Date: _____

ATTACHMENT 3

NAVFAC/USACE Past Performance Questionnaire for Rio Puerto Nuevo Flood Control Project, Supplemental Contract 3:
Channel Bottom and Wall Improvements, San Juan, Puerto Rico – **Solicitation W51DQV25RA002**

NAVFAC/USACE PAST PERFORMANCE QUESTIONNAIRE

CONTRACT INFORMATION

1. Contractor Information Firm Name:

Address: Phone Number:

Email

CAGE Code: Unique Entity ID

(UEI):

2. Work Performed as:

Prime Contractor/ Subcontractor/ Joint Venture/Other (Explain) Percent of project work performed:

If subcontractor, who was the prime (Name/Phone #):

3. Contract Information Contract Number:

Delivery/Task Order Number (if applicable):

Contract Type: Firm Fixed Price

Cost Reimbursement Other (Please specify): Contract Title:

Contract Location:

Award Date (mm/dd/yy):

Contract Completion Date (mm/dd/yy):

Actual Completion Date (mm/dd/yy):

Explain Differences:

Original Contract Price (Award Amount):

Final Contract Price (to include all modifications, if applicable): Explain Differences:

4. Project Description:

Complexity of Work: High Med Routine

How is this project relevant to project of submission? (Please provide details such as similar equipment, requirements, conditions, etc.)

5. Client Information

Name: Title:

Phone Number:

6. Describe the client's role in the project:

7. Date Questionnaire was completed (mm/dd/yy):

8. Client's Signature:

YOUR EVALUATION OF THE CONTRACTOR'S PERFORMANCE

1. QUALITY:							
a) Quality of technical data/report preparation efforts	E	VG	S	M	U	N	
b) Ability to meet quality standards specified for technical	E	VG	S	M	U	N	
c) Timeliness/effectiveness of contract problem resolution withoutextensive customer guidance	E	VG	S	M	U	N	
d) Adequacy/effectiveness of quality control program and adherence to contract quality assurance requirements (withoutadverse effect on performance)	E	VG	S	M	U	N	
2. SCHEDULE/TIMELINESS OF PERFORMANCE:							
a) Compliance with contract delivery/completion schedules including any significant intermediate milestones. (If liquidated damages were assessed or the schedule was not met, please addressbelow)	E	VG	S	M	U	N	
b) Rate the contractor's use of available resources to accomplishtasks identified in the contract	E	VG	S	M	U	N	
3. CUSTOMER SATISFACTION:							
a) To what extent were the end users satisfied with the project?	E	VG	S	M	U	N	
b) Contractor was reasonable and cooperative in dealing with yourstaff (including the ability to successfully resolve disagreements/disputes; responsiveness to administrative reports, businesslike and communication)	E	VG	S	M	U	N	
c) To what extent was the contractor cooperative, businesslike, andconcerned with the interests of the customer?	E	VG	S	M	U	N	
d) Overall customer satisfaction	E	VG	S	M	U	N	
4. MANAGEMENT/ PERSONNEL/ LABOR							
a) Effectiveness of on-site management, including management ofsubcontractors, suppliers, materials, and/or labor force?	E	VG	S	M	U	N	
b) Ability to hire, apply, and retain a qualified workforce to thiseffort	E	VG	S	M	U	N	
c) Government Property Control	E	VG	S	M	U	N	
d) Knowledge/expertise demonstrated by contractor personnel	E	VG	S	M	U	N	
e) Utilization of Small Business concerns	E	VG	S	M	U	N	
f) Ability to simultaneously manage multiple projects with multipledisciplines	E	VG	S	M	U	N	
g) Ability to assimilate and incorporate changes in requirementsand/or priority, including planning, execution	E	VG	S	M	U	N	
h) Effectiveness of overall management (including ability toeffectively lead, manage and control the program)	E	VG	S	M	U	N	
5. COST/FINANCIAL MANAGEMENT							
a) Ability to meet the terms and conditions within the contractuallyagreed price(s)?	E	VG	S	M	U	N	
b) Contractor proposed innovative alternative methods/processes that reduced cost, improved	E	VG	S	M	U	N	

c) If this is/was a Government cost type contract, please rate the Contractor's timeliness and accuracy in submitting monthly invoices with appropriate back- up documentation, monthly status reports/budget variance reports, compliance with established budgets and avoidance of significant and/or unexplained variances(under runs or overruns)	E	VG	S	M	U	N
d) Is the Contractor's accounting system adequate for management and tracking of costs? If no, please explain in Remarks section.	Yes					No
e) If this is/was a Government contract, has/was this contract been partially or completely terminated for default or convenience or are there any pending terminations? Indicate if show cause or cure notices were issued, or any default action in comment section below.	Yes					No
f) Have there been any indications that the contractor has had any financial problems? If yes, please explain below.	Yes					No
6. SAFETY/SECURITY						
a) To what extent was the contractor able to maintain an environment of safety, adhere to its approved safety plan, and respond to safety issues? (Includes: following the users rules, regulations, and requirements regarding housekeeping, safety, correction of noted deficiencies, etc.)	E	VG	S	M	U	N
b) Contractor complied with all security requirements for the project and personnel security requirements.	E	VG	S	M	U	N
7. GENERAL						
a) Ability to successfully respond to emergency and/or surge situations (including notifying COR, PM or Contracting Officer in a timely manner regarding urgent contractual issues).	E	VG	S	M	U	N
b) Compliance with contractual terms/provisions (explain if specific issues)	E	VG	S	M	U	N
c) Would you hire or work with this firm again? (If no, please explain below)	Yes					No
d) In summary, provide an overall rating for the work performed by this contractor.	E	VG	S	M	U	N

END OF QUESTIONNAIRE

**ADJECTIVE RATINGS AND DEFINITIONS TO BE USED TO BEST REFLECT THE
EVALUATION OF THE CONTRACTOR'S**

RATING	DEFINITION	NOTE
(E) Exceptional	Performance meets contractual requirements and exceeds many to the Government/Owner's benefit. The contractual performance of the element or sub-element being assessed was accomplished with few minor problems for which corrective actions taken by the contractor was highly effective.	An Exceptional rating is appropriate when the Contractor successfully performed multiple significant events that were of benefit to the Government/Owner. A singular benefit, however, could be of such magnitude that it alone constitutes an Exceptional rating. Also, there should have been NO significant weaknesses identified.
(VG) Very Good	Performance meets contractual requirements and exceeds some to the Government's/Owner's benefit. The contractual performance of the element or sub-element being assessed was accomplished with some minor problems for which corrective actions taken by the contractor were effective.	A Very Good rating is appropriate when the Contractor successfully performed a significant event that was a benefit to the Government/Owner. There should have been no significant weaknesses identified.
(S) Satisfactory	Performance meets minimum contractual requirements. The contractual performance of the element or sub-element contains some minor problems for which corrective actions taken by the contractor appear or were satisfactory.	A Satisfactory rating is appropriate when there were only minor problems, or major problems that the contractor recovered from without impact to the contract. There should have been NO significant weaknesses identified. Per DOD policy, a fundamental principle of assigning ratings is that contractors will not be assessed a rating lower than Satisfactory solely for not performing beyond the requirements of the contract.
(M) Marginal	Performance does not meet some contractual requirements. The contractual performance of the element or sub-element being assessed reflects a serious problem for which the contractor has not yet identified corrective actions. The contractor's proposed actions appear only marginally effective or were not fully implemented.	A Marginal is appropriate when a significant event occurred that the contractor had trouble overcoming which impacted the Government/Owner.
(U) Unsatisfactory	Performance does not meet most contractual requirements and recovery is not likely in a timely manner. The contractual performance of the element or sub-element contains serious problem(s) for which the contractor's corrective actions appear or were ineffective.	An Unsatisfactory rating is appropriate when multiple significant events occurred that the contractor had trouble overcoming and which impacted the Government/Owner. A singular problem, however, could be of such serious magnitude that it alone constitutes an unsatisfactory rating.
(N) Not Applicable	No information or did not apply to your contract	Rating will be neither positive nor negative.

ATTACHMENT 4
PROPOSAL DATA SHEET

SOLICITATION: W51DQV25A002

OFFEROR CONTACT INFORMATION:

Name of Offeror:

Address:

Telephone:

E-mail:

UEI number:

(If offeror is a Joint Venture, provide UEI number for the Joint Venture)

Provide name and UEI numbers for any firm identified as a major subcontractor for which demonstrated experience has been submitted under Factor 2.

Major Subcontractor 1: UEI number:

Major Subcontractor 2: UEI number:

Major Subcontractor 3: UEI number:

AUTHORIZED NEGOTIATORS (see FAR 52.215-11)

The following person(s) are authorized to negotiate on the offeror's behalf with the Government in connection with this procurement.

Name of Person Authorized to Negotiate:

Negotiator's Address:

Negotiator's Telephone:

Negotiator's E-mail:

ATTACHMENT 5
DETERMINATION OF RESPONSIBILITY

Prospective Contractor: _____

Solicitation W51DQV25A002

Project Title: Rio Puerto Nuevo Flood Control Project, Supplemental Contract 3: Channel Bottom and Wall Improvements, San Juan, Puerto Rico

The following information is provided to assist the Contracting Officer in determining whether or not the proposed contractor meets the general standards of responsibility enumerated at FAR 9.104-1 and DFARS 209.104-1.FAR 9.104-1 General Standards. To be determined responsible, a prospective contractor must:

(a) HAVE ADEQUATE FINANCIAL RESOURCES TO PERFORM THE CONTRACT, OR THE ABILITY TO OBTAIN THEM (SEE 9.104-3(b))

Financial Statements

Provide a copy of your latest financial statements (Income Statement and Balance Sheet). If the financial statements are older than one year, also furnish a statement as to the current financial status of the company.

Banking References

Provide signed reference on letterhead from financial institution supporting each banking reference.

1st bank's Name: _____
Telephone #: _____
Address: _____
Person: _____
Title: _____
Length of Time with Bank: _____
Credit Rating: _____
Number/Type of Accounts: _____
Amount in Each Account (# of figures): _____
Credit Line: _____ Secured/Unsecured
Outstanding Loans: _____ Secured/Unsecured

2nd bank's Name: _____
Telephone #: _____
Address: _____
Person: _____
Title: _____
Length of Time with Bank: _____
Credit Rating: _____
Number/Type of Accounts: _____
Amount in Each Account (# of figures): _____
Credit Line: _____ Secured/Unsecured
Outstanding Loans: _____ Secured/Unsecured

(b) HAVE A SATISFACTORY PERFORMANCE RECORD (SEE 9.104-3(c) and Subpart 42.15)

Performance References

1st Company: _____
Telephone #: _____
Address: _____
Name: _____
Title: _____
Location and Type of work: _____
Completed on time? _____
On budget? _____

Quality of work? _____
Management cooperative? _____
Any problems encountered: _____

2nd company: _____
Telephone #: _____
Address: _____
Name: _____
Title: _____
Location and type of work: _____
Completed on time? _____
On budget? _____
Quality of work? _____
Management cooperative? _____
Any problems encountered: _____

(c) HAVE A SATISFACTORY RECORD OF INTEGRITY AND BUSINESS ETHICS

Trade References

1st company: _____
Telephone #: _____
Address: _____
Name: _____
Title: _____
Length of time with company: _____
Credit line: _____
Average monthly business: _____
High credit: _____
Payment history: _____
Takes discounts: _____

2nd company: _____
Telephone #: _____
Address: _____
Name: _____
Title: _____
Length of time with company: _____
Credit line: _____
Average monthly business: _____
High credit: _____
Payment history: _____
Takes discounts: _____

(d) HAVE THE NECESSARY ORGANIZATION, EXPERIENCE, ACCOUNTING AND OPERATIONAL CONTROLS, AND TECHNICAL SKILLS, OR THE ABILITY TO OBTAIN THEM (INCLUDING, AS APPROPRIATE, SUCH ELEMENTS AS PRODUCTION CONTROL PROCEDURES, PROPERTY CONTROL SYSTEMS, QUALITY ASSURANCE MEASURES, AND SAFETY PROGRAMS APPLICABLE TO MATERIALS TO BE PRODUCED OR SERVICES TO BE PERFORMED BY THE PROSPECTIVE CONTRACTOR AND SUBCONTRACTORS) (SEE 9.104-3(b))

*Workman's Compensation Experience Modification Rate (EMR):

2020: _____ 2021: _____ 2022: _____

NOTE: If EMR is greater than 1, an explanation as to why the EMR exceeds the currently established satisfactory threshold of 1.0 must be provided. Additionally, provide an explanation as to what your firm has been doing or are currently doing, in the realms of safety programs, training and policy enforcement to reduce your risk to acceptable levels.

Section 00 45 00 - Representations and Certifications

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.204-24	Representation Regarding Certain Telecommunications and Video Surveillance Services or Equipment.	Nov 2021		
52.209-7	Information Regarding Responsibility Matters.	Oct 2018		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.203-7005	Representation Relating to Compensation of Former DoD Officials.	Sep 2022		
252.204-7008	Compliance with Safeguarding Covered Defense Information Controls.	Oct 2016		
252.204-7017	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services-Representation.	May 2021		
252.225-7055	Representation Regarding Business Operations with the Maduro Regime.	May 2022		

DFARS Clauses Incorporated by Full Text

252.204-7007 Alternate A, Annual Representations and Certifications. (Oct 2024) Alternate A (Oct 2024)

ALTERNATE A, ANNUAL REPRESENTATIONS AND CERTIFICATIONS (OCT 2024)

Substitute the following paragraphs (b), (d), and (e) for paragraphs (b) and (d) of the provision at FAR 52.204-8:

- (b)(1) If the provision at 52.204-7, System for Award Management, is included in this solicitation, paragraph (e) of this provision applies.
- (2) If the provision at 52.204-7, System for Award Management, is not included in this solicitation, and the Offeror has an active registration in the System for Award Management (SAM), the Offeror may choose to use paragraph (e) of this provision instead of completing the corresponding individual representations and certifications in the solicitation. The Offeror shall indicate which option applies by checking one of the following boxes:
- (i) Paragraph (e) applies.
- (ii) Paragraph (e) does not apply and the Offeror has completed the individual representations and certifications in the solicitation.
- (d)(1) The following representations or certifications in the SAM database are applicable to this solicitation as indicated:
- (i) 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation. Applies to all solicitations.
- (ii) 252.216-7008, Economic Price Adjustment-Wage Rates or Material Prices Controlled by a Foreign Government. Applies to solicitations for fixed-price supply and service contracts when the contract is to be performed wholly or in part in a foreign country, and a foreign government controls wage rates or material prices and may during contract performance impose a mandatory change in wages or prices of materials.
- (iii) 252.225-7042, Authorization to Perform. Applies to all solicitations when performance will be wholly or in part in a foreign country.
- (iv) 252.225-7049, Prohibition on Acquisition of Certain Foreign Commercial Satellite Services-Representations. Applies to solicitations for the acquisition of commercial satellite services.
- (v) 252.225-7050, Disclosure of Ownership or Control by the Government of a Country that is a State Sponsor of Terrorism. Applies to all solicitations expected to result in contracts of \$150,000 or more.
- (vi) 252.229-7012, Tax Exemptions (Italy)-Representation. Applies to solicitations and contracts when contract performance will be in Italy.
- (vii) 252.229-7013, Tax Exemptions (Spain)-Representation. Applies to solicitations and contracts when contract performance will be in Spain.

(2) The following representations or certifications in SAM are applicable to this solicitation as indicated by the Contracting Officer:
[Contracting Officer check as appropriate.]

XX (i) 252.209-7002, Disclosure of Ownership or Control by a Foreign Government.

(ii) 252.225-7000, Buy American-Balance of Payments Program Certificate.

(iii) 252.225-7020, Trade Agreements Certificate.

Use with Alternate I.

~~XX~~ (iv) 252.225-7031, Secondary Arab Boycott of Israel.

(v) 252.225-7035, Buy American-Free Trade Agreements-Balance of Payments Program Certificate.

Use with Alternate I.

Use with Alternate II.

Use with Alternate III.

Use with Alternate IV.

Use with Alternate V.

(vi) 252.226-7002, Representation for Demonstration Project for Contractors Employing Persons with Disabilities.

(vii) 252.232-7015, Performance-Based Payments-Representation.

(e) The Offeror has completed the annual representations and certifications electronically via the SAM website at <https://www.sam.gov>. After reviewing the SAM database information, the Offeror verifies by submission of the offer that the representations and certifications currently posted electronically that apply to this solicitation as indicated in FAR 52.204-8(c) and paragraph (d) of this provision have been entered or updated within the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard applicable to the NAICS code referenced for this solicitation), as of the date of this offer, and are incorporated in this offer by reference (see FAR 4.1201); except for the changes identified below [Offeror to insert changes, identifying change by provision number, title, date]. These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

FAR/DFARS Provision #	Title	Date	Change
—	—	—	—

Any changes provided by the Offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications located in the SAM database.

(End of provision)

Section 00 72 00 - Conditions of the Contract

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.201-1	Definitions.	June 2020		
52.203-3	Gratuities	Apr 1984		
52.203-5	Covenant Against Contingent Fees.	May 2014		
52.203-6	Restrictions on Subcontractor Sales to the Government.	Jun 2020		
52.203-7	Anti-Kickback Procedures.	Jun 2020		
52.203-8	Cancellation, Rescission, and Recovery of Funds for Illegal or Improper Activity.	May 2014		
52.203-10	Price or Fee Adjustment for Illegal or Improper Activity.	May 2014		
52.203-12	Limitation on Payments to Influence Certain Federal Transactions.	Jun 2020		
52.203-13	Contractor Code of Business Ethics and Conduct.	Nov 2021		
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements.	Jan 2017		
52.204-9	Personal Identity Verification of Contractor Personnel.	Jan 2011		
52.204-10	Reporting Executive Compensation and First-Tier Subcontract Awards.	Jun 2020		
52.204-13	System for Award Management Maintenance.	Oct 2018		
52.204-14	Service Contract Reporting Requirements.	Oct 2016		
52.204-18	Commercial and Government Entity Code Maintenance.	Aug 2020		
52.204-19	Incorporation by Reference of Representations and Certifications.	Dec 2014		
52.204-21	Basic Safeguarding of Covered Contractor Information Systems.	Nov 2021		
52.204-23	Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities.	Dec 2023		
52.204-25	Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.	Nov 2021		
52.204-26	Covered Telecommunications Equipment or Services-Representation.	Oct 2020		
52.204-27	Prohibition on a ByteDance Covered Application.	Jun 2023		
52.204-29	Federal Acquisition Supply Chain Security Act Orders-Representation and Disclosures.	Dec 2023		
52.204-30	Federal Acquisition Supply Chain Security Act Orders-Prohibition.	Dec 2023		
52.209-6	Protecting the Government's Interest When Subcontracting with Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded	Jan 2025		
52.209-9	Updates of Publicly Available Information Regarding Responsibility Matters.	Oct 2018		
52.209-10	Prohibition on Contracting with Inverted Domestic Corporations.	Nov 2015		
52.209-12	Certification Regarding Tax Matters.	Oct 2020		
52.209-13	Violation of Arms Control Treaties or Agreements-Certification.	Nov 2021		
52.210-1	Market Research.	Nov 2021		
52.211-18	Variation in Estimated Quantity.	Apr 1984		
52.212-1	Instructions to Offerors-Commercial Products and Commercial Services.	Sep 2023		
52.212-4	Contract Terms and Conditions-Commercial Products and Commercial Services	Nov 2023		
52.214-34	Submission of Offers in the English Language.	Apr 1991		
52.214-35	Submission of Offers in U.S. Currency.	Apr 1991		
52.215-1	Instructions to Offerors-Competitive Acquisition. (Alternate I)	Nov 2021	Alternate I	Oct 1997
52.215-2	Audit and Records-Negotiation.	Jun 2020		
52.215-8	Order of Precedence-Uniform Contract Format.	Oct 1997		
52.216-7	Allowable Cost and Payment. (Alternate I)	Aug 2018	Alternate I	Feb 1997
52.219-9	Small Business Subcontracting Plan.	Jan 2025		
52.219-16	Liquidated Damages-Subcontracting Plan.	Sep 2021		
52.222-3	Convict Labor.	Jun 2003		
52.222-4	Contract Work Hours and Safety Standards -Overtime Compensation.	May 2018		
52.222-36	Equal Opportunity for Workers with Disabilities.	Jun 2020		
52.222-37	Employment Reports on Veterans.	Jun 2020		
52.222-50	Combating Trafficking in Persons.	Nov 2021		
52.222-55	Minimum Wages for Contractor Workers Under Executive Order 14025	Jun 2022		
52.225-12	Notice of Buy American Requirement-Construction Materials Under Trade Agreements.	May 2014		
52.225-13	Restrictions on Certain Foreign Purchases.	Feb 2021		
52.225-25	Prohibition on Contracting With Entities Engaging in Certain Activities or Transactions Relating to Iran-Representation and Certifications.	Jun 2020		
52.226-7	Drug-Free Workplace.	May 2024		
52.226-8	Encouraging Contractor Policies to Ban Text Messaging While Driving.	May 2024		
52.227-4	Patent Indemnity-Construction Contracts.	Dec 2007		
52.228-2	Additional Bond Security.	Oct 1997		
52.228-3	Workers' Compensation Insurance (Defense Base Act).	Jul 2014		
52.228-11	Individual Surety-Pledge of Assets.	Feb 2021		
52.228-12	Prospective Subcontractor Requests for Bonds.	Dec 2022		
52.228-14	Irrevocable Letter of Credit.	Nov 2014		
52.228-17	Individual Surety-Pledge of Assets (Bid Guarantee).	Feb 2021		
52.229-3	Federal, State, and Local Taxes.	Feb 2013		
52.232-13	Notice of Progress Payments.	Apr 1984		

52.232-17	Interest.	May 2014		
52.232-23	Assignment of Claims.	May 2014		
52.232-33	Payment by Electronic Funds Transfer-System for Award Management.	Oct 2018		
52.232-39	Unenforceability of Unauthorized Obligations.	Jun 2013		
52.232-40	Providing Accelerated Payments to Small Business Subcontractors.	Mar 2023		
52.233-1	Disputes.	May 2014		
52.233-3	Protest after Award.	Aug 1996		
52.233-4	Applicable Law for Breach of Contract Claim.	Oct 2004		
52.236-2	Differing Site Conditions.	Apr 1984		
52.236-3	Site Investigation and Conditions Affecting the Work.	Apr 1984		
52.236-5	Material and Workmanship.	Apr 1984		
52.236-6	Superintendence by the Contractor.	Apr 1984		
52.236-7	Permits and Responsibilities.	Nov 1991		
52.236-8	Other Contracts.	Apr 1984		
52.236-9	Protection of Existing Vegetation, Structures, Equipment, Utilities, and Improvements.	Apr 1984		
52.236-10	Operations and Storage Areas.	Apr 1984		
52.236-11	Use and Possession Prior to Completion.	Apr 1984		
52.236-12	Cleaning Up.	Apr 1984		
52.236-13	Accident Prevention.	Nov 1991		
52.236-13	Accident Prevention. (Alternate I)	Nov 1991	Alternate I	Nov 1991
52.236-14	Availability and Use of Utility Services.	Apr 1984		
52.236-15	Schedules for Construction Contracts.	Apr 1984		
52.236-16	Quantity Surveys.	Apr 1984		
52.236-16	Quantity Surveys. (Alternate I)	Apr 1984	Alternate I	Apr 1984
52.236-17	Layout of Work.	Apr 1984		
52.236-21	Specifications and Drawings for Construction.	Feb 1997		
52.236-28	Preparation of Proposals-Construction.	Oct 1997		
52.242-5	Payments to Small Business Subcontractors.	Jan 2017		
52.242-13	Bankruptcy.	Jul 1995		
52.242-14	Suspension of Work.	Apr 1984		
52.243-4	Changes.	Jun 2007		
52.244-6	Subcontracts for Commercial Products and Commercial Services.	Jan 2025		
52.246-12	Inspection of Construction.	Aug 1996		
52.246-13	Inspection-Dismantling, Demolition, or Removal of Improvements.	Aug 1996		
52.248-3	Value Engineering-Construction. (Alternate I)	Oct 2020	Alternate I	Apr 1984
52.249-2	Termination for Convenience of the Government (Fixed-Price). (Alternate I)	Apr 2012	Alternate I	Sep 1996
52.249-3	Termination for Convenience of the Government (Dismantling, Demolition, or Removal of Improvements).	Apr 2012		
52.249-10	Default (Fixed-Price Construction).	Apr 1984		
52.249-10	Default (Fixed-Price Construction). (Alternate I)	Apr 1984	Alternate I	Apr 1984
52.253-1	Computer Generated Forms.	Jan 1991		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.201-7000	Contracting Officer's Representative.	Dec 1991		
252.203-7000	Requirements Relating to Compensation of Former DoD Officials.	Sep 2011		
252.203-7001	Prohibition on Persons Convicted of Fraud or Other Defense-Contract-Related Felonies.	Jan 2023		
252.203-7002	Requirement to Inform Employees of Whistleblower Rights.	Dec 2022		
252.203-7003	Agency Office of the Inspector General.	Aug 2019		
252.203-7004	Display of Hotline Posters.	Jan 2023		
252.204-7000	Disclosure of Information.	Oct 2016		
252.204-7003	Control of Government Personnel Work Product.	Apr 1992		
252.204-7004	Antiterrorism Awareness Training for Contractors.	Jan 2023		
252.204-7012	Safeguarding Covered Defense Information and Cyber Incident Reporting. (DEVIATION 2024-O0013 REVISION 1)	May 2024	Deviation 2024-O0013	May 2024
252.204-7015	Notice of Authorized Disclosure of Information for Litigation Support.	Jan 2023		
252.204-7016	Covered Defense Telecommunications Equipment or Services-Representation.	Dec 2019		
252.204-7018	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.	Jan 2023		
252.204-7020	NIST SP 800-171 DoD Assessment Requirements.	Nov 2023		
252.204-7024	Notice on the Use of the Supplier Performance Risk System.	Mar 2023		
252.205-7000	Provision of Information to Cooperative Agreement Holders.	Oct 2024		
252.209-7004	Subcontracting with Firms that are Owned or Controlled by the Government of a Country that is a State Sponsor of Terrorism.	May 2019		
252.215-7013	Supplies and Services Provided by Nontraditional Defense Contractors.	Jan 2023		
252.215-7016	Notification to Offerors-Postaward Debriefings.	Dec 2022		
252.219-7003	Small Business Subcontracting Plan (DoD Contracts).	Dec 2019		

252.222-7006	Restrictions on the Use of Mandatory Arbitration Agreements.	Jan 2023
252.223-7008	Prohibition of Hexavalent Chromium.	Jan 2023
252.225-7001	Buy American and Balance of Payments Program.	Feb 2024
252.225-7012	Preference for Certain Domestic Commodities.	Apr 2022
252.225-7016	Restriction on Acquisition of Ball and Roller Bearings.	Jan 2023
252.225-7048	Export-Controlled Items.	Jun 2013
252.225-7056	Prohibition Regarding Business Operations with the Maduro Regime.	Jan 2023
252.225-7057	Preaward Disclosure of Employment of Individuals Who Work in the People's Republic of China.	Aug 2022
252.225-7058	Postaward Disclosure of Employment of Individuals Who Work in the People's Republic of China.	Jan 2023
252.225-7059	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region-Representation.	Jun 2023
252.225-7060	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region.	Jun 2023
252.226-7001	Utilization of Indian Organizations, Indian-Owned Economic Enterprises, and Native Hawaiian Small Business Concerns.	Jan 2023
252.232-7003	Electronic Submission of Payment Requests and Receiving Reports.	Dec 2018
252.232-7004	DoD Progress Payment Rates.	Oct 2014
252.232-7010	Levies on Contract Payments.	Dec 2006
252.232-7016	Notice of Progress Payments or Performance-Based Payments.	Apr 2020
252.236-7000	Modification Proposals--Price Breakdown.	Dec 1991
252.236-7002	Obstruction of Navigable Waterways.	Dec 1991
252.236-7008	Contract Prices--Bidding Schedules.	Dec 1991
252.242-7004	Material Management and Accounting System.	Jan 2025
252.242-7006	Accounting System Administration.	Jan 2025
252.243-7001	Pricing of Contract Modifications.	Dec 1991
252.243-7002	Requests for Equitable Adjustment.	Dec 2022
252.244-7000	Subcontracts for Commercial Products or Commercial Services.	Nov 2023
252.247-7023	Transportation of Supplies by Sea.	Oct 2024

FAR Clauses Incorporated by Full Text

52.204-2 Security Requirements.

(Mar 2021)

As prescribed in 4.404(a), insert the following clause:

Security Requirements (Mar 2021)

(a) This clause applies to the extent that this contract involves access to information classified "Confidential," "Secret," or "Top Secret."

(b) The Contractor shall comply with-

(1) The Security Agreement DD Form 441), including the National Industrial Security Program Operating Manual (32 CFR part 117); and

(2) Any revisions to that manual, notice of which has been furnished to the Contractor.

(c) If, subsequent to the date of this contract, the security classification or security requirements under this contract are changed by the Government and if the changes cause an increase or decrease in security costs or otherwise affect any other term or condition of this contract, the contract shall be subject to an equitable adjustment as if the changes were directed under the Changes clause of this contract.

(d) The Contractor agrees to insert terms that conform substantially to the language of this clause, including this paragraph (d) but excluding any reference to the Changes clause of this contract, in all subcontracts under this contract that involve access to classified information.

(End of clause)

52.204-8 Annual Representations and Certifications. (DEVIATION 2025-O0003 and 2025-O0004)

(Jan 2025)

Deviation 2025-O0004 (Mar 2025)

Annual Representations and Certifications (MAR 2025)(DEVIATION 2025-O0003 and 2025-O0004)

(a)

(1) The North American Industry Classification System (NAICS) code for this acquisition is 237990.

(2) The small business size standard is \$45,000,000.

(3) The small business size standard for a concern that submits an offer, other than on a construction or service acquisition, but proposes to furnish an end item that it did not itself manufacture, process, or produce is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519 if the acquisition-

(i) Is set aside for small business and has a value above the simplified acquisition threshold;

(ii) Uses the HUBZone price evaluation preference regardless of dollar value, unless the offeror waives the price evaluation preference; or

(iii) Is an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(b)

(1) If the provision at 52.204-7, System for Award Management, is included in this solicitation, paragraph (d) of this provision applies.

(2) If the provision at 52.204-7, System for Award Management, is not included in this solicitation, and the Offeror has an active registration in the System for Award Management (SAM), the Offeror may choose to use paragraph (d) of this provision instead of completing the corresponding individual representations and certifications in the solicitation. The Offeror shall indicate which option applies by checking one of the following boxes:

(i) Paragraph (d) applies.

(ii) Paragraph (d) does not apply and the offeror has completed the individual representations and certifications in the solicitation.

(c)

(1) The following representations or certifications in SAM are applicable to this solicitation as indicated:

(i) 52.203-2, Certificate of Independent Price Determination. This provision applies to solicitations when a firm-fixed-price contract or fixed-price contract with economic price adjustment is contemplated, unless-

(A) The acquisition is to be made under the simplified acquisition procedures in part 13;

(B) The solicitation is a request for technical proposals under two-step sealed bidding procedures; or

(C) The solicitation is for utility services for which rates are set by law or regulation.

(ii) 52.203-11, Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions. This provision applies to solicitations expected to exceed \$150,000.

(iii) 52.203-18, Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation. This provision applies to all solicitations.

(iv) 52.204-3, Taxpayer Identification. This provision applies to solicitations that do not include the provision at 52.204-7, System for Award Management.

(v) 52.204-5, Women-Owned Business (Other Than Small Business). This provision applies to solicitations that-

(A) Are not set aside for small business concerns;

(B) Exceed the simplified acquisition threshold; and

(C) Are for contracts that will be performed in the United States or its outlying areas.

(vi) 52.204-26, Covered Telecommunications Equipment or Services-Representation. This provision applies to all solicitations.

(vii) 52.209-2, Prohibition on Contracting with Inverted Domestic Corporations-Representation.

(viii) 52.209-5, Certification Regarding Responsibility Matters. This provision applies to solicitations where the contract value is expected to exceed the simplified acquisition threshold.

(ix) 52.209-11, Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law. This provision applies to all solicitations.

(x) 52.214-14, Place of Performance-Sealed Bidding. This provision applies to invitations for bids except those in which the place of performance is specified by the Government.

(xi) 52.215-6, Place of Performance. This provision applies to solicitations unless the place of performance is specified by the Government.

(xii) 52.219-1, Small Business Program Representations (Basic, Alternates I, and II). This provision applies to solicitations when the contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied part 19 in accordance with 19.000(b)(1)(ii).

(A) The basic provision applies when the solicitations are issued by other than DoD, NASA, and the Coast Guard.

(B) The provision with its Alternate I applies to solicitations issued by DoD, NASA, or the Coast Guard.

(C) The provision with its Alternate II applies to solicitations that will result in a multiple-award contract with more than one NAICS code assigned.

(xiii) 52.219-2, Equal Low Bids. This provision applies to solicitations when contracting by sealed bidding and the contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied part 19 in accordance with 19.000(b)(1)(ii).

(xiv) [Reserved]

(xv) [Reserved]

(xvi) 52.222-38, Compliance with Veterans' Employment Reporting Requirements. This provision applies to solicitations when it is anticipated the contract award will exceed the simplified acquisition threshold and the contract is not for acquisition of commercial products or commercial services.

(xvii) 52.223-1, Biobased Product Certification. This provision applies to solicitations that require the delivery or specify the use of biobased products in USDA-designated product categories; or include the clause at 52.223-2, Reporting of Biobased Products Under Service and Construction Contracts.

(xviii) 52.223-4, Recovered Material Certification. This provision applies to solicitations that are for, or specify the use of, EPA-designated items.

(xix) [Reserved]

(xx) 52.225-2, Buy American Certificate. This provision applies to solicitations containing the clause at 52.225-1.

(xxi) 52.225-4, Buy American-Free Trade Agreements-Israeli Trade Act Certificate. (Basic, Alternates II and III.) This provision applies to solicitations containing the clause at 52.225-3.

(A) If the acquisition value is less than \$50,000, the basic provision applies.

(B) If the acquisition value is \$50,000 or more but is less than \$100,000, the provision with its Alternate II applies.

(C) If the acquisition value is \$100,000 or more but is less than \$102,280, the provision with its Alternate III applies.

(xxii) 52.225-6, Trade Agreements Certificate. This provision applies to solicitations containing the clause at 52.225-5.

(xxiii) 52.225-20, Prohibition on Conducting Restricted Business Operations in Sudan-Certification. This provision applies to all solicitations.

(xxiv) 52.225-25, Prohibition on Contracting with Entities Engaging in Certain Activities or Transactions Relating to Iran-Representation and Certifications. This provision applies to all solicitations.

(xxv) 52.226-2, Historically Black College or University and Minority Institution Representation. This provision applies to solicitations for research, studies, supplies, or services of the type normally acquired from higher educational institutions.

(2) The following representations or certifications are applicable as indicated by the Contracting Officer:

[Contracting Officer check as appropriate.]

XX (i) 52.204-17, Ownership or Control of Offeror.

(ii) 52.204-20, Predecessor of Offeror.

(iii) 52.222-18, Certification Regarding Knowledge of Child Labor for Listed End Products.

(iv) 52.222-48, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment- Certification.

(v) 52.222-52, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Certification.

(vi) 52.227-6, Royalty Information.

(A) Basic.

(B) Alternate I.

(vii) 52.227-15, Representation of Limited Rights Data and Restricted Computer Software.

(d) The offeror has completed the annual representations and certifications electronically in SAM website accessed through <https://www.sam.gov>. After reviewing the SAM information, the offeror verifies by submission of the offer that the representations and certifications currently posted electronically that apply to this solicitation as indicated in paragraph (c) of this provision have been entered or updated within the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard applicable to the NAICS code referenced for this solicitation), as of the date of this offer and are incorporated in this offer by reference (see FAR 4.1201); except for the changes identified below [*offeror to insert changes, identifying change by clause number, title, date*]. These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

FAR Clause #	Title	Date	Change

Any changes provided by the offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications posted on SAM.

(End of provision)

52.209-11 Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law. (Feb 2016)

Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law (Feb 2016)

(a) As required by sections 744 and 745 of Division E of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235), and similar provisions, if contained in subsequent appropriations acts, the Government will not enter into a contract with any corporation that-

(1) Has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability, where the awarding agency is aware of the unpaid tax liability, unless an agency has considered suspension or debarment of the corporation and made a determination that suspension or debarment is not necessary to protect the interests of the Government; or

(2) Was convicted of a felony criminal violation under any Federal law within the preceding 24 months, where the awarding agency is aware of the conviction, unless an agency has considered suspension or debarment of the corporation and made a determination that this action is not necessary to protect the interests of the Government.

(b) The Offeror represents that-

(1) It is [] is not [] a corporation that has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability; and

(2) It is [] is not [] a corporation that was convicted of a felony criminal violation under a Federal law within the preceding 24 months.

(End of provision)

52.211-10 Commencement, Prosecution, and Completion of Work. (Apr 1984)

Commencement, Prosecution, and Completion of Work (Apr 1984)

The Contractor shall be required to (a) commence work under this contract within **ten (10)** calendar days after the date the Contractor receives the notice to proceed, (b) prosecute the work diligently, and (c) complete the entire work ready for use not later than **2,190 days after Notice to Proceed**. The time stated for completion shall include final cleanup of the premises.

(End of clause)

52.211-12 Liquidated Damages-Construction. (Sep 2000)

(a) If the Contractor fails to complete the work within the time specified in the contract, the Contractor shall pay liquidated damages to the Government in the amount of **\$37,500.00** for each calendar day of delay until the work is completed or accepted.

(b) If the Government terminates the Contractor's right to proceed, liquidated damages will continue to accrue until the work is completed. These liquidated damages are in addition to excess costs of repurchase under the Termination clause.

(End of clause)

52.212-3 Offeror Representations and Certifications-Commercial Products and Commercial Services. (DEVIATION 2025-O0003 and 2025-O0004) (May 2024) Deviation 2025-O0004 (Mar 2025)

Offeror Representations and Certifications-Commercial Products and Commercial Services (MAR 2025) (DEVIATION 2025-O0003 and 2025-O0004)

(a) Definitions. As used in this provision-

Covered telecommunications equipment or services has the meaning provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

Economically disadvantaged women-owned small business (EDWOSB) concern means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States and who are economically disadvantaged in accordance with 13 CFR part 127, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300. It automatically qualifies as a women-owned small business eligible under the WOSB Program.

Forced or indentured child labor means all work or service-

(1) Exacted from any person under the age of 18 under the menace of any penalty for its nonperformance and for which the worker does not offer himself voluntarily; or

(2) Performed by any person under the age of 18 pursuant to a contract the enforcement of which can be accomplished by process or penalties.

Highest-level owner means the entity that owns or controls an immediate owner of the offeror, or that owns or controls one or more entities that control an immediate owner of the offeror. No entity owns or exercises control of the highest level owner.

Immediate owner means an entity, other than the offeror, that has direct control of the offeror. Indicators of control include, but are not limited to, one or more of the following: ownership or interlocking management, identity of interests among family members, shared facilities and equipment, and the common use of employees.

Inverted domestic corporation, means a foreign incorporated entity that meets the definition of an inverted domestic corporation under 6 U.S.C. 395 (b), applied in accordance with the rules and definitions of 6 U.S.C. 395(c).

Manufactured end product means any end product in product and service codes (PSCs) 1000-9999, except-

- (1) PSC 5510, Lumber and Related Basic Wood Materials;
- (2) Product or Service Group (PSG) 87, Agricultural Supplies;
- (3) PSG 88, Live Animals;
- (4) PSG 89, Subsistence;
- (5) PSC 9410, Crude Grades of Plant Materials;
- (6) PSC 9430, Miscellaneous Crude Animal Products, Inedible;
- (7) PSC 9440, Miscellaneous Crude Agricultural and Forestry Products;
- (8) PSC 9610, Ores;
- (9) PSC 9620, Minerals, Natural and Synthetic; and
- (10) PSC 9630, Additive Metal Materials.

Place of manufacture means the place where an end product is assembled out of components, or otherwise made or processed from raw materials into the finished product that is to be provided to the Government. If a product is disassembled and reassembled, the place of reassembly is not the place of manufacture.

Predecessor means an entity that is replaced by a successor and includes any predecessors of the predecessor.

Reasonable inquiry has the meaning provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

Restricted business operations means business operations in Sudan that include power production activities, mineral extraction activities, oil-related activities, or the production of military equipment, as those terms are defined in the Sudan Accountability and Divestment Act of 2007 (Pub. L. 110-174). Restricted business operations do not include business operations that the person (as that term is defined in Section 2 of the Sudan Accountability and Divestment Act of 2007) conducting the business can demonstrate-

- (1) Are conducted under contract directly and exclusively with the regional government of southern Sudan;
- (2) Are conducted pursuant to specific authorization from the Office of Foreign Assets Control in the Department of the Treasury, or are expressly exempted under Federal law from the requirement to be conducted under such authorization;
- (3) Consist of providing goods or services to marginalized populations of Sudan;
- (4) Consist of providing goods or services to an internationally recognized peacekeeping force or humanitarian organization;
- (5) Consist of providing goods or services that are used only to promote health or education; or
- (6) Have been voluntarily suspended."Sensitive technology"-

Sensitive technology-

- (1) Means hardware, software, telecommunications equipment, or any other technology that is to be used specifically-
 - (i) To restrict the free flow of unbiased information in Iran; or
 - (ii) To disrupt, monitor, or otherwise restrict speech of the people of Iran; and
- (2) Does not include information or informational materials the export of which the President does not have the authority to regulate or prohibit pursuant to section 203(b)(3) of the International Emergency Economic Powers Act (50 U.S.C. 1702(b)(3)).

Service-disabled veteran-owned small business (SDVOSB) concern means a small business concern-

- (1)
 - (i) Not less than 51 percent of which is owned and controlled by one or more service-disabled veterans or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more service-disabled veterans; and
 - (ii) The management and daily business operations of which are controlled by one or more service-disabled veterans or, in the case of a service-disabled veteran with permanent and severe disability, the spouse or permanent caregiver of such veteran; or
- (2) A small business concern eligible under the SDVOSB Program in accordance with 13 CFR part 128 (see subpart 19.14).
- (3) Service-disabled veteran, as used in this definition, means a veteran as defined in 38 U.S.C. 101(2), with a disability that is service connected, as defined in 38 U.S.C. 101(16), and who is registered in the Beneficiary Identification and Records Locator Subsystem, or successor system that is maintained by the Department of Veterans Affairs' Veterans Benefits Administration, as a service-disabled veteran.

Service-disabled veteran-owned small business (SDVOSB) concern eligible under the SDVOSB Program means an SDVOSB concern that-

- (1) Effective January 1, 2024, is designated in the System for Award Management (SAM) as certified by the Small Business Administration (SBA) in accordance with 13 CFR 128.300; or
- (2) Has represented that it is an SDVOSB concern in SAM and submitted a complete application for certification to SBA on or before December 31, 2023.

Service-disabled veteran-owned small business (SDVOSB) Program means a program that authorizes contracting officers to limit competition, including award on a sole-source basis, to SDVOSB concerns eligible under the SDVOSB Program.

Small business concern-

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and size standards in this solicitation.

(2) Affiliates, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

Small disadvantaged business concern, consistent with 13 CFR 124.1001, means a small business concern under the size standard applicable to the acquisition, that-

(1) Is at least 51 percent unconditionally and directly owned (as defined at 13 CFR 124.105) by-

(i) One or more socially disadvantaged (as defined at 13 CFR 124.103) and economically disadvantaged (as defined at 13 CFR 124.104) individuals who are citizens of the United States; and

(ii) Each individual claiming economic disadvantage has a net worth not exceeding the threshold at 13 CFR 124.104(c)(2) after taking into account the applicable exclusions set forth at 13 CFR 124.104(c)(2); and

(2) The management and daily business operations of which are controlled (as defined at 13 CFR 124.106) by individuals, who meet the criteria in paragraphs (1)(i) and (ii) of this definition.

Subsidiary means an entity in which more than 50 percent of the entity is owned-

(1) Directly by a parent corporation; or

(2) Through another subsidiary of a parent corporation

Successor means an entity that has replaced a predecessor by acquiring the assets and carrying out the affairs of the predecessor under a new name (often through acquisition or merger). The term "successor" does not include new offices/divisions of the same company or a company that only changes its name. The extent of the responsibility of the successor for the liabilities of the predecessor may vary, depending on State law and specific circumstances.

Veteran-owned small business concern means a small business concern-

(1) Not less than 51 percent of which is owned and controlled by one or more veterans (as defined at 38 U.S.C. 101(2)) or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more veterans; and

(2) The management and daily business operations of which are controlled by one or more veterans.

Women-owned business concern means a concern which is at least 51 percent owned by one or more women; or in the case of any publicly owned business, at least 51 percent of its stock is owned by one or more women; and whose management and daily business operations are controlled by one or more women

Women-owned small business concern means a small business concern-

(1) That is at least 51 percent owned by one or more women; or, in the case of any publicly owned business, at least 51 percent of the stock of which is owned by one or more women; and

(2) Whose management and daily business operations are controlled by one or more women.

Women-owned small business (WOSB) concern eligible under the WOSB Program (in accordance with 13 CFR part 127), means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300.

(b)

(1) Annual Representations and Certifications. Any changes provided by the Offeror in paragraph (b)(2) of this provision do not automatically change the representations and certifications in SAM.

(2) The offeror has completed the annual representations and certifications electronically in SAM accessed through <http://www.sam.gov>. After reviewing SAM information, the Offeror verifies by submission of this offer that the representations and certifications currently posted electronically at FAR 52.212-3, Offeror Representations and Certifications-Commercial Products and Commercial Services, have been entered or updated in the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard(s) applicable to the NAICS code(s) referenced for this solicitation), at the time this offer is submitted and are incorporated in this offer by reference (see FAR 4.1201), except for paragraphs ____.

[Offeror to identify the applicable paragraphs at (c) through (v) of this provision that the offeror has completed for the purposes of this solicitation only, if any.

These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

Any changes provided by the offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications posted electronically on SAM.]

(c) Offerors must complete the following representations when the resulting contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied part 19 in accordance with 19.000(b)(1)(ii). Check all that apply.

(1) Small business concern. The offeror represents as part of its offer that-

(i) It ☐ is, ☐ is not a small business concern; or

(ii) It ☐ is, ☐ is not a small business joint venture that complies with the requirements of 13 CFR 121.103(h) and 13 CFR 125.8(a) and (b). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.]

(2) Veteran-owned small business concern. [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents as part of its offer that it ☐ is, ☐ is not a veteran-owned small business concern.

(3) SDVOSB concern. [Complete only if the offeror represented itself as a veteran-owned small business concern in paragraph (c)(2) of this provision.] The offeror represents that it ☐ is, ☐ is not an SDVOSB concern.

(4) SDVOSB concern joint venture eligible under the SDVOSB Program. The offeror represents that it ☐ is, ☐ is not an SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [Complete only if the offeror represented itself as an SDVOSB concern in paragraph (c)(3) of this provision.] [The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.]

(5) Small disadvantaged business concern. [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents that it ☐ is, ☐ is not a small disadvantaged business concern as defined in 13 CFR 124.1001.

(6) Women-owned small business concern. [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents that it ☐ is, ☐ is not a women-owned small business concern.

(7) WOSB joint venture eligible under the WOSB Program. The offeror represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.]

(8) Economically disadvantaged women-owned small business (EDWOSB) joint venture. The offeror represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.]

Note to paragraphs (c)(9) and (10): Complete paragraphs (c)(9) and (10) only if this solicitation is expected to exceed the simplified acquisition threshold.

(9) Women-owned business concern (other than small business concern). [Complete only if the offeror is a women-owned business concern and did not represent itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents that it ☐ is a women-owned business concern.

(10) Tie bid priority for labor surplus area concerns. If this is an invitation for bid, small business offerors may identify the labor surplus areas in which costs to be incurred on account of manufacturing or production (by offeror or first-tier subcontractors) amount to more than 50 percent of the contract price:_____

(11) HUBZone small business concern. [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents, as part of its offer, that-

(i) It ☐ is, ☐ is not a HUBZone small business concern listed, on the date of this representation, as having been certified by SBA as a HUBZone small business concern in the Dynamic Small Business Search and SAM, and will attempt to maintain an employment rate of HUBZone residents of 35 percent of its employees during performance of a HUBZone contract (see 13 CFR 126.200(e)(1)); and

(ii) It ☐ is, ☐ is not a HUBZone joint venture that complies with the requirements of 13 CFR 126.616(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.] Each HUBZone small business concern participating in the HUBZone joint

venture shall provide representation of its HUBZone status.

(d) [Reserved]

(e) Certification Regarding Payments to Influence Federal Transactions (31 <http://uscode.house.gov/> U.S.C. 1352). (Applies only if the contract is expected to exceed \$150,000.) By submission of its offer, the offeror certifies to the best of its knowledge and belief that no Federal appropriated funds have been paid or will be paid to any person for influencing or attempting to influence an officer or employee of any agency, a Member of Congress, an officer or employee of Congress or an employee of a Member of Congress on his or her behalf in connection with the award of any resultant contract. If any registrants under the Lobbying Disclosure Act of 1995 have made a lobbying contact on behalf of the offeror with respect to this contract, the offeror shall complete and submit, with its offer, OMB Standard Form LLL, Disclosure of Lobbying Activities, to provide the name of the registrants. The offeror need not report regularly employed officers or employees of the offeror to whom payments of reasonable compensation were made.

(f) Buy American Certificate. (Applies only if the clause at Federal Acquisition Regulation (FAR) 52.225-1, Buy American-Supplies, is included in this solicitation.)

(1)

(i) The Offeror certifies that each end product, except those listed in paragraph (f)(2) of this provision, is a domestic end product and that each domestic end product listed in paragraph (f)(3) of this provision contains a critical component.

(ii) The Offeror shall list as foreign end products those end products manufactured in the United States that do not qualify as domestic end products. For those foreign end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select "no".

(iii) The Offeror shall separately list the line item numbers of domestic end products that contain a critical component (see FAR 25.105).

(iv) The terms "commercially available off-the-shelf (COTS) item," "critical component," "domestic end product," "end product," "foreign end product," and "United States" are defined in the clause of this solicitation entitled "Buy American-Supplies."

(2) Foreign End Products:

Line Item No.	Country of Origin	Exceeds 55% domestic content (yes/no)
_____	_____	_____
_____	_____	_____
_____	_____	_____

[List as necessary]

(3) Domestic end products containing a critical component:

Line Item No. _____

[List as necessary]

(4) The Government will evaluate offers in accordance with the policies and procedures of FAR part 25.

(g)

(1) Buy American-Free Trade Agreements-Israeli Trade Act Certificate. (Applies only if the clause at FAR 52.225-3, Buy American-Free Trade Agreements-Israeli Trade Act, is included in this solicitation.)

(i)

(A) The Offeror certifies that each end product, except those listed in paragraph (g)(1)(ii) or (iii) of this provision, is a domestic end product and that each domestic end product listed in paragraph (g)(1)(iv) of this provision contains a critical component.

(B) The terms "Bahraini, Moroccan, Omani, Panamanian, or Peruvian end product," "commercially available off-the-shelf (COTS) item," "critical component," "domestic end product," "end product," "foreign end product," "Free Trade Agreement country," "Free Trade Agreement country end product," "Israeli end product," and "United States" are defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act."

(ii) The Offeror certifies that the following supplies are Free Trade Agreement country end products (other than Bahraini, Moroccan, Omani, Panamanian, or Peruvian end products) or Israeli end products as defined in the clause of this solicitation entitled "Buy American-Free Trade

Agreements-Israeli Trade Act."

Free Trade Agreement Country End Products (Other than Bahraini, Moroccan, Omani, Panamanian, or Peruvian End Products) or Israeli End Products:

Line Item No.	Country of Origin
_____	_____
_____	_____
_____	_____

[List as necessary]

(iii) The Offeror shall list those supplies that are foreign end products (other than those listed in paragraph (g)(1)(ii) of this provision) as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act." The Offeror shall list as other foreign end products those end products manufactured in the United States that do not qualify as domestic end products. For those foreign end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select "no".

Other Foreign End Products:

Line Item No.	Country of Origin	Exceeds 55% domestic content (yes/no)
_____	_____	_____
_____	_____	_____
_____	_____	_____

[List as necessary]

(iv) The Offeror shall list the line item numbers of domestic end products that contain a critical component (see FAR 25.105).

Line Item No. _____

[List as necessary]

(v) The Government will evaluate offers in accordance with the policies and procedures of FAR part 25.

(2) Buy American-Free Trade Agreements-Israeli Trade Act Certificate, Alternate II. If Alternate II to the clause at FAR 52.225-3 is included in this solicitation, substitute the following paragraph (g)(1)(ii) for paragraph (g)(1)(ii) of the basic provision:

(g)(1)(ii) The offeror certifies that the following supplies are Israeli end products as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act":

Israeli End Products:

Line Item No.

[List as necessary]

(3) Buy American-Free Trade Agreements-Israeli Trade Act Certificate, Alternate III. If Alternate III to the clause at 52.225-3 is included in this solicitation, substitute the following paragraphs (g)(1)(i)(B) and (g)(1)(ii) for paragraphs (g)(1)(i)(B) and (g)(1)(ii) of the basic provision:

(g)(1)(i)(B) The terms "Korean end product", "commercially available off-the-shelf (COTS) item," "critical component," "domestic end product," "end product," "foreign end product," "Free Trade Agreement country," "Free Trade Agreement country end product," "Israeli end product," and "United States" are defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act."

(g)(1)(ii) The Offeror certifies that the following supplies are Korean end products or Israeli end products as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act":

Korean End Products or Israeli End Products:

Line Item No.	Country of Origin
_____	_____
_____	_____
_____	_____

[List as necessary]

(4) Trade Agreements Certificate. (Applies only if the clause at FAR 52.225-5, Trade Agreements, is included in this solicitation.)

(i) The offeror certifies that each end product, except those listed in paragraph (g)(4)(ii) of this provision, is a U.S.-made or designated country end product, as defined in the clause of this solicitation entitled "Trade Agreements."

(ii) The offeror shall list as other end products those end products that are not U.S.-made or designated country end products.

Other End Products:

Line Item No.	Country of Origin
_____	_____
_____	_____
_____	_____

[List as necessary]

(iii) The Government will evaluate offers in accordance with the policies and procedures of FAR part 25. For line items covered by the WTO GPA, the Government will evaluate offers of U.S.-made or designated country end products without regard to the restrictions of the Buy American statute. The Government will consider for award only offers of U.S.-made or designated country end products unless the Contracting Officer determines that there are no offers for such products or that the offers for such products are insufficient to fulfill the requirements of the solicitation.

(h) Certification Regarding Responsibility Matters (Executive Order 12689). (Applies only if the contract value is expected to exceed the simplified acquisition threshold.) The offeror certifies, to the best of its knowledge and belief, that the offeror and/or any of its principals-

(1) [] Are, [] are not presently debarred, suspended, proposed for debarment, or declared ineligible for the award of contracts by any Federal agency;

(2) [] Have, [] have not, within a three-year period preceding this offer, been convicted of or had a civil judgment rendered against them for: commission of fraud or a criminal offense in connection with obtaining, attempting to obtain, or performing a Federal, state or local government contract or subcontract; violation of Federal or state antitrust statutes relating to the submission of offers; or commission of embezzlement, theft, forgery, bribery, falsification or destruction of records, making false statements, tax evasion, violating Federal criminal tax laws, or receiving stolen property;

(3) [] Are, [] are not presently indicted for, or otherwise criminally or civilly charged by a Government entity with, commission of any of these offenses enumerated in paragraph (h)(2) of this clause; and

(4) [] Have, [] have not, within a three-year period preceding this offer, been notified of any delinquent Federal taxes in an amount that exceeds the threshold at 9.104-5(a)(2) for which the liability remains unsatisfied.

(i) Taxes are considered delinquent if both of the following criteria apply:

(A) The tax liability is finally determined. The liability is finally determined if it has been assessed. A liability is not finally determined if there is a pending administrative or judicial challenge. In the case of a judicial challenge to the liability, the liability is not finally determined until all judicial appeal rights have been exhausted.

(B) The taxpayer is delinquent in making payment. A taxpayer is delinquent if the taxpayer has failed to pay the tax liability when full payment was due and required. A taxpayer is not delinquent in cases where enforced collection action is precluded.

(ii) Examples.

(A) The taxpayer has received a statutory notice of deficiency, under I.R.C. §6212, which entitles the taxpayer to seek Tax Court review of a proposed tax deficiency. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek Tax Court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(B) The IRS has filed a notice of Federal tax lien with respect to an assessed tax liability, and the taxpayer has been issued a notice under I.R.C. §6320 entitling the taxpayer to request a hearing with the IRS Office of Appeals contesting the lien filing, and to further appeal to the Tax Court if the IRS determines to sustain the lien filing. In the course of the hearing, the taxpayer is entitled to contest the underlying tax liability because the taxpayer has had no prior opportunity to contest the liability. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek tax court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(C) The taxpayer has entered into an installment agreement pursuant to I.R.C. §6159. The taxpayer is making timely payments and is in full compliance with the agreement terms. The taxpayer is not delinquent because the taxpayer is not currently required to make full payment.

(D) The taxpayer has filed for bankruptcy protection. The taxpayer is not delinquent because enforced collection action is stayed under 11 U.S.C. §362 (the Bankruptcy Code).

(i) Certification Regarding Knowledge of Child Labor for Listed End Products (Executive Order 13126). [The Contracting Officer must list in paragraph (i)(1) any end products being acquired under this solicitation that are included in the List of Products Requiring Contractor Certification as to Forced or Indentured Child Labor, unless excluded at 22.1503(b).]

(1) Listed end products.

Listed End Product	Listed Countries of Origin
_____	_____
_____	_____

(2) Certification. [If the Contracting Officer has identified end products and countries of origin in paragraph (i)(1) of this provision, then the offeror must certify to either (i)(2)(i) or (i)(2)(ii) by checking the appropriate block.]

(i) ☐

(ii) ☐

(j) Place of manufacture. (Does not apply unless the solicitation is predominantly for the acquisition of manufactured end products.) For statistical purposes only, the offeror shall indicate whether the place of manufacture of the end products it expects to provide in response to this solicitation is predominantly-

(1) ☐ In the United States (Check this box if the total anticipated price of offered end products manufactured in the United States exceeds the total anticipated price of offered end products manufactured outside the United States); or

(2) ☐ Outside the United States.

(k) Certificates regarding exemptions from the application of the Service Contract Labor Standards (Certification by the offeror as to its compliance with respect to the contract also constitutes its certification as to compliance by its subcontractor if it subcontracts out the exempt services.) [The contracting officer is to check a box to indicate if paragraph (k)(1) or (k)(2) applies.]

(1) ☐ 22.1003-4(c)(1). The offeror ☐ does ☐ does not certify that-

(i) The items of equipment to be serviced under this contract are used regularly for other than Governmental purposes and are sold or traded by the offeror (or subcontractor in the case of an exempt subcontract) in substantial quantities to the general public in the course of normal business operations;

(ii) The services will be furnished at prices which are, or are based on, established catalog or market prices (see FAR 22.1003-4(c)(2)(ii)) for the maintenance, calibration, or repair of such equipment; and

(iii) The compensation (wage and fringe benefits) plan for all service employees performing work under the contract will be the same as that used for these employees and equivalent employees servicing the same equipment of commercial customers.

(2) ☐ 22.1003-4(d)(1). The offeror ☐ does ☐ does not certify that-

(i) The services under the contract are offered and sold regularly to non-Governmental customers, and are provided by the offeror (or subcontractor in the case of an exempt subcontract) to the general public in substantial quantities in the course of normal business operations;

(ii) The contract services will be furnished at prices that are, or are based on, established catalog or market prices (see FAR 22.1003-4(d)(2)(iii));

(iii) Each service employee who will perform the services under the contract will spend only a small portion of his or her time (a monthly average of less than 20 percent of the available hours on an annualized basis, or less than 20 percent of available hours during the contract period if the contract period is less than a month) servicing the Government contract; and

(iv) The compensation (wage and fringe benefits) plan for all service employees performing work under the contract is the same as that used for these employees and equivalent employees servicing commercial customers.

(3) If paragraph (k)(1) or (k)(2) of this clause applies-

(i) If the offeror does not certify to the conditions in paragraph (k)(1) or (k)(2) and the Contracting Officer did not attach a Service Contract Labor Standards wage determination to the solicitation, the offeror shall notify the Contracting Officer as soon as possible; and

(ii) The Contracting Officer may not make an award to the offeror if the offeror fails to execute the certification in paragraph (k)(1) or (k)(2) of this clause or to contact the Contracting Officer as required in paragraph (k)(3)(i) of this clause.

(l) Taxpayer Identification Number (TIN) (26 U.S.C. 6109, 31 U.S.C. 7701). (Not applicable if the offeror is required to provide this information to the SAM to be eligible for award.)

(1) All offerors must submit the information required in paragraphs (l)(3) through (l)(5) of this provision to comply with debt collection requirements of 31 U.S.C. 7701(c) and 3325(d), reporting requirements of 26 U.S.C. 6041, 6041A, and 6050M, and implementing regulations issued by the Internal Revenue Service (IRS).

(2) The TIN may be used by the Government to collect and report on any delinquent amounts arising out of the offeror's relationship with the Government (31 U.S.C. 7701(c)(3)). If the resulting contract is subject to the payment reporting requirements described in FAR 4.904, the TIN provided hereunder may be matched with IRS records to verify the accuracy of the offeror's TIN.

(3) Taxpayer Identification Number (TIN).

☐ TIN: _____.

☐ TIN has been applied for.

☐ TIN is not required because:

☐ Offeror is a nonresident alien, foreign corporation, or foreign partnership that does not have income effectively connected with the conduct of a trade or business in the United States and does not have an office or place of business or a fiscal paying agent in the United States;

☐ Offeror is an agency or instrumentality of a foreign government;

☐ Offeror is an agency or instrumentality of the Federal Government.

(4) Type of organization.

☐ Sole proprietorship;

☐ Partnership;

☐ Corporate entity (not tax-exempt);

☐ Corporate entity (tax-exempt);

☐ Government entity (Federal, State, or local);

☐ Foreign government;

☐ International organization per 26 CFR1.6049-4;

☐ Other _____.

(5) Common parent.

☐ Offeror is not owned or controlled by a common parent;

☐ Name and TIN of common parent:

Name _____.

TIN _____.

(m) Restricted business operations in Sudan. By submission of its offer, the offeror certifies that the offeror does not conduct any restricted business operations in Sudan.

(n) Prohibition on Contracting with Inverted Domestic Corporations.

(1) Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with either an inverted domestic corporation, or a subsidiary of an inverted domestic corporation, unless the exception at 9.108-2(b) applies or the requirement is waived in accordance with the procedures at 9.108-4.

(2) Representation. The Offeror represents that-

(i) It ☐ is, ☐ is not an inverted domestic corporation; and

(ii) It ☐ is, ☐ is not a subsidiary of an inverted domestic corporation.

(o) Prohibition on contracting with entities engaging in certain activities or transactions relating to Iran.

(1) The offeror shall e-mail questions concerning sensitive technology to the Department of State at CISADA106@state.gov.

(2) Representation and Certifications. Unless a waiver is granted or an exception applies as provided in paragraph (o)(3) of this provision, by submission of its offer, the offeror-

(i) Represents, to the best of its knowledge and belief, that the offeror does not export any sensitive technology to the government of Iran or any entities or individuals owned or controlled by, or acting on behalf or at the direction of, the government of Iran;

(ii) Certifies that the offeror, or any person owned or controlled by the offeror, does not engage in any activities for which sanctions may be imposed under section 5 of the Iran Sanctions Act; and

(iii) Certifies that the offeror, and any person owned or controlled by the offeror, does not knowingly engage in any transaction that exceeds the threshold at FAR 25.703-2(a)(2) with Iran's Revolutionary Guard Corps or any of its officials, agents, or affiliates, the property and interests in property of which are blocked pursuant to the International Emergency Economic Powers Act (et seq.) (see OFAC's Specially Designated Nationals and Blocked Persons List at <https://www.treasury.gov/resource-center/sanctions/SDN-List/Pages/default.aspx>).

(3) The representation and certification requirements of paragraph (o)(2) of this provision do not apply if-

(i) This solicitation includes a trade agreements certification (e.g., 52.212-3(g) or a comparable agency provision); and

(ii) The offeror has certified that all the offered products to be supplied are designated country end products.

(p) Ownership or Control of Offeror. (Applies in all solicitations when there is a requirement to be registered in SAM or a requirement to have a unique entity identifier in the solicitation).

(1) The Offeror represents that it ☐ has or ☐ does not have an immediate owner. If the Offeror has more than one immediate owner (such as a joint venture), then the Offeror shall respond to paragraph (2) and if applicable, paragraph (3) of this provision for each participant in the joint venture.

(2) If the Offeror indicates "has" in paragraph (p)(1) of this provision, enter the following information:

Immediate owner CAGE code: ____.

Immediate owner legal name: ____.

(Do not use a "doing business as" name)

Is the immediate owner owned or controlled by another entity: ☐ Yes or ☐ No.

(3) If the Offeror indicates "yes" in paragraph (p)(2) of this provision, indicating that the immediate owner is owned or controlled by another entity, then enter the following information:

Highest-level owner CAGE code: ____.

Highest-level owner legal name: ____.

(Do not use a "doing business as" name)

(q) Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law.

(1) As required by sections 744 and 745 of Division E of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235), and similar provisions, if contained in subsequent appropriations acts, The Government will not enter into a contract with any corporation that-

(i) Has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed,

and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability, where the awarding agency is aware of the unpaid tax liability, unless an agency has considered suspension or debarment of the corporation and made a determination that suspension or debarment is not necessary to protect the interests of the Government; or

(ii) Was convicted of a felony criminal violation under any Federal law within the preceding 24 months, where the awarding agency is aware of the conviction, unless an agency has considered suspension or debarment of the corporation and made a determination that this action is not necessary to protect the interests of the Government.

(2) The Offeror represents that-

(i) It is ☐ is not ☐ a corporation that has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability; and

(ii) It is ☐ is not ☐ a corporation that was convicted of a felony criminal violation under a Federal law within the preceding 24 months.

(r) Predecessor of Offeror. (Applies in all solicitations that include the provision at 52.204-16, Commercial and Government Entity Code Reporting.)

(1) The Offeror represents that it ☐ is or ☐ is not a successor to a predecessor that held a Federal contract or grant within the last three years.

(2) If the Offeror has indicated "is" in paragraph (r)(1) of this provision, enter the following information for all predecessors that held a Federal contract or grant within the last three years (if more than one predecessor, list in reverse chronological order):

Predecessor CAGE code: ____ (or mark "Unknown").

Predecessor legal name: ____.

(Do not use a "doing business as" name).

(s) [Reserved]

(t) [Reserved]

(u)

(1) In accordance with section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions), Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with an entity that requires employees or subcontractors of such entity seeking to report waste, fraud, or abuse to sign internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or subcontractors from lawfully reporting such waste, fraud, or abuse to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information.

(2) The prohibition in paragraph (u)(1) of this provision does not contravene requirements applicable to Standard Form 312 (Classified Information Nondisclosure Agreement), Form 4414 (Sensitive Compartmented Information Nondisclosure Agreement), or any other form issued by a Federal department or agency governing the nondisclosure of classified information.

(3) Representation. By submission of its offer, the Offeror represents that it will not require its employees or subcontractors to sign or comply with internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or subcontractors from lawfully reporting waste, fraud, or abuse related to the performance of a Government contract to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information (e.g., agency Office of the Inspector General).

(v) Covered Telecommunications Equipment or Services-Representation. Section 889(a)(1)(A) and section 889 (a)(1)(B) of Public Law 115-232.

(1) The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".

(2) The Offeror represents that-

(i) It ☐ does, ☐ does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(ii) After conducting a reasonable inquiry for purposes of this representation, that it ☐ does, ☐ does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services.

(End of Provision)

Contract Terms and Conditions Required To Implement Statutes or Executive Orders-Commercial Products and Commercial Services (MAR 2025)
(DEVIATION 2025-O0003 and 2025-O0004)

(a) The Contractor shall comply with the following Federal Acquisition Regulation (FAR) clauses, which are incorporated in this contract by reference, to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

(1) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(2) 52.204-23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (Dec 2023) (Section 1634 of Pub. L. 115-91).

(3) 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (Nov 2021) (Section 889 (a)(1)(A) of Pub. L. 115-232).

(4) 52.209-10, Prohibition on Contracting with Inverted Domestic Corporations (Nov 2015).

(5) 52.232-40, Providing Accelerated Payments to Small Business Subcontractors (Mar 2023) (31 U.S.C. 3903 and 10 U.S.C. 3801).

(6) 52.233-3, Protest After Award (Aug 1996) (31 U.S.C. 3553).

(7) 52.233-4, Applicable Law for Breach of Contract Claim (Oct 2004) (Public Laws 108-77 and 108-78 (19 U.S.C. 3805 note)).

(b) The Contractor shall comply with the FAR clauses in this paragraph (b) that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

[Contracting Officer check as appropriate.]

☐ (1) 52.203-6, Restrictions on Subcontractor Sales to the Government (Jun 2020), with Alternate I (Nov 2021) (41 U.S.C. 4704 and 10 U.S.C. 4655).

☐ (2) 52.203-13, Contractor Code of Business Ethics and Conduct (Nov 2021) (41 U.S.C. 3509)).

☐ (3) 52.203-15, Whistleblower Protections under the American Recovery and Reinvestment Act of 2009 (Jun 2010) (Section 1553 of Pub. L. 111-5). (Applies to contracts funded by the American Recovery and Reinvestment Act of 2009.)

☐ (4) 52.203-17, Contractor Employee Whistleblower Rights (Nov 2023) (41 U.S.C. 4712); this clause does not apply to contracts of DoD, NASA, the Coast Guard, or applicable elements of the intelligence community-see FAR 3.900(a).

☐ (5) 52.204-10, Reporting Executive Compensation and First-Tier Subcontract Awards (Jun 2020) (Pub. L. 109-282) (31 U.S.C. 6101 note).

☐ (6) [Reserved].

☐ (7) 52.204-14, Service Contract Reporting Requirements (Oct 2016) (Pub. L. 111-117, section 743 of Div. C).

☐ (8) 52.204-15, Service Contract Reporting Requirements for Indefinite-Delivery Contracts (Oct 2016) (Pub. L. 111-117, section 743 of Div. C).

☐ (9) 52.204-27, Prohibition on a ByteDance Covered Application (Jun 2023) (Section 102 of Division R of Pub. L. 117-328).

☐ (10) 52.204-28, Federal Acquisition Supply Chain Security Act Orders-Federal Supply Schedules, Governmentwide Acquisition Contracts, and Multi-Agency Contracts. (Dec 2023) (Pub. L. 115-390, title II).

☐ (11)

(i) 52.204-30, Federal Acquisition Supply Chain Security Act Orders-Prohibition. (Dec 2023) (Pub. L. 115-390, title II).

☐ (ii) Alternate I (Dec 2023) of 52.204-30.

☐ (12) 52.209-6, Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. (Jan 2025) (31 U.S.C. 6101 note).

☐ (13) 52.209-9, Updates of Publicly Available Information Regarding Responsibility Matters (Oct 2018) (41 U.S.C. 2313).

☐ (14) [Reserved].

☐ (15) 52.219-3, Notice of HUBZone Set-Aside or Sole-Source Award (Oct 2022) (15 U.S.C. 657a).

☐ (16) 52.219-4, Notice of Price Evaluation Preference for HUBZone Small Business Concerns (Oct 2022) (if the offeror elects to waive the preference, it shall so indicate in its offer) (15 U.S.C. 657a).

☐ (17) [Reserved]

☐ (18)

(i) 52.219-6, Notice of Total Small Business Set-Aside (Nov 2020) (15 U.S.C. 644).

☐ (ii) Alternate I (Mar 2020) of 52.219-6.

☐ (19)

(i) 52.219-7, Notice of Partial Small Business Set-Aside (Nov 2020) (15 U.S.C. 644).

☐ (ii) Alternate I (Mar 2020) of 52.219-7.

☐ (20) 52.219-8, Utilization of Small Business Concerns (Jan 2025)(15 U.S.C. 637(d)(2) and (3)).

☐ (21)

(i) 52.219-9, Small Business Subcontracting Plan (Jan 2025) (15 U.S.C. 637(d)(4)).

☐ (ii) Alternate I (Nov 2016) of 52.219-9.

☐ (iii) Alternate II (Nov 2016) of 52.219-9.

☐ (iv) Alternate III (Jun 2020) of 52.219-9.

☐ (v) Alternate IV (Jan 2025) of 52.219-9.

☐ (22)

(i) 52.219-13, Notice of Set-Aside of Orders (Mar 2020) (15 U.S.C. 644(r)).

☐ (ii) Alternate I (Mar 2020) of 52.219-13.

☐ (23) 52.219-14, Limitations on Subcontracting (Oct 2022) (15 U.S.C. 657s).

☐ (24) 52.219-16, Liquidated Damages-Subcontracting Plan (Sep 2021) (15 U.S.C. 637(d)(4)(F)(i)).

☐ (25) 52.219-27, Notice of Set-Aside for, or Sole-Source Award to, Service-Disabled Veteran-Owned Small Business (SDVOSB) Concerns Eligible Under the SDVOSB Program (Feb 2024) (15 U.S.C. 657f).

☐ (26)

(i) 52.219-28, Postaward Small Business Program Rerepresentation (Jan 2025) (15 U.S.C. 632(a)(2)).

☐ (ii) Alternate I (Mar 2020) of 52.219-28.

☐ (27) 52.219-29, Notice of Set-Aside for, or Sole-Source Award to, Economically Disadvantaged Women-Owned Small Business Concerns (Oct 2022) (15 U.S.C. 637(m)).

☐ (28) 52.219-30, Notice of Set-Aside for, or Sole-Source Award to, Women-Owned Small Business Concerns Eligible Under the Women-Owned Small Business Program (Oct 2022) (15 U.S.C. 637(m)).

☐ (29) 52.219-32, Orders Issued Directly Under Small Business Reserves (Mar 2020) (15 U.S.C. 644(r)).

☐ (30) 52.219-33, Nonmanufacturer Rule (Sep 2021) (15 U.S.C. 637(a)(17)).

☐ (31) 52.222-3, Convict Labor (Jun 2003) (E.O.11755).

☐ (32) 52.222-19, Child Labor-Cooperation with Authorities and Remedies (Jan 2025)(E.O. 13126).

☐ (33) [Reserved]

☐ (34) [Reserved]

☐ (35)

(i) 52.222-35, Equal Opportunity for Veterans (Jun 2020) (38 U.S.C. 4212).

☐ (ii) Alternate I (Jul 2014) of 52.222-35.

☐ (36)

(i) 52.222-36, Equal Opportunity for Workers with Disabilities (Jun 2020) (29 U.S.C. 793).

☐ (ii) Alternate I (Jul 2014) of 52.222-36.

☐ (37) 52.222-37, Employment Reports on Veterans (Jun 2020) (38 U.S.C. 4212).

☐ (38) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (Dec 2010) (E.O. 13496).

☐ (39)

(i) 52.222-50, Combating Trafficking in Persons (Nov 2021) (22 U.S.C. chapter 78 and E.O. 13627).

☐ (ii) Alternate I (Mar 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).

☐ (40) 52.222-54, Employment Eligibility Verification (Jan 2025) (Executive Order 12989). (Not applicable to the acquisition of commercially available off-the-shelf items or certain other types of commercial products or commercial services as prescribed in FAR 22.1803.)

☐ (41)

(i) 52.223-9, Estimate of Percentage of Recovered Material Content for EPA-Designated Items (May 2008) (42 U.S.C. 6962(c)(3)(A)(ii)). (Not applicable to the acquisition of commercially available off-the-shelf items.)

☐ (ii) Alternate I (May 2008) of 52.223-9 (42 U.S.C. 6962(i)(2)(C)). (Not applicable to the acquisition of commercially available off-the-shelf items.)

☐ (42) 52.223-11, Ozone-Depleting Substances and High Global Warming Potential Hydrofluorocarbons (May 2024) (42 U.S.C. 7671, et seq.).

☐ (43) 52.223-12, Maintenance, Service, Repair, or Disposal of Refrigeration Equipment and Air Conditioners (May 2024) (42 U.S.C. 7671, et seq.).

☐ (44) 52.223-20, Aerosols (May 2024) (42 U.S.C. 7671, et seq.).

[] (45) 52.223-21, Foams (May 2024) (42 U.S.C. 7671, et seq.).

[] (46) 52.223-23, Sustainable Products and Services (MAR 2025) (DEVIATION 2025-O0004)) (7 U.S.C. 8102, 42 U.S.C. 6962, 42 U.S.C. 8259b, and 42 U.S.C. 76711).

[] (47)

(i) 52.224-3 Privacy Training (Jan 2017) (5 U.S.C. 552 a).

[] (ii) Alternate I (Jan 2017) of 52.224-3.

[] (48)

(i) 52.225-1, Buy American-Supplies (Oct 2022) (41 U.S.C. chapter 83).

[] (ii) Alternate I (Oct 2022) of 52.225-1.

[] (49)

(i) 52.225-3, Buy American-Free Trade Agreements-Israeli Trade Act (NOV 2023) (19 U.S.C. 3301 note, 19 U.S.C. 2112 note, 19 U.S.C. 3805 note, 19 U.S.C. 4001 note, 19 U.S.C. chapter 29 (sections 4501-4732), Public Law 103-182, 108-77, 108-78, 108-286, 108-302, 109-53, 109-169, 109-283, 110-138, 112-41, 112-42, and 112-43).

[] (ii) Alternate I [Reserved].

[] (iii) Alternate II (Jan 2025) of 52.225-3.

[] (iv) Alternate III (Feb 2024) of 52.225-3.

[] (v) Alternate IV (Oct 2022) of 52.225-3.

[] (50) 52.225-5, Trade Agreements (NOV 2023) (19 U.S.C. 2501, et seq., 19 U.S.C. 3301 note).

[] (51) 52.225-13, Restrictions on Certain Foreign Purchases (Feb 2021) (E.O.'s, proclamations, and statutes administered by the Office of Foreign Assets Control of the Department of the Treasury).

[] (52) 52.225-26, Contractors Performing Private Security Functions Outside the United States (Oct 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).

[] (53) 52.226-4, Notice of Disaster or Emergency Area Set-Aside (Nov 2007) (42 U.S.C. 5150).

[] (54) 52.226-5, Restrictions on Subcontracting Outside Disaster or Emergency Area (Nov 2007) (42 U.S.C. 5150).

[] (55) 52.226-8, Encouraging Contractor Policies to Ban Text Messaging While Driving (May 2024) (E.O. 13513).

[] (56) 52.229-12, Tax on Certain Foreign Procurements (Feb 2021).

[] (57) 52.232-29, Terms for Financing of Purchases of Commercial Products and Commercial Services (Nov 2021) (41 U.S.C. 4505, 10 U.S.C. 3805).

[] (58) 52.232-30, Installment Payments for Commercial Products and Commercial Services (Nov 2021) (41 U.S.C. 4505, 10 U.S.C. 3805).

[] (59) 52.232-33, Payment by Electronic Funds Transfer-System for Award Management (Oct2018) (31 U.S.C. 3332).

[] (60) 52.232-34, Payment by Electronic Funds Transfer-Other than System for Award Management (Jul 2013) (31 U.S.C. 3332).

[] (61) 52.232-36, Payment by Third Party (May 2014) (31 U.S.C. 3332).

[] (62) 52.239-1, Privacy or Security Safeguards (Aug 1996) (5 U.S.C. 552a).

[] (63) 52.240-1, Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities (Nov 2024) (Sections 1821-1826, Pub. L. 118-31, 41 U.S.C. 3901 note prec.).

[] (64) 52.242-5, Payments to Small Business Subcontractors (Jan 2017) (15 U.S.C. 637(d)(13)).

[] (65)

(i) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (Nov 2021) (46 U.S.C. 55305 and 10 U.S.C. 2631).

[] (ii) Alternate I (Apr 2003) of 52.247-64.

[] (iii) Alternate II (Nov 2021) of 52.247-64.

(c) The Contractor shall comply with the FAR clauses in this paragraph (c), applicable to commercial services, that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

[Contracting Officer check as appropriate.]

[] (1) 52.222-41, Service Contract Labor Standards (Aug 2018) (41 U.S.C. chapter 67).

[] (2) 52.222-42, Statement of Equivalent Rates for Federal Hires (May 2014) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

[] (3) 52.222-43, Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (Multiple Year and Option Contracts) (Aug 2018) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

[] (4) 52.222-44, Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (May 2014) (29U.S.C.206 and 41 U.S.C. chapter 67).

[] (5) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014) (41 U.S.C. chapter 67).

[] (6) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (May 2014) (41 U.S.C. chapter 67).

[] (7) 52.222-55, Minimum Wages for Contractor Workers Under Executive Order 14026 (Jan 2022).

[] (8) 52.222-62, Paid Sick Leave Under Executive Order 13706 (Jan 2022) (E.O. 13706).

[] (9) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations (Jun 2020) (42 U.S.C. 1792).

[] (10) 52.247-69, Reporting Requirement for U.S.-Flag Air Carriers Regarding Training to Prevent Human Trafficking (Jan 2025) (49 U.S.C. 40118 (g)).

(d) Comptroller General Examination of Record. The Contractor shall comply with the provisions of this paragraph (d) if this contract was awarded using other than sealed bid, is in excess of the simplified acquisition threshold, as defined in FAR 2.101, on the date of award of this contract, and does not contain the clause at 52.215-2, Audit and Records-Negotiation.

(1) The Comptroller General of the United States, or an authorized representative of the Comptroller General, shall have access to and right to examine any of the Contractor's directly pertinent records involving transactions related to this contract.

(2) The Contractor shall make available at its offices at all reasonable times the records, materials, and other evidence for examination, audit, or reproduction, until 3 years after final payment under this contract or for any shorter period specified in FAR subpart 4.7, Contractor Records Retention, of the other clauses of this contract. If this contract is completely or partially terminated, the records relating to the work terminated shall be made available for 3 years after any resulting final termination settlement. Records relating to appeals under the disputes clause or to litigation or the settlement of claims arising under or relating to this contract shall be made available until such appeals, litigation, or claims are finally resolved.

(3) As used in this clause, records include books, documents, accounting procedures and practices, and other data, regardless of type and regardless of form. This does not require the Contractor to create or maintain any record that the Contractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(e)

(1) Notwithstanding the requirements of the clauses in paragraphs (a), (b), (c), and (d) of this clause, the Contractor is not required to flow down any FAR clause, other than those in this paragraph (e)(1), in a subcontract for commercial products or commercial services. Unless otherwise indicated below, the extent of the flow down shall be as required by the clause-

(i) 52.203-13, Contractor Code of Business Ethics and Conduct (Nov 2021) (41 U.S.C. 3509).

(ii) 52.203-17, Contractor Employee Whistleblower Rights (Nov 2023) (41 U.S.C. 4712).

(iii) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(iv) 52.204-23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (Dec

2023) (Section 1634 of Pub. L. 115-91).

(v) 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (Nov 2021) (Section 889 (a)(1)(A) of Pub. L. 115-232).

(vi) 52.204-27, Prohibition on a ByteDance Covered Application (Jun 2023) (Section 102 of Division R of Pub. L. 117-328).

(vii)

(A) 52.204-30, Federal Acquisition Supply Chain Security Act Orders-Prohibition. (Dec 2023) (Pub. L. 115-390, title II).

(B) Alternate I (Dec 2023) of 52.204-30.

(viii) 52.219-8, Utilization of Small Business Concerns (Jan 2025) (15 U.S.C. 637(d)(2) and (3)), in all subcontracts that offer further subcontracting opportunities. If the subcontract (except subcontracts to small business concerns) exceeds the applicable threshold specified in FAR 19.702(a) on the date of subcontract award, the subcontractor must include 52.219-8 in lower tier subcontracts that offer subcontracting opportunities.

(ix) [Reserved]

(x) [Reserved]

(xi) 52.222-35, Equal Opportunity for Veterans (Jun 2020) (38 U.S.C. 4212).

(xii) 52.222-36, Equal Opportunity for Workers with Disabilities (Jun 2020) (29 U.S.C. 793).

(xiii) 52.222-37, Employment Reports on Veterans (Jun 2020) (38 U.S.C. 4212).

(xiv) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (Dec 2010) (E.O. 13496). Flow down required in accordance with paragraph (f) of FAR clause 52.222-40.

(xv) 52.222-41, Service Contract Labor Standards (Aug 2018) (41 U.S.C. chapter 67).

(xvi)

(A) 52.222-50, Combating Trafficking in Persons (Nov 2021) (22 U.S.C. chapter 78 and E.O. 13627).

(B) Alternate I (Mar 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).

(xvii) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014) (41 U.S.C. chapter 67).

(xviii) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (May 2014) (41 U.S.C. chapter 67).

(xix) 52.222-54, Employment Eligibility Verification (Jan 2025) (E.O. 12989).

(xx) 52.222-55, Minimum Wages for Contractor Workers Under Executive Order 14026 (Jan 2022).

(xxi) 52.222-62, Paid Sick Leave Under Executive Order 13706 (Jan 2022) (E.O. 13706).

(xxii)

(A) 52.224-3, Privacy Training (Jan 2017) (5 U.S.C. 552a).

(B) Alternate I (Jan 2017) of 52.224-3.

(xxiii) 52.225-26, Contractors Performing Private Security Functions Outside the United States (Oct 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).

(xxiv) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations (Jun 2020) (42 U.S.C. 1792). Flow down required in accordance with paragraph (e) of FAR clause 52.226-6.

(xxv) 52.232-40, Providing Accelerated Payments to Small Business Subcontractors (Mar 2023) (31 U.S.C. 3903 and 10 U.S.C. 3801). Flow down required in accordance with paragraph (c) of 52.232-40.

(xxvi) 52.240-1, Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities

(Nov 2024) (Sections 1821-1826, Pub. L. 118-31, 41 U.S.C. 3901 note prec.).

(xxvii) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (Nov 2021) (46 U.S.C. 55305 and 10 U.S.C. 2631). Flow down required in accordance with paragraph (d) of FAR clause 52.247-64.

(2) While not required, the Contractor may include in its subcontracts for commercial products and commercial services a minimal number of additional clauses necessary to satisfy its contractual obligations.

(End of clause)

52.215-1 Instructions to Offerors-Competitive Acquisition.

(Nov 2021)

As prescribed in 15.209(a), insert the following provision:

Instructions to Offerors-Competitive Acquisition (Nov 2021)

(a) Definitions. As used in this provision-

Discussions are negotiations that occur after establishment of the competitive range that may, at the Contracting Officer's discretion, result in the offeror being allowed to revise its proposal.

In writing, "writing," or "written" means any worded or numbered expression that can be read, reproduced, and later communicated, and includes electronically transmitted and stored information.

Proposal modification is a change made to a proposal before the solicitation's closing date and time, or made in response to an amendment, or made to correct a mistake at any time before award.

Proposal revision is a change to a proposal made after the solicitation closing date, at the request of or as allowed by a Contracting Officer as the result of negotiations.

Time, if stated as a number of days, is calculated using calendar days, unless otherwise specified, and will include Saturdays, Sundays, and legal holidays. However, if the last day falls on a Saturday, Sunday, or legal holiday, then the period shall include the next working day.

(b) Amendments to solicitations. If this solicitation is amended, all terms and conditions that are not amended remain unchanged. Offerors shall acknowledge receipt of any amendment to this solicitation by the date and time specified in the amendment(s).

(c) Submission, modification, revision, and withdrawal of proposals.

(1) Unless other methods (e.g., electronic commerce or facsimile) are permitted in the solicitation, proposals and modifications to proposals shall be submitted in paper media in sealed envelopes or packages (i) addressed to the office specified in the solicitation, and (ii) showing the time and date specified for receipt, the solicitation number, and the name and address of the offeror. Offerors using commercial carriers should ensure that the proposal is marked on the outermost wrapper with the information in paragraphs (c)(1)(i) and (c)(1)(ii) of this provision.

(2) The first page of the proposal must show-

(i) The solicitation number;

(ii) The name, address, and telephone and facsimile numbers of the offeror (and electronic address if available);

(iii) A statement specifying the extent of agreement with all terms, conditions, and provisions included in the solicitation and agreement to furnish any or all items upon which prices are offered at the price set opposite each item;

(iv) Names, titles, and telephone and facsimile numbers (and electronic addresses if available) of persons authorized to negotiate on the offeror's behalf with the Government in connection with this solicitation; and

(v) Name, title, and signature of person authorized to sign the proposal. Proposals signed by an agent shall be accompanied by evidence of that agent's authority, unless that evidence has been previously furnished to the issuing office.

(3) Submission, modification, revision, and withdrawal of proposals.

(i) Offerors are responsible for submitting proposals, and any modifications or revisions, so as to reach the Government office designated in the solicitation by the time specified in the solicitation. If no time is specified in the solicitation, the time for receipt is 4:30 p.m., local time, for the designated Government office on the date that proposal or revision is due.

(ii)

(A) Any proposal, modification, or revision received at the Government office designated in the solicitation after the exact time specified for receipt of offers is "late" and will not be considered unless it is received before award is made, the Contracting Officer determines that accepting the late offer would not unduly delay the acquisition; and-

(1) If it was transmitted through an electronic commerce method authorized by the solicitation, it was received at the initial point of entry to the Government infrastructure not later than 5:00 p.m. one working day prior to the date specified for receipt of proposals; or

(2) There is acceptable evidence to establish that it was received at the Government installation designated for receipt of offers and was under the Government's control prior to the time set for receipt of offers; or

(3) It is the only proposal received.

(B) However, a late modification of an otherwise successful proposal that makes its terms more favorable to the Government, will be considered at any time it is received and may be accepted.

(iii) Acceptable evidence to establish the time of receipt at the Government installation includes the time/date stamp of that installation on the proposal wrapper, other documentary evidence of receipt maintained by the installation, or oral testimony or statements of Government personnel.

(iv) If an emergency or unanticipated event interrupts normal Government processes so that proposals cannot be received at the office designated for receipt of proposals by the exact time specified in the solicitation, and urgent Government requirements preclude amendment of the solicitation, the time specified for receipt of proposals will be deemed to be extended to the same time of day specified in the solicitation on the first work day on which normal Government processes resume.

(v) Proposals may be withdrawn by written notice received at any time before award. Oral proposals in response to oral solicitations may be withdrawn orally. If the solicitation authorizes facsimile proposals, proposals may be withdrawn via facsimile received at any time before award, subject to the conditions specified in the provision at 52.215-5, Facsimile Proposals. Proposals may be withdrawn in person by an offeror or an authorized representative, if the identity of the person requesting withdrawal is established and the person signs a receipt for the proposal before award.

(4) Unless otherwise specified in the solicitation, the offeror may propose to provide any item or combination of items.

(5) Offerors shall submit proposals in response to this solicitation in English, unless otherwise permitted by the solicitation, and in U.S. dollars, unless the provision at FAR 52.225-17, Evaluation of Foreign Currency Offers, is included in the solicitation.

(6) Offerors may submit modifications to their proposals at any time before the solicitation closing date and time, and may submit modifications in response to an amendment, or to correct a mistake at any time before award.

(7) Offerors may submit revised proposals only if requested or allowed by the Contracting Officer.

(8) Proposals may be withdrawn at any time before award. Withdrawals are effective upon receipt of notice by the Contracting Officer.

(d) Offer expiration date. Proposals in response to this solicitation will be valid for the number of days specified on the solicitation cover sheet (unless a different period is proposed by the offeror).

(e) Restriction on disclosure and use of data. Offerors that include in their proposals data that they do not want disclosed to the public for any purpose, or used by the Government except for evaluation purposes, shall-

(1) Mark the title page with the following legend:

This proposal includes data that shall not be disclosed outside the Government and shall not be duplicated, used, or disclosed-in whole or in part-for any purpose other than to evaluate this proposal. If, however, a contract is awarded to this offeror as a result of-or in connection with-the submission of this data, the Government shall have the right to duplicate, use, or disclose the data to the extent provided in the resulting contract. This restriction does not limit the Government's right to use information contained in this data if it is obtained from another source without restriction. The data subject to this restriction are contained in sheets [insert numbers or other identification of sheets]; and

(2) Mark each sheet of data it wishes to restrict with the following legend:

Use or disclosure of data contained on this sheet is subject to the restriction on the title page of this proposal.

(f) Contract award.

(1) The Government intends to award a contract or contracts resulting from this solicitation to the responsible offeror(s) whose proposal(s) represents the best value after evaluation in accordance with the factors and subfactors in the solicitation.

(2) The Government may reject any or all proposals if such action is in the Government's interest.

(3) The Government may waive informalities and minor irregularities in proposals received.

(4) The Government intends to evaluate proposals and award a contract without discussions with offerors (except clarifications as described in FAR 15.306(a)). Therefore, the offeror's initial proposal should contain the offeror's best terms from a cost or price and technical standpoint. The Government reserves the right to conduct discussions if the Contracting Officer later determines them to be necessary. If the Contracting Officer determines that the number of proposals that would otherwise be in the competitive range exceeds the number at which an efficient competition can be conducted, the Contracting Officer may limit the number of proposals in the competitive range to the greatest number that will permit an efficient competition among the most highly rated proposals.

(5) The Government reserves the right to make an award on any item for a quantity less than the quantity offered, at the unit cost or prices offered, unless the offeror specifies otherwise in the proposal.

(6) The Government reserves the right to make multiple awards if, after considering the additional administrative costs, it is in the Government's best interest to do so.

(7) Exchanges with offerors after receipt of a proposal do not constitute a rejection or counteroffer by the Government.

(8) The Government may determine that a proposal is unacceptable if the prices proposed are materially unbalanced between line items or subline items. Unbalanced pricing exists when, despite an acceptable total evaluated price, the price of one or more line items is significantly overstated or understated as indicated by the application of cost or price analysis techniques. A proposal may be rejected if the Contracting Officer determines that the lack of balance poses an unacceptable risk to the Government.

(9) If a cost realism analysis is performed, cost realism may be considered by the source selection authority in evaluating performance or schedule risk.

(10) A written award or acceptance of proposal mailed or otherwise furnished to the successful offeror within the time specified in the proposal shall result in a binding contract without further action by either party.

(11) If a post-award debriefing is given to requesting offerors, the Government shall disclose the following information, if applicable:

(i) The agency's evaluation of the significant weak or deficient factors in the debriefed offeror's offer.

(ii) The overall evaluated cost or price and technical rating of the successful and the debriefed offeror and past performance information on the debriefed offeror.

(iii) The overall ranking of all offerors, when any ranking was developed by the agency during source selection.

(iv) A summary of the rationale for award.

(v) For acquisitions of commercial products, the make and model of the product to be delivered by the successful offeror.

(vi) Reasonable responses to relevant questions posed by the debriefed offeror as to whether source selection procedures set forth in the solicitation, applicable regulations, and other applicable authorities were followed by the agency.

(End of provision)

52.216-1 Type of Contract.

(Apr 1984)

As prescribed in 16.105 , complete and insert the following provision:

Type of Contract (Apr 1984)

The Government contemplates award of a **Firm-Fixed-Price (FFP)** contract resulting from this solicitation.

(End of provision)

52.219-4 Notice of Price Evaluation Preference for HUBZone Small Business Concerns.

(Oct 2022)

As prescribed in 19.1309(b), insert the following clause:

Notice of Price Evaluation preference for HUBZone Small Business Concerns (Oct 2022)

(a) Evaluation preference.

(1) Offers will be evaluated by adding a factor of 10 percent to the price of all offers, except-

(i) Offers from HUBZone small business concerns that have not waived the evaluation preference; and

(ii) Otherwise successful offers from small business concerns.

(2) The factor of 10 percent shall be applied on a line item basis or to any group of items on which award may be made. Other evaluation factors described in the solicitation shall be applied before application of the factor.

(3) When the two highest rated offerors are a HUBZone small business concern and a large business, and the evaluated offer of the HUBZone small business concern is equal to the evaluated offer of the large business after considering the price evaluation preference, award will be made to the HUBZone small business concern.

(b) Waiver of evaluation preference. A HUBZone small business concern may elect to waive the evaluation preference, in which case the factor will be added to its offer for evaluation purposes.

[] Offeror elects to waive the evaluation preference.

(c) Joint venture. A HUBZone joint venture agrees that, in the performance of the contract, at least 40 percent of the aggregate work performed by the joint venture shall be completed by the HUBZone small business parties to the joint venture. Work performed by the HUBZone small business parties to the joint venture must be more than administrative functions.

(End of clause)

52.219-28 Postaward Small Business Program Rerepresentation.

(Jan 2025)

Postaward Small Business Program Rerepresentation (Jan 2025)

(a) *Definitions.* As used in this clause-

Long-term contract means a contract of more than five years in duration, including options. However, the term does not include contracts that exceed five years in duration because the period of performance has been extended for a cumulative period not to exceed six months under the clause at 52.217-8, Option to Extend Services, or other appropriate authority.

Small business concern-

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and the size standard in paragraph (d) of this clause.

(2) *Affiliates*, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

(b) If the Contractor represented that it was any of the small business concerns identified in 19.000(a)(3) prior to award of this contract, the Contractor shall rerepresent its size and socioeconomic status according to paragraph (f) of this clause or, if applicable, paragraph (h) of this clause, upon occurrence of any of the following:

(1) Within 30 days after execution of a novation agreement or within 30 days after modification of the contract to include this clause, if the novation agreement was executed prior to inclusion of this clause in the contract.

(2) Within 30 days after a merger or acquisition that does not require a novation or within 30 days after modification of the contract to include this clause, if the merger or acquisition occurred prior to inclusion of this clause in the contract.

(3) For long-term contracts-

(i) Within 60 to 120 days prior to the end of the fifth year of the contract; and

(ii) Within 60 to 120 days prior to the date specified in the contract for exercising any option thereafter.

(c) If the Contractor represented its status as any of the small business concerns identified at 19.000(a)(3) prior to award of this contract, the Contractor shall rerepresent its size and socioeconomic status according to paragraph (f) of this clause or, if applicable, paragraph (h) of this clause, for the NAICS code assigned to an order (except that paragraphs (c)(1) through (3) of this clause do not apply to an order issued under a Federal Supply Schedule contract at subpart 8.4)-

(1) Set aside exclusively for a small business concern identified at 19.000(a)(3) that is issued under an unrestricted multiple-award contract, unless the order is issued under the reserved portion of an unrestricted multiple-award contract (e.g., an order set aside for a woman-owned small business under a multiple-award contract that is not set-aside, unless the order is issued under the reserved portion of the multiple-award contract);

(2) Issued under a multiple-award contract set aside for small businesses that is further set aside for a specific socioeconomic category that differs from the underlying multiple-award contract (e.g., an order set aside for a HUBZone small business concern under a multiple-award contract that is set aside for small businesses);

(3) Issued under the part of the multiple-award contract that is set aside for small businesses that is further set aside for a specific socioeconomic category that differs from the underlying set-aside part of the multiple-award contract (e.g., an order set aside for a WOSB concern under the part of the multiple-award contract that is partially set aside for small businesses); and

(4) When the Contracting Officer explicitly requires it for an order issued under a multiple-award contract, including for an order issued under a Federal Supply Schedule contract (see 8.405-5(b) and 19.301-2(b)(2)).

(d) The Contractor shall rerepresent its size status in accordance with the size standard in effect at the time of this rerepresentation that corresponds to the North American Industry Classification System (NAICS) code(s) assigned to this contract. The small business size standard corresponding to this NAICS code(s) can be found at <https://www.sba.gov/document/support-table-size-standards>.

(e) The small business size standard for a Contractor providing an end item that it does not manufacture, process, or produce itself, for a contract other than a construction or service contract, is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition-

(1) Was set aside for small business and has a value above the simplified acquisition threshold;

(2) Used the HUBZone price evaluation preference regardless of dollar value, unless the Contractor waived the price evaluation preference; or

(3) Was an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(f) Except as provided in paragraph (h) of this clause, the Contractor shall make the representation(s) required by paragraphs (b) and (c) of this clause by validating or updating all its representations in the Representations and Certifications section of the System for Award Management (SAM) and its other data in SAM, as necessary, to ensure that they reflect the Contractor's current status. The Contractor shall notify the contracting officer in writing within the timeframes specified in paragraph (b) of this clause, or with its offer for an order (see paragraph (c) of this clause), that the data have been validated or updated, and provide the date of the validation or update.

(g) If the Contractor represented that it was other than a small business concern prior to award of this contract, the Contractor may, but is not required to, take the actions required by paragraphs (f) or (h) of this clause.

(h) If the Contractor does not have representations and certifications in SAM, or does not have a representation in SAM for the NAICS code applicable to this contract, the Contractor is required to complete the following rerepresentation and submit it to the contracting office, along with the contract number and the date on which the rerepresentation was completed:

(1) The Contractor represents that it is, is not a small business concern under NAICS Code **237990** assigned to **be determined at award** contract number.

(2) *[Complete only if the Contractor represented itself as a small business concern in paragraph (h)(1) of this clause.]* The Contractor represents that it is, is not, a small disadvantaged business concern as defined in 13 CFR 124.1001.

(3) *[Complete only if the Contractor represented itself as a small business concern in paragraph (h)(1) of this clause.]* The Contractor represents that it is, is not a women-owned small business concern.

(4) Women-owned small business (WOSB) joint venture eligible under the WOSB Program. The Contractor represents that it is, is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). ☐ The Contractor shall enter the name and unique entity identifier of each party to the joint venture: .

(5) Economically disadvantaged women-owned small business (EDWOSB) joint venture. The Contractor represents that it is, is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). ☐ The Contractor shall enter the name and unique entity identifier of each party to the joint venture: .

(6) *[Complete only if the Contractor represented itself as a small business concern in paragraph (h)(1) of this clause.]* The Contractor represents that it is, is not a veteran-owned small business concern.

(7) *[Complete only if the Contractor represented itself as a veteran-owned small business concern in paragraph (h)(6) of this clause.]* The Contractor represents that it is, is not a service-disabled veteran-owned small business concern.

(8) *Service-disabled veteran-owned small business (SDVOSB) joint venture eligible under the SDVOSB Program.* The Contractor represents that it is, is not an SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. ☐ The Contractor shall enter the name and unique entity identifier of each party to the joint venture: .

(9) *[Complete only if the Contractor represented itself as a small business concern in paragraph (h)(1) of this clause.]* The Contractor represents that-

(i) It is, is not a HUBZone small business concern listed, on the date of this representation, on the List of Qualified HUBZone Small Business Concerns maintained by the Small Business Administration, and no material changes in ownership and control, principal office, or HUBZone employee percentage have occurred since it was certified in accordance with 13 CFR part 126; and

(ii) It is, is not a HUBZone joint venture that complies with the requirements of 13 CFR part 126, and the representation in paragraph (h)(8)(i) of this clause is accurate for each HUBZone small business concern participating in the HUBZone joint venture. ☐ The Contractor shall enter the names of each of the HUBZone small business concerns participating in the HUBZone joint venture: . Each HUBZone small business concern participating in the HUBZone joint venture shall submit a separate signed copy of the HUBZone representation.

Contractor to sign and date and insert authorized signer's name and title.]

(End of clause)

52.222-23 Notice of Requirement for Affirmative Action to Ensure Equal Employment Opportunity for Construction.

(Feb 1999)

As prescribed in 22.810(b), insert the following provision:

Notice of Requirement for Affirmative Action to Ensure Equal Employment Opportunity for Construction (Feb 1999)

(a) The offeror's attention is called to the Equal Opportunity clause and the Affirmative Action Compliance Requirements for Construction clause of this solicitation.

(b) The goals for minority and female participation, expressed in percentage terms for the Contractor's aggregate workforce in each trade on all construction work in the covered area, are as follows:

Goals for Minority Participation for Each Trade	Goals for Female Participation for Each Trade
<u>NA</u>	<u>6.9%</u>

These goals are applicable to all the Contractor's construction work performed in the covered area. If the Contractor performs construction work in a geographical area located outside of the covered area, the Contractor shall apply the goals established for the geographical area where the work is actually performed. Goals are published periodically in the *Federal Register* in notice form, and these notices may be obtained from any Office of Federal Contract Compliance Programs office.

(c) The Contractor's compliance with Executive Order 11246, as amended, and the regulations in 41 CFR 60-4 shall be based on (1) its implementation of the Equal Opportunity clause, (2) specific affirmative action obligations required by the clause entitled "Affirmative Action Compliance Requirements for Construction," and (3) its efforts to meet the goals. The hours of minority and female employment and training must be substantially uniform throughout the length of the contract, and in each trade. The Contractor shall make a good faith effort to employ minorities and women evenly on each of its projects. The transfer of minority or female employees or trainees from Contractor to Contractor, or from project to project, for the sole purpose of meeting the Contractor's goals shall be a violation of the contract, Executive Order 11246, as amended, and the regulations in 41 CFR 60-4. Compliance with the goals will be measured against the total work hours performed.

(d) The Contractor shall provide written notification to the Deputy Assistant Secretary for Federal Contract Compliance, U.S. Department of Labor, within 10 working days following award of any construction subcontract in excess of \$10,000 at any tier for construction work under the contract resulting from this solicitation. The notification shall list the-

- (1) Name, address, and telephone number of the subcontractor;
- (2) Employer's identification number of the subcontractor;
- (3) Estimated dollar amount of the subcontract;
- (4) Estimated starting and completion dates of the subcontract; and
- (5) Geographical area in which the subcontract is to be performed.

(e) As used in this Notice, and in any contract resulting from this solicitation, the "covered area" is San Juan, Puerto Rico.

(End of provision)

52.223-3 Hazardous Material Identification and Material Safety Data.

(Feb 2021)

As prescribed in 23.304(a)(1), insert the following clause:

Hazardous Material Identification and Material Safety Data (Feb 2021)

(a) "Hazardous material," as used in this clause, includes any material defined as hazardous under the latest version of Federal Standard No. 313 (including revisions adopted during the term of the contract).

(b) The offeror must list any hazardous material, as defined in paragraph (a) of this clause, to be delivered under this contract. The hazardous material shall be properly identified and include any applicable identification number, such as National Stock Number or Special Item Number. This

information shall also be included on the Material Safety Data Sheet submitted under this contract.

Material (If none, insert None)	Identification No.
_____	_____
_____	_____

(c) This list must be updated during performance of the contract whenever the Contractor determines that any other material to be delivered under this contract is hazardous.

(d) The apparently successful offeror agrees to submit, for each item as required prior to award, a Material Safety Data Sheet, meeting the requirements of 29 CFR 1910.1200(g) and the latest version of Federal Standard No.313, for all hazardous material identified in paragraph (b) of this clause. Data shall be submitted in accordance with Federal Standard No.313, whether or not the apparently successful offeror is the actual manufacturer of these items. Failure to submit the Material Safety Data Sheet prior to award may result in the apparently successful offeror being considered nonresponsible and ineligible for award.

(e) If, after award, there is a change in the composition of the item(s) or a revision to Federal Standard No.313, which renders incomplete or inaccurate the data submitted under paragraph (d) of this clause, the Contractor shall promptly notify the Contracting Officer and resubmit the data.

(f) Neither the requirements of this clause nor any act or failure to act by the Government shall relieve the Contractor of any responsibility or liability for the safety of Government, Contractor, or subcontractor personnel or property.

(g) Nothing contained in this clause shall relieve the Contractor from complying with applicable Federal, State, and local laws, codes, ordinances, and regulations (including the obtaining of licenses and permits) in connection with hazardous material.

(h) The Government's rights in data furnished under this contract with respect to hazardous material are as follows:

(1) To use, duplicate and disclose any data to which this clause is applicable. The purposes of this right are to-

(i) Apprise personnel of the hazards to which they may be exposed in using, handling, packaging, transporting, or disposing of hazardous materials;

(ii) Obtain medical treatment for those affected by the material; and

(iii) Have others use, duplicate, and disclose the data for the Government for these purposes.

(2) To use, duplicate, and disclose data furnished under this clause, in accordance with paragraph (h)(1) of this clause, in precedence over any other clause of this contract providing for rights in data.

(3) The Government is not precluded from using similar or identical data acquired from other sources.

(End of clause)

52.225-11 Buy American-Construction Materials under Trade Agreements.

(Nov 2023)

(a) *Definitions.* As used in this clause-

Caribbean Basin country construction material means a construction material that-

(1) Is wholly the growth, product, or manufacture of a Caribbean Basin country; or

(2) In the case of a construction material that consists in whole or in part of materials from another country, has been substantially transformed in a Caribbean Basin country into a new and different construction material distinct from the materials from which it was transformed.

Commercially available off-the-shelf (COTS) item-

(1) Means any item of supply (including construction material) that is-

(i) A commercial product (as defined in paragraph (1) of the definition of "commercial product" at Federal Acquisition Regulation (FAR) 2.101);

(ii) Sold in substantial quantities in the commercial marketplace; and

(iii) Offered to the Government, under a contract or subcontract at any tier, without modification, in the same form in which it is sold in the commercial marketplace; and

(2) Does not include bulk cargo, as defined in 46 U.S.C.40102(4), such as agricultural products and petroleum products.

Component means an article, material, or supply incorporated directly into a construction material.

Construction material means an article, material, or supply brought to the construction site by the Contractor or subcontractor for incorporation into the building or work. The term also includes an item brought to the site preassembled from articles, materials, or supplies. However, emergency life safety systems, such as emergency lighting, fire alarm, and audio evacuation systems, that are discrete systems incorporated into a public building or

work and that are produced as complete systems, are evaluated as a single and distinct construction material regardless of when or how the individual parts or components of those systems are delivered to the construction site. Materials purchased directly by the Government are supplies, not construction material.

Cost of components means-

(1) For components purchased by the Contractor, the acquisition cost, including transportation costs to the place of incorporation into the construction material (whether or not such costs are paid to a domestic firm), and any applicable duty (whether or not a duty-free entry certificate is issued); or

(2) For components manufactured by the Contractor, all costs associated with the manufacture of the component, including transportation costs as described in paragraph (1) of this definition, plus allocable overhead costs, but excluding profit. Cost of components does not include any costs associated with the manufacture of the construction material.

Critical component means a component that is mined, produced, or manufactured in the United States and deemed critical to the U.S. supply chain. The list of critical components is at FAR 25.105.

Critical item means a domestic construction material or domestic end product that is deemed critical to U.S. supply chain resiliency. The list of critical items is at FAR 25.105.

Designated country means any of the following countries:

(1) A World Trade Organization Government Procurement Agreement (WTO GPA) country (Armenia, Aruba, Australia, Austria, Belgium, Bulgaria, Canada, Croatia, Cyprus, Czech Republic, Denmark, Estonia, Finland, France, Germany, Greece, Hong Kong, Hungary, Iceland, Ireland, Israel, Italy, Japan, Korea (Republic of), Latvia, Liechtenstein, Lithuania, Luxembourg, Malta, Moldova, Montenegro, Netherlands, New Zealand, North Macedonia, Norway, Poland, Portugal, Romania, Singapore, Slovak Republic, Slovenia, Spain, Sweden, Switzerland, Taiwan, Ukraine, or United Kingdom);

(2) A Free Trade Agreement (FTA) country (Australia, Bahrain, Chile, Colombia, Costa Rica, Dominican Republic, El Salvador, Guatemala, Honduras, Korea (Republic of), Mexico, Morocco, Nicaragua, Oman, Panama, Peru, or Singapore);

(3) A least developed country (Afghanistan, Angola, Bangladesh, Benin, Bhutan, Burkina Faso, Burundi, Cambodia, Central African Republic, Chad, Comoros, Democratic Republic of Congo, Djibouti, Equatorial Guinea, Eritrea, Ethiopia, Gambia, Guinea, Guinea-Bissau, Haiti, Kiribati, Laos, Lesotho, Liberia, Madagascar, Malawi, Mali, Mauritania, Mozambique, Nepal, Niger, Rwanda, Samoa, Sao Tome and Principe, Senegal, Sierra Leone, Solomon Islands, Somalia, South Sudan, Tanzania, Timor-Leste, Togo, Tuvalu, Uganda, Vanuatu, Yemen, or Zambia); or

(4) A Caribbean Basin country (Antigua and Barbuda, Aruba, Bahamas, Barbados, Belize, Bonaire, British Virgin Islands, Curacao, Dominica, Grenada, Guyana, Haiti, Jamaica, Montserrat, Saba, St. Kitts and Nevis, St. Lucia, St. Vincent and the Grenadines, Sint Eustatius, Sint Maarten, or Trinidad and Tobago).

Designated country construction material means a construction material that is a WTO GPA country construction material, an FTA country construction material, a least developed country construction material, or a Caribbean Basin country construction material.

Domestic construction material means-

(1) For construction material that does not consist wholly or predominantly of iron or steel or a combination of both-

(i) An unmanufactured construction material mined or produced in the United States; or

(ii) A construction material manufactured in the United States, if-

(A) The cost of its components mined, produced, or manufactured in the United States exceeds 60 percent of the cost of all its components, except that the percentage will be 65 percent for items delivered in calendar years 2024 through 2028 and 75 percent for items delivered starting in calendar year 2029.

(B) The construction material is a COTS item; or

(2) For construction material that consists wholly or predominantly of iron or steel or a combination of both, a construction material manufactured in the United States if the cost of foreign iron and steel constitutes less than 5 percent of the cost of all components used in such construction material. The cost of foreign iron and steel includes but is not limited to the cost of foreign iron or steel mill products (such as bar, billet, slab, wire, plate, or sheet), castings, or forgings utilized in the manufacture of the construction material and a good faith estimate of the cost of all foreign iron or steel components excluding COTS fasteners. Iron or steel components of unknown origin are treated as foreign. If the construction material contains multiple components, the cost of all the materials used in such construction material is calculated in accordance with the definition of "cost of components".

Fastener means a hardware device that mechanically joins or affixes two or more objects together. Examples of fasteners are nuts, bolts, pins, rivets, nails, clips, and screws.

Foreign construction material means a construction material other than a domestic construction material.

Foreign iron and steel means iron or steel products not produced in the United States. Produced in the United States means that all manufacturing processes of the iron or steel must take place in the United States, from the initial melting stage through the application of coatings, except metallurgical processes involving refinement of steel additives. The origin of the elements of the iron or steel is not relevant to the determination of whether it is domestic or foreign.

Free Trade Agreement country construction material means a construction material that-

- (1) Is wholly the growth, product, or manufacture of a Free Trade Agreement (FTA) country; or
- (2) In the case of a construction material that consists in whole or in part of materials from another country, has been substantially transformed in a FTA country into a new and different construction material distinct from the materials from which it was transformed.

Least developed country construction material means a construction material that-

- (1) Is wholly the growth, product, or manufacture of a least developed country; or
- (2) In the case of a construction material that consists in whole or in part of materials from another country, has been substantially transformed in a least developed country into a new and different construction material distinct from the materials from which it was transformed.

Predominantly of iron or steel or a combination of both means that the cost of the iron and steel content exceeds 50 percent of the total cost of all its components. The cost of iron and steel is the cost of the iron or steel mill products (such as bar, billet, slab, wire, plate, or sheet), castings, or forgings utilized in the manufacture of the product and a good faith estimate of the cost of iron or steel components excluding COTS fasteners.

Steel means an alloy that includes at least 50 percent iron, between 0.02 and 2 percent carbon, and may include other elements.

United States means the 50 States, the District of Columbia, and outlying areas.

WTO GPA country construction material means a construction material that-

- (1) Is wholly the growth, product, or manufacture of a WTO GPA country; or
- (2) In the case of a construction material that consists in whole or in part of materials from another country, has been substantially transformed in a WTO GPA country into a new and different construction material distinct from the materials from which it was transformed.

(b) Construction materials.

(1) This clause implements 41 U.S.C. chapter 83, Buy American, by providing a preference for domestic construction material. In accordance with 41 U.S.C. 1907, the domestic content test of the Buy American statute is waived for construction material that is a COTS item, except that for construction material that consists wholly or predominantly of iron or steel or a combination of both, the domestic content test is applied only to the iron and steel content of the construction material, excluding COTS fasteners. (See FAR 12.505(a)(2)). In addition, the Contracting Officer has determined that the WTO GPA and Free Trade Agreements (FTAs) apply to this acquisition. Therefore, the Buy American restrictions are waived for designated country construction materials.

(2) The Contractor shall use only domestic or designated country construction material in performing this contract, except as provided in paragraphs (b)(3) and (b)(4) of this clause.

(3) The requirement in paragraph (b)(2) of this clause does not apply to information technology that is a commercial product or to the construction materials or components listed by the Government as follows:

NONE

(4) The Contracting Officer may add other foreign construction material to the list in paragraph (b)(3) of this clause if the Government determines that-

(i) The cost of domestic construction material would be unreasonable.

(A) *For domestic construction material that is not a critical item or does not contain critical components.*

(1) The cost of a particular domestic construction material subject to the restrictions of the Buy American statute is unreasonable when the cost of such material exceeds the cost of foreign material by more than 20 percent;

(2) For construction material that is not a COTS item and does not consist wholly or predominantly of iron or steel or a combination of both, if the cost of a particular domestic construction material is determined to be unreasonable or there is no domestic offer received, and the low offer is for foreign construction material that does not exceed 55 percent domestic content, the Contracting Officer will treat the lowest offer of foreign construction material that is manufactured in the United States and exceeds 55 percent domestic content as a domestic offer and determine whether the cost of that offer is unreasonable by applying the evaluation factor listed in paragraph (b)(4)(i)(A)(1) of this clause.

(3) The procedures in paragraph (b)(4)(i)(A)(2) of this clause will no longer apply as of January 1, 2030.

(B) *For domestic construction material that is a critical item or contains critical components.*

(1) The cost of a particular domestic construction material that is a critical item or contains critical components, subject to the requirements of the Buy American statute, is unreasonable when the cost of such material exceeds the cost of foreign material by more than 20 percent plus the additional preference factor identified for the critical item or construction material containing critical components listed at FAR 25.105.

(2) For construction material that does not consist wholly or predominantly of iron or steel or a combination of both, if the cost of a particular domestic construction material is determined to be unreasonable or there is no domestic offer received, and the low offer is for foreign construction material that does not exceed 55 percent domestic content, the Contracting Officer will treat the lowest offer of foreign construction material that is manufactured in the United States and exceeds 55 percent domestic content as a domestic offer, and determine whether the cost of that offer is unreasonable by applying the evaluation factor listed in paragraph (b)(4)(i)(B)(1) of this clause.

(3) The procedures in paragraph (b)(4)(i)(B)(2) of this clause will no longer apply as of January 1, 2030.

(ii) The application of the restriction of the Buy American Act to a particular construction material would be impracticable or inconsistent with the public interest; or

(iii) The construction material is not mined, produced, or manufactured in the United States in sufficient and reasonably available commercial quantities of a satisfactory quality.

(c) Request for determination of inapplicability of the Buy American statute.

(1)

(i) Any Contractor request to use foreign construction material in accordance with paragraph (b)(4) of this clause shall include adequate information for Government evaluation of the request, including-

(A) A description of the foreign and domestic construction materials;

(B) Unit of measure;

(C) Quantity;

(D) Price;

(E) Time of delivery or availability;

(F) Location of the construction project;

(G) Name and address of the proposed supplier; and

(H) A detailed justification of the reason for use of foreign construction materials cited in accordance with paragraph (b)(3) of this clause.

(ii) A request based on unreasonable cost shall include a reasonable survey of the market and a completed price comparison table in the format in paragraph (d) of this clause.

(iii) The price of construction material shall include all delivery costs to the construction site and any applicable duty (whether or not a duty-free certificate may be issued).

(iv) Any Contractor request for a determination submitted after contract award shall explain why the Contractor could not reasonably foresee the need for such determination and could not have requested the determination before contract award. If the Contractor does not submit a satisfactory explanation, the Contracting Officer need not make a determination.

(2) If the Government determines after contract award that an exception to the Buy American statute applies and the Contracting Officer and the Contractor negotiate adequate consideration, the Contracting Officer will modify the contract to allow use of the foreign construction material. However, when the basis for the exception is the unreasonable price of a domestic construction material, adequate consideration is not less than the differential established in paragraph (b)(4)(i) of this clause.

(3) Unless the Government determines that an exception to the Buy American statute applies, use of foreign construction material is noncompliant with the Buy American statute.

(d) Data. To permit evaluation of requests under paragraph (c) of this clause based on unreasonable cost, the Contractor shall include the following information and any applicable supporting data based on the survey of suppliers:

Foreign and Domestic Construction Materials Price Comparison			
Construction Material Description	Unit of Measure	Quantity	Price (Dollars)*
Item1			

Foreign construction material	_____	_____	_____
Domestic construction material	_____	_____	_____
Item1			
Foreign construction material	_____	_____	_____
Domestic construction material	_____	_____	_____

[* Include all delivery costs to the construction site and any applicable duty (whether or not a duty-free entry certificate is issued)].

[List name, address, telephone number, and contact for suppliers surveyed. Attach copy of response; if oral, attach summary.]

[Include other applicable supporting information.]

(End of clause)

52.228-1 Bid Guarantee.

(Sep 1996)

As prescribed in 28.101-2 , insert a provision or clause substantially as follows:

Bid Guarantee (Sept 1996)

(a) Failure to furnish a bid guarantee in the proper form and amount, by the time set for opening of bids, may be cause for rejection of the bid.

(b) The bidder shall furnish a bid guarantee in the form of a firm commitment, *e.g.*, bid bond supported by good and sufficient surety or sureties acceptable to the Government, postal money order, certified check, cashier's check, irrevocable letter of credit, or, under Treasury Department regulations, certain bonds or notes of the United States. The Contracting Officer will return bid guarantees, other than bid bonds-

(1) To unsuccessful bidders as soon as practicable after the opening of bids; and

(2) To the successful bidder upon execution of contractual documents and bonds (including any necessary coinsurance or reinsurance agreements), as required by the bid as accepted.

(c) The amount of the bid guarantee shall be **20 percent** of the bid price or **\$3 million**, whichever is less.

(d) If the successful bidder, upon acceptance of its bid by the Government within the period specified for acceptance, fails to execute all contractual documents or furnish executed bond(s) within 10 days after receipt of the forms by the bidder, the Contracting Officer may terminate the contract for default.

(e) In the event the contract is terminated for default, the bidder is liable for any cost of acquiring the work that exceeds the amount of its bid, and the bid guarantee is available to offset the difference.

(End of clause)

52.228-15 Performance and Payment Bonds-Construction.

(Jun 2020)

As prescribed in 28.102-3(a), insert a clause substantially as follows:

Performance and Payment Bonds-Construction (Jun 2020)

(a) Definitions. As used in this clause-

Original contract price means the award price of the contract; or, for requirements contracts, the price payable for the estimated total quantity; or, for indefinite-quantity contracts, the price payable for the specified minimum quantity. Original contract price does not include the price of any options, except those options exercised at the time of contract award.

(b) Amount of required bonds. Unless the resulting contract price is valued at or below the threshold specified in Federal Acquisition Regulation 28.102-1(a) on the date of award of this contract, the successful offeror shall furnish performance and payment bonds to the Contracting Officer as follows:

(1) Performance bonds (Standard Form 25). The penal amount of performance bonds at the time of contract award shall be 100 percent of the original contract price.

(2) Payment Bonds (Standard Form 25A). The penal amount of payment bonds at the time of contract award shall be 100 percent of the original contract price.

(3) Additional bond protection.

(i) The Government may require additional performance and payment bond protection if the contract price is increased. The increase in protection generally will equal 100 percent of the increase in contract price.

(ii) The Government may secure the additional protection by directing the Contractor to increase the penal amount of the existing bond or to obtain an additional bond.

(c) Furnishing executed bonds. The Contractor shall furnish all executed bonds, including any necessary reinsurance agreements, to the Contracting Officer, within the time period specified in the Bid Guarantee provision of the solicitation, or otherwise specified by the Contracting Officer, but in any event, before starting work.

(d) Surety or other security for bonds. The bonds shall be in the form of firm commitment, supported by corporate sureties whose names appear on the list contained in Treasury Department Circular 570, individual sureties, or by other acceptable security such as postal money order, certified check, cashier's check, irrevocable letter of credit, or, in accordance with Treasury Department regulations, certain bonds or notes of the United States. Treasury Circular 570 is published in the Federal Register or may be obtained from the:

U.S. Department of the Treasury,

Financial Management,

Service Surety Bond Branch,

3700 East West Highway,

Room 6 F01,

Hyattsville, MD 20782.

Or via the internet at <http://www.fms.treas.gov/c570/>.

(e) Notice of subcontractor waiver of protection (40 U.S.C. 3133(c)). Any waiver of the right to sue on the payment bond is void unless it is in writing, signed by the person whose right is waived, and executed after such person has first furnished labor or material for use in the performance of the contract.

(End of clause)

52.232-5 Payments under Fixed-Price Construction Contracts.

(May 2014)

As prescribed in 32.111(a)(5), insert the following clause:

Payments under Fixed-Price Construction Contracts (May 2014)

(a) Payment of price. The Government shall pay the Contractor the contract price as provided in this contract.

(b) Progress payments. The Government shall make progress payments monthly as the work proceeds, or at more frequent intervals as determined by the Contracting Officer, on estimates of work accomplished which meets the standards of quality established under the contract, as approved by the Contracting Officer.

(1) The Contractor's request for progress payments shall include the following substantiation:

(i) An itemization of the amounts requested, related to the various elements of work required by the contract covered by the payment requested.

(ii) A listing of the amount included for work performed by each subcontractor under the contract.

(iii) A listing of the total amount of each subcontract under the contract.

(iv) A listing of the amounts previously paid to each such subcontractor under the contract.

(v) Additional supporting data in a form and detail required by the Contracting Officer.

(2) In the preparation of estimates, the Contracting Officer may authorize material delivered on the site and preparatory work done to be taken into consideration. Material delivered to the Contractor at locations other than the site also may be taken into consideration if-

(i) Consideration is specifically authorized by this contract; and

(ii) The Contractor furnishes satisfactory evidence that it has acquired title to such material and that the material will be used to perform this contract.

(c) Contractor certification. Along with each request for progress payments, the Contractor shall furnish the following certification, or payment shall not be made: (However, if the Contractor elects to delete paragraph (c)(4) from the certification, the certification is still acceptable.)

I hereby certify, to the best of my knowledge and belief, that-

(1) The amounts requested are only for performance in accordance with the specifications, terms, and conditions of the contract;

(2) All payments due to subcontractors and suppliers from previous payments received under the contract have been made, and timely payments will be made from the proceeds of the payment covered by this certification, in accordance with subcontract agreements and the requirements of Chapter 39 of Title 31, United States Code;

(3) This request for progress payments does not include any amounts which the prime contractor intends to withhold or retain from a subcontractor or supplier in accordance with the terms and conditions of the subcontract; and

(4) This certification is not to be construed as final acceptance of a subcontractor's performance.

_____(Name)

_____(Title)

_____(Date)

(d) Refund of unearned amounts. If the Contractor, after making a certified request for progress payments, discovers that a portion or all of such request constitutes a payment for performance by the Contractor that fails to conform to the specifications, terms, and conditions of this contract (hereinafter referred to as the "unearned amount"), the Contractor shall-

(1) Notify the Contracting Officer of such performance deficiency; and

(2) Be obligated to pay the Government an amount (computed by the Contracting Officer in the manner provided in paragraph (j) of this clause) equal to interest on the unearned amount from the 8 thday after the date of receipt of the unearned amount until-

(i) The date the Contractor notifies the Contracting Officer that the performance deficiency has been corrected; or

(ii) The date the Contractor reduces the amount of any subsequent certified request for progress payments by an amount equal to the unearned amount.

(e) Retainage. If the Contracting Officer finds that satisfactory progress was achieved during any period for which a progress payment is to be made, the Contracting Officer shall authorize payment to be made in full. However, if satisfactory progress has not been made, the Contracting Officer may retain a maximum of 10 percent of the amount of the payment until satisfactory progress is achieved. When the work is substantially complete, the Contracting Officer may retain from previously withheld funds and future progress payments that amount the Contracting Officer considers adequate for protection of the Government and shall release to the Contractor all the remaining withheld funds. Also, on completion and acceptance of each separate building, public work, or other division of the contract, for which the price is stated separately in the contract, payment shall be made for the completed work without retention of a percentage.

(f) Title, liability, and reservation of rights. All material and work covered by progress payments made shall, at the time of payment, become the sole property of the Government, but this shall not be construed as-

(1) Relieving the Contractor from the sole responsibility for all material and work upon which payments have been made or the restoration of any damaged work; or

(2) Waiving the right of the Government to require the fulfillment of all of the terms of the contract.

(g) Reimbursement for bond premiums. In making these progress payments, the Government shall, upon request, reimburse the Contractor for the amount of premiums paid for performance and payment bonds (including coinsurance and reinsurance agreements, when applicable) after the Contractor has furnished evidence of full payment to the surety. The retainage provisions in paragraph (e) of this clause shall not apply to that portion of progress payments attributable to bond premiums.

(h) Final payment. The Government shall pay the amount due the Contractor under this contract after-

(1) Completion and acceptance of all work;

(2) Presentation of a properly executed voucher; and

(3) Presentation of release of all claims against the Government arising by virtue of this contract, other than claims, in stated amounts, that the Contractor has specifically excepted from the operation of the release. A release may also be required of the assignee if the Contractor's claim to amounts payable under this contract has been assigned under the Assignment of Claims Act of 1940 (31 U.S.C.3727 and 41 U.S.C.6305).

(i) Limitation because of undefinitized work. Notwithstanding any provision of this contract, progress payments shall not exceed 80 percent on work accomplished on undefinitized contract actions. A "contract action" is any action resulting in a contract, as defined in FAR subpart 2.1, including contract modifications for additional supplies or services, but not including contract modifications that are within the scope and under the terms of the contract, such as contract modifications issued pursuant to the Changes clause, or funding and other administrative changes.

(j) Interest computation on unearned amounts. In accordance with 31 U.S.C.3903(c)(1), the amount payable under paragraph (d)(2) of this clause shall be-

(1) Computed at the rate of average bond equivalent rates of 91-day Treasury bills auctioned at the most recent auction of such bills prior to the date the Contractor receives the unearned amount; and

(2) Deducted from the next available payment to the Contractor.

(End of clause)

52.232-8 Discounts for Prompt Payment.

(Feb 2002)

As prescribed in 32.111(b)(1), insert the following clause:

Discounts for Prompt Payment (Feb 2002)

(a) Discounts for prompt payment will not be considered in the evaluation of offers. However, any offered discount will form a part of the award, and will be taken if payment is made within the discount period indicated in the offer by the offeror. As an alternative to offering a discount for prompt payment in conjunction with the offer, offerors awarded contracts may include discounts for prompt payment on individual invoices.

(b) In connection with any discount offered for prompt payment, time shall be computed from the date of the invoice. If the Contractor has not placed a date on the invoice, the due date shall be calculated from the date the designated billing office receives a proper invoice, provided the agency annotates such invoice with the date of receipt at the time of receipt. For the purpose of computing the discount earned, payment shall be considered to have been made on the date that appears on the payment check or, for an electronic funds transfer, the specified payment date. When the discount date falls on a Saturday, Sunday, or legal holiday when Federal Government offices are closed and Government business is not expected to be conducted, payment may be made on the following business day.

(End of clause)

52.232-9 Limitation on Withholding of Payments.

(Apr 1984)

As prescribed in 32.111(b)(2), insert a clause substantially as follows, appropriately modified with respect to payment due dates in accordance with agency regulations, in solicitations and contracts when a supply contract, service contract, time-and-materials contract, labor-hour contract, or research and development contract is contemplated that includes two or more terms authorizing the temporary withholding of amounts otherwise payable to the contractor for supplies delivered or services performed:

Limitation on Withholding of Payments (Apr 1984)

If more than one clause or Schedule term of this contract authorizes the temporary withholding of amounts otherwise payable to the Contractor for supplies delivered or services performed, the total of the amounts withheld at any one time shall not exceed the greatest amount that may be withheld under any one clause or Schedule term at that time; provided, that this limitation shall not apply to-

(a) Withholdings pursuant to any clause relating to wages or hours of employees;

(b) Withholdings not specifically provided for by this contract;

(c) The recovery of overpayments; and

(d) Any other withholding for which the Contracting Officer determines that this limitation is inappropriate.

(End of clause)

52.232-16 Progress Payments.

(Nov 2021)

As prescribed in 32.502-4(a), insert the following clause:

Progress Payments (Nov 2021)

The Government will make progress payments to the Contractor when requested as work progresses, but not more frequently than monthly, in amounts of \$2,500 or more approved by the Contracting Officer, under the following conditions:

(a) Computation of amounts.

(1) Unless the Contractor requests a smaller amount, the Government will compute each progress payment as 80 percent of the Contractor's total costs incurred under this contract whether or not actually paid, plus financing payments to subcontractors (see paragraph (j) of this clause), less the sum of all previous progress payments made by the Government under this contract. The Contracting Officer will consider cost of money that would be allowable under Federal Acquisition Regulation (FAR) 31.205-10 as an incurred cost for progress payment purposes.

(2) The amount of financing and other payments for supplies and services purchased directly for the contract are limited to the amounts that have been paid by cash, check, or other forms of payment, or that are determined due and will be paid to subcontractors-

(i) In accordance with the terms and conditions of a subcontract or invoice; and

(ii) Ordinarily within 30 days of the submission of the Contractor's payment request to the Government.

(3) The Government will exclude accrued costs of Contractor contributions under employee pension plans until actually paid unless-

(i) The Contractor's practice is to make contributions to the retirement fund quarterly or more frequently; and

(ii) The contribution does not remain unpaid 30 days after the end of the applicable quarter or shorter payment period (any contribution remaining unpaid shall be excluded from the Contractor's total costs for progress payments until paid).

(4) The Contractor shall not include the following in total costs for progress payment purposes in paragraph (a)(1) of this clause:

(i) Costs that are not reasonable, allocable to this contract, and consistent with sound and generally accepted accounting principles and practices.

(ii) Costs incurred by subcontractors or suppliers.

(iii) Costs ordinarily capitalized and subject to depreciation or amortization except for the properly depreciated or amortized portion of such costs.

(iv) Payments made or amounts payable to subcontractors or suppliers, except for-

(A) Completed work, including partial deliveries, to which the Contractor has acquired title; and

(B) Work under cost-reimbursement or time-and-material subcontracts to which the Contractor has acquired title.

(5) The amount of unliquidated progress payments may exceed neither (i) the progress payments made against incomplete work (including allowable unliquidated progress payments to subcontractors) nor (ii) the value, for progress payment purposes, of the incomplete work. Incomplete work shall be considered to be the supplies and services required by this contract, for which delivery and invoicing by the Contractor and acceptance by the Government are incomplete.

(6) The total amount of progress payments shall not exceed 80 percent of the total contract price.

(7) If a progress payment or the unliquidated progress payments exceed the amounts permitted by paragraphs (a)(4) or (a)(5) of this clause, the Contractor shall repay the amount of such excess to the Government on demand.

(8) Notwithstanding any other terms of the contract, the Contractor agrees not to request progress payments in dollar amounts of less than \$2,500. The Contracting Officer may make exceptions.

(9) The costs applicable to items delivered, invoiced, and accepted shall not include costs in excess of the contract price of the items.

(b) Liquidation. Except as provided in the Termination for Convenience of the Government clause, all progress payments shall be liquidated by deducting from any payment under this contract, other than advance or progress payments, the unliquidated progress payments, or 80 percent of the amount invoiced, whichever is less. The Contractor shall repay to the Government any amounts required by a retroactive price reduction, after computing liquidations and payments on past invoices at the reduced prices and adjusting the unliquidated progress payments accordingly. The Government reserves the right to unilaterally change from the ordinary liquidation rate to an alternate rate when deemed appropriate for proper contract financing.

(c) Reduction or suspension. The Contracting Officer may reduce or suspend progress payments, increase the rate of liquidation, or take a combination of these actions, after finding on substantial evidence any of the following conditions:

(1) The Contractor failed to comply with any material requirement of this contract (which includes paragraphs (f) and (g) of this clause).

(2) Performance of this contract is endangered by the Contractor's-

(i) Failure to make progress; or

(ii) Unsatisfactory financial condition.

(3) Inventory allocated to this contract substantially exceeds reasonable requirements.

(4) The Contractor is delinquent in payment of the costs of performing this contract in the ordinary course of business.

(5) The fair value of the undelivered work is less than the amount of unliquidated progress payments for that work.

(6) The Contractor is realizing less profit than that reflected in the establishment of any alternate liquidation rate in paragraph (b) of this clause, and that rate is less than the progress payment rate stated in paragraph (a)(1) of this clause.

(d) Title.

(1) Title to the property described in this paragraph (d) shall vest in the Government. Vestiture shall be immediately upon the date of this contract, for property acquired or produced before that date. Otherwise, vestiture shall occur when the property is or should have been allocable or properly chargeable to this contract.

(2) "Property," as used in this clause, includes all of the below-described items acquired or produced by the Contractor that are or should be allocable or properly chargeable to this contract under sound and generally accepted accounting principles and practices.

(i) Parts, materials, inventories, and work in process;

(ii) Special tooling and special test equipment to which the Government is to acquire title;

(iii) Nondurable (i.e., noncapital) tools, jigs, dies, fixtures, molds, patterns, taps, gauges, test equipment, and other similar manufacturing aids, title to which would not be obtained as special tooling under paragraph (d)(2)(ii) of this clause; and

(iv) Drawings and technical data, to the extent the Contractor or subcontractors are required to deliver them to the Government by other clauses of this contract.

(3) Although title to property is in the Government under this clause, other applicable clauses of this contract; e.g., the termination clauses, shall determine the handling and disposition of the property.

(4) The Contractor may sell any scrap resulting from production under this contract without requesting the Contracting Officer's approval, but the proceeds shall be credited against the costs of performance.

(5) To acquire for its own use or dispose of property to which title is vested in the Government under this clause, the Contractor must obtain the Contracting Officer's advance approval of the action and the terms. The Contractor shall (i) exclude the allocable costs of the property from the costs of contract performance, and (ii) repay to the Government any amount of unliquidated progress payments allocable to the property. Repayment may be by cash or credit memorandum.

(6) When the Contractor completes all of the obligations under this contract, including liquidation of all progress payments, title shall vest in the Contractor for all property (or the proceeds thereof) not-

(i) Delivered to, and accepted by, the Government under this contract; or

(ii) Incorporated in supplies delivered to, and accepted by, the Government under this contract and to which title is vested in the Government under this clause.

(7) The terms of this contract concerning liability for Government-furnished property shall not apply to property to which the Government acquired title solely under this clause.

(e) Risk of loss. Before delivery to and acceptance by the Government, the Contractor shall bear the risk of loss for property, the title to which vests in the Government under this clause, except to the extent the Government expressly assumes the risk. The Contractor shall repay the Government an amount equal to the unliquidated progress payments that are based on costs allocable to property that is lost (see 45.101).

(f) Control of costs and property. The Contractor shall maintain an accounting system and controls adequate for the proper administration of this clause.

(g) Reports, forms, and access to records.

(1) The Contractor shall promptly furnish reports, certificates, financial statements, and other pertinent information (including estimates to complete) reasonably requested by the Contracting Officer for the administration of this clause. Also, the Contractor shall give the Government reasonable opportunity to examine and verify the Contractor's books, records, and accounts.

(2) The Contractor shall furnish estimates to complete that have been developed or updated within six months of the date of the progress payment request. The estimates to complete shall represent the Contractor's best estimate of total costs to complete all remaining contract work required under the contract. The estimates shall include sufficient detail to permit Government verification.

(3) Each Contractor request for progress payment shall:

(i) Be submitted on Standard Form 1443, Contractor's Request for Progress Payment, or the electronic equivalent as required by agency regulations, in accordance with the form instructions and the contract terms; and

(ii) Include any additional supporting documentation requested by the Contracting Officer.

(h) Special terms regarding default. If this contract is terminated under the Default clause, (i) the Contractor shall, on demand, repay to the Government the amount of unliquidated progress payments and (ii) title shall vest in the Contractor, on full liquidation of progress payments, for all property for which the Government elects not to require delivery under the Default clause. The Government shall be liable for no payment except as provided by the Default clause.

(i) Reservations of rights.

(1) No payment or vesting of title under this clause shall-

(i) Excuse the Contractor from performance of obligations under this contract; or

(ii) Constitute a waiver of any of the rights or remedies of the parties under the contract.

(2) The Government's rights and remedies under this clause-

(i) Shall not be exclusive but rather shall be in addition to any other rights and remedies provided by law or this contract; and

(ii) Shall not be affected by delayed, partial, or omitted exercise of any right, remedy, power, or privilege, nor shall such exercise or any single exercise preclude or impair any further exercise under this clause or the exercise of any other right, power, or privilege of the Government.

(j) Financing payments to subcontractors. The financing payments to subcontractors mentioned in paragraphs (a)(1) and (a)(2) of this clause shall be all financing payments to subcontractors or divisions, if the following conditions are met:

(1) The amounts included are limited to-

(i) The unliquidated remainder of financing payments made; plus

(ii) Any unpaid subcontractor requests for financing payments.

(2) The subcontract or interdivisional order is expected to involve a minimum of approximately 6 months between the beginning of work and the first delivery; or, if the subcontractor is a small business concern, 4 months.

(3) If the financing payments are in the form of progress payments, the terms of the subcontract or interdivisional order concerning progress payments-

(i) Are substantially similar to the terms of this clause for any subcontractor that is a large business concern, or this clause with its Alternate I for any subcontractor that is a small business concern;

(ii) Are at least as favorable to the Government as the terms of this clause;

(iii) Are not more favorable to the subcontractor or division than the terms of this clause are to the Contractor;

(iv) Are in conformance with the requirements of FAR 32.504(e); and

(v) Subordinate all subcontractor rights concerning property to which the Government has title under the subcontract to the Government's right to require delivery of the property to the Government if-

(A) The Contractor defaults; or

(B) The subcontractor becomes bankrupt or insolvent.

(4) If the financing payments are in the form of performance-based payments, the terms of the subcontract or interdivisional order concerning payments-

(i) Are substantially similar to the Performance-Based Payments clause at FAR 52.232-32 and meet the criteria for, and definition of, performance-based payments in FAR part 32;

(ii) Are in conformance with the requirements of FAR 32.504(f); and

(iii) Subordinate all subcontractor rights concerning property to which the Government has title under the subcontract to the Government's right to require delivery of the property to the Government if-

(A) The Contractor defaults; or

(B) The subcontractor becomes bankrupt or insolvent.

(5) If the financing payments are in the form of commercial product or commercial service financing payments, the terms of the subcontract or interdivisional order concerning payments-

(i) Are constructed in accordance with FAR 32.206(c) and included in a subcontract for a commercial product or commercial service purchase that meets the definition and standards for acquisition of commercial products and commercial services in FAR parts 2 and 12;

(ii) Are in conformance with the requirements of FAR 32.504(g); and

(iii) Subordinate all subcontractor rights concerning property to which the Government has title under the subcontract to the Government's right to require delivery of the property to the Government if-

(A) The Contractor defaults; or

(B) The subcontractor becomes bankrupt or insolvent.

(6) If financing is in the form of progress payments, the progress payment rate in the subcontract is the customary rate used by the contracting agency, depending on whether the subcontractor is or is not a small business concern.

(7) Concerning any proceeds received by the Government for property to which title has vested in the Government under the subcontract terms, the parties agree that the proceeds shall be applied to reducing any unliquidated financing payments by the Government to the Contractor under this contract.

(8) If no unliquidated financing payments to the Contractor remain, but there are unliquidated financing payments that the Contractor has made to any subcontractor, the Contractor shall be subrogated to all the rights the Government obtained through the terms required by this clause to be in any subcontract, as if all such rights had been assigned and transferred to the Contractor.

(9) To facilitate small business participation in subcontracting under this contract, the Contractor shall provide financing payments to small business concerns, in conformity with the standards for customary contract financing payments stated in FAR 32.113. The Contractor shall not consider the need for such financing payments as a handicap or adverse factor in the award of subcontracts.

(k) Limitations on undefinitized contract actions. Notwithstanding any other progress payment provisions in this contract, progress payments may not exceed 80 percent of costs incurred on work accomplished under undefinitized contract actions. A "contract action" is any action resulting in a contract, as defined in subpart 2.1, including contract modifications for additional supplies or services, but not including contract modifications that are within the scope and under the terms of the contract, such as contract modifications issued pursuant to the Changes clause, or funding and other administrative changes. This limitation shall apply to the costs incurred, as computed in accordance with paragraph (a) of this clause, and shall remain in effect until the contract action is definitized. Costs incurred which are subject to this limitation shall be segregated on Contractor progress payment requests and invoices from those costs eligible for higher progress payment rates. For purposes of progress payment liquidation, as described in paragraph (b) of this clause, progress payments for undefinitized contract actions shall be liquidated at 80 percent of the amount invoiced for work performed under the undefinitized contract action as long as the contract action remains undefinitized. The amount of unliquidated progress payments for undefinitized contract actions shall not exceed 80 percent of the maximum liability of the Government under the undefinitized contract action or such lower limit specified elsewhere in the contract. Separate limits may be specified for separate actions.

(l) Due date. The designated payment office will make progress payments on the ____ [Contracting Officer insert date as prescribed by agency head; if not prescribed, insert "30th"] day after the designated billing office receives a proper progress payment request. In the event that the Government requires an audit or other review of a specific progress payment request to ensure compliance with the terms and conditions of the contract, the designated payment office is not compelled to make payment by the specified due date. Progress payments are considered contract financing and are not subject to the interest penalty provisions of the Prompt Payment Act.

(m) Progress payments under indefinite-delivery contracts. The Contractor shall account for and submit progress payment requests under individual orders as if the order constituted a separate contract, unless otherwise specified in this contract.

(End of clause)

52.232-27 Prompt Payment for Construction Contracts.

(Jan 2017)

As prescribed in 32.908(b), insert the following clause:

Prompt Payment for Construction Contracts (Jan 2017)

Notwithstanding any other payment terms in this contract, the Government will make invoice payments under the terms and conditions specified in this clause. The Government considers payment as being made on the day a check is dated or the date of an electronic funds transfer. Definitions of

pertinent terms are set forth in sections 2.101, 32.001, and 32.902 of the Federal Acquisition Regulation. All days referred to in this clause are calendar days, unless otherwise specified. (However, see paragraph (a)(3) concerning payments due on Saturdays, Sundays, and legal holidays.)

(a) Invoice payments-

(1) Types of invoice payments. For purposes of this clause, there are several types of invoice payments that may occur under this contract, as follows:

(i) Progress payments, if provided for elsewhere in this contract, based on Contracting Officer approval of the estimated amount and value of work or services performed, including payments for reaching milestones in any project.

(A) The due date for making such payments is 14 days after the designated billing office receives a proper payment request. If the designated billing office fails to annotate the payment request with the actual date of receipt at the time of receipt, the payment due date is the 14 thday after the date of the Contractor's payment request, provided the designated billing office receives a proper payment request and there is no disagreement over quantity, quality, or Contractor compliance with contract requirements.

(B) The due date for payment of any amounts retained by the Contracting Officer in accordance with the clause at 52.232-5, Payments Under Fixed-Price Construction Contracts, is as specified in the contract or, if not specified, 30 days after approval by the Contracting Officer for release to the Contractor.

(ii) Final payments based on completion and acceptance of all work and presentation of release of all claims against the Government arising by virtue of the contract, and payments for partial deliveries that have been accepted by the Government (e.g., each separate building, public work, or other division of the contract for which the price is stated separately in the contract).

(A) The due date for making such payments is the later of the following two events:

(1) The 30 thday after the designated billing office receives a proper invoice from the Contractor.

(2) The 30 thday after Government acceptance of the work or services completed by the Contractor. For a final invoice when the payment amount is subject to contract settlement actions (e.g., release of claims), acceptance is deemed to occur on the effective date of the contract settlement.

(B) If the designated billing office fails to annotate the invoice with the date of actual receipt at the time of receipt, the invoice payment due date is the 30 thday after the date of the Contractor's invoice, provided the designated billing office receives a proper invoice and there is no disagreement over quantity, quality, or Contractor compliance with contract requirements.

(2) Contractor's invoice. The Contractor shall prepare and submit invoices to the designated billing office specified in the contract. A proper invoice must include the items listed in paragraphs (a)(2)(i) through (a)(2)(xi) of this clause. If the invoice does not comply with these requirements, the designated billing office must return it within 7 days after receipt, with the reasons why it is not a proper invoice. When computing any interest penalty owed the Contractor, the Government will take into account if the Government notifies the Contractor of an improper invoice in an untimely manner.

(i) Name and address of the Contractor.

(ii) Invoice date and invoice number. (The Contractor should date invoices as close as possible to the date of mailing or transmission.)

(iii) Contract number or other authorization for work or services performed (including order number and line item number).

(iv) Description of work or services performed.

(v) Delivery and payment terms (e.g., discount for prompt payment terms).

(vi) Name and address of Contractor official to whom payment is to be sent (must be the same as that in the contract or in a proper notice of assignment).

(vii) Name (where practicable), title, phone number, and mailing address of person to notify in the event of a defective invoice.

(viii) For payments described in paragraph (a)(1)(i) of this clause, substantiation of the amounts requested and certification in accordance with the requirements of the clause at 52.232-5, Payments Under Fixed-Price Construction Contracts.

(ix) Taxpayer Identification Number (TIN). The Contractor shall include its TIN on the invoice only if required elsewhere in this contract.

(x) Electronic funds transfer (EFT) banking information.

(A) The Contractor shall include EFT banking information on the invoice only if required elsewhere in this contract.

(B) If EFT banking information is not required to be on the invoice, in order for the invoice to be a proper invoice, the Contractor shall have submitted correct EFT banking information in accordance with the applicable solicitation provision (e.g., 52.232-38, Submission of Electronic Funds Transfer Information with Offer), contract clause (e.g., 52.232-33, Payment by Electronic Funds Transfer-System for Award Management, or 52.232-34, Payment by Electronic Funds Transfer-Other Than System for Award Management), or applicable agency procedures.

(C) EFT banking information is not required if the Government waived the requirement to pay by EFT.

(xi) Any other information or documentation required by the contract.

(3) Interest penalty. The designated payment office will pay an interest penalty automatically, without request from the Contractor, if payment is not made by the due date and the conditions listed in paragraphs (a)(3)(i) through (a)(3)(iii) of this clause are met, if applicable. However, when the due date falls on a Saturday, Sunday, or legal holiday, the designated payment office may make payment on the following working day without incurring a late payment interest penalty.

(i) The designated billing office received a proper invoice.

(ii) The Government processed a receiving report or other Government documentation authorizing payment and there was no disagreement over quantity, quality, Contractor compliance with any contract term or condition, or requested progress payment amount.

(iii) In the case of a final invoice for any balance of funds due the Contractor for work or services performed, the amount was not subject to further contract settlement actions between the Government and the Contractor.

(4) Computing penalty amount. The Government will compute the interest penalty in accordance with the Office of Management and Budget prompt payment regulations at 5 CFR Part 1315.

(i) For the sole purpose of computing an interest penalty that might be due the Contractor for payments described in paragraph (a)(1)(ii) of this clause, Government acceptance or approval is deemed to occur constructively on the 7 thday after the Contractor has completed the work or services in accordance with the terms and conditions of the contract. If actual acceptance or approval occurs within the constructive acceptance or approval period, the Government will base the determination of an interest penalty on the actual date of acceptance or approval. Constructive acceptance or constructive approval requirements do not apply if there is a disagreement over quantity, quality, or Contractor compliance with a contract provision. These requirements also do not compel Government officials to accept work or services, approve Contractor estimates, perform contract administration functions, or make payment prior to fulfilling their responsibilities.

(ii) The prompt payment regulations at 5 CFR1315.10(c) do not require the Government to pay interest penalties if payment delays are due to disagreement between the Government and the Contractor over the payment amount or other issues involving contract compliance, or on amounts temporarily withheld or retained in accordance with the terms of the contract. The Government and the Contractor shall resolve claims involving disputes, and any interest that may be payable in accordance with the clause at FAR 52.233-1, Disputes.

(5) Discounts for prompt payment. The designated payment office will pay an interest penalty automatically, without request from the Contractor, if the Government takes a discount for prompt payment improperly. The Government will calculate the interest penalty in accordance with the prompt payment regulations at 5 CFR Part 1315.

(6) Additional interest penalty.

(i) The designated payment office will pay a penalty amount, calculated in accordance with the prompt payment regulations at 5 CFR Part 1315 in addition to the interest penalty amount only if-

(A) The Government owes an interest penalty of \$1 or more;

(B) The designated payment office does not pay the interest penalty within 10 days after the date the invoice amount is paid; and

(C) The Contractor makes a written demand to the designated payment office for additional penalty payment, in accordance with paragraph (a)(6)(ii) of this clause, postmarked not later than 40 days after the date the invoice amount is paid.

(ii)

(A) The Contractor shall support written demands for additional penalty payments with the following data. The Government will not request any additional data. The Contractor shall-

(1) Specifically assert that late payment interest is due under a specific invoice, and request payment of all overdue late payment interest penalty and such additional penalty as may be required;

(2) Attach a copy of the invoice on which the unpaid late payment interest was due; and

(3) State that payment of the principal has been received, including the date of receipt.

(B) If there is no postmark or the postmark is illegible-

(1) The designated payment office that receives the demand will annotate it with the date of receipt provided the demand is received on or before the 40 thday after payment was made; or

(2) If the designated payment office fails to make the required annotation, the Government will determine the demand's validity based on the date the Contractor has placed on the demand, provided such date is no later than the 40 thday after payment was made.

(b) Contract financing payments. If this contract provides for contract financing, the Government will make contract financing payments in accordance with the applicable contract financing clause.

(c) Subcontract clause requirements. The Contractor shall include in each subcontract for property or services (including a material supplier) for the purpose of performing this contract the following:

(1) Prompt payment for subcontractors. A payment clause that obligates the Contractor to pay the subcontractor for satisfactory performance under its subcontract not later than 7 days from receipt of payment out of such amounts as are paid to the Contractor under this contract.

(2) Interest for subcontractors. An interest penalty clause that obligates the Contractor to pay to the subcontractor an interest penalty for each payment not made in accordance with the payment clause-

(i) For the period beginning on the day after the required payment date and ending on the date on which payment of the amount due is made; and

(ii) Computed at the rate of interest established by the Secretary of the Treasury, and published in the Federal Register, for interest payments under 41 U.S.C. 7109 in effect at the time the Contractor accrues the obligation to pay an interest penalty.

(3) Subcontractor clause flowdown. A clause requiring each subcontractor to-

(i) Include a payment clause and an interest penalty clause conforming to the standards set forth in paragraphs (c)(1) and (c)(2) of this clause in each of its subcontracts; and

(ii) Require each of its subcontractors to include such clauses in their subcontracts with each lower-tier subcontractor or supplier.

(d) Subcontract clause interpretation. The clauses required by paragraph (c) of this clause shall not be construed to impair the right of the Contractor or a subcontractor at any tier to negotiate, and to include in their subcontract, provisions that-

(1) Retainage permitted. Permit the Contractor or a subcontractor to retain (without cause) a specified percentage of each progress payment otherwise due to a subcontractor for satisfactory performance under the subcontract without incurring any obligation to pay a late payment interest penalty, in accordance with terms and conditions agreed to by the parties to the subcontract, giving such recognition as the parties deem appropriate to the ability of a subcontractor to furnish a performance bond and a payment bond;

(2) Withholding permitted. Permit the Contractor or subcontractor to make a determination that part or all of the subcontractor's request for payment may be withheld in accordance with the subcontract agreement; and

(3) Withholding requirements. Permit such withholding without incurring any obligation to pay a late payment penalty if-

(i) A notice conforming to the standards of paragraph (g) of this clause previously has been furnished to the subcontractor; and

(ii) The Contractor furnishes to the Contracting Officer a copy of any notice issued by a Contractor pursuant to paragraph (d)(3)(i) of this clause.

(e) Subcontractor withholding procedures. If a Contractor, after making a request for payment to the Government but before making a payment to a subcontractor for the subcontractor's performance covered by the payment request, discovers that all or a portion of the payment otherwise due such subcontractor is subject to withholding from the subcontractor in accordance with the subcontract agreement, then the Contractor shall-

(1) Subcontractor notice. Furnish to the subcontractor a notice conforming to the standards of paragraph (g) of this clause as soon as practicable upon ascertaining the cause giving rise to a withholding, but prior to the due date for subcontractor payment;

(2) Contracting Officer notice. Furnish to the Contracting Officer, as soon as practicable, a copy of the notice furnished to the subcontractor pursuant to paragraph (e)(1) of this clause;

(3) Subcontractor progress payment reduction. Reduce the subcontractor's progress payment by an amount not to exceed the amount specified in the notice of withholding furnished under paragraph (e)(1) of this clause;

(4) Subsequent subcontractor payment. Pay the subcontractor as soon as practicable after the correction of the identified subcontract performance deficiency, and-

(i) Make such payment within-

(A) Sevendays after correction of the identified subcontract performance deficiency (unless the funds therefor must be recovered from the Government because of a reduction under paragraph (e)(5)(i)) of this clause; or

(B) Sevendays after the Contractor recovers such funds from the Government; or

(ii) Incur an obligation to pay a late payment interest penalty computed at the rate of interest established by the Secretary of the Treasury, and published in the Federal Register, for interest payments under 41 U.S.C. 7109 in effect at the time the Contractor accrues the obligation to pay an interest penalty;

(5) Notice to Contracting Officer. Notify the Contracting Officer upon-

(i) Reduction of the amount of any subsequent certified application for payment; or

(ii) Payment to the subcontractor of any withheld amounts of a progress payment, specifying-

(A) The amounts withheld under paragraph (e)(1) of this clause; and

(B) The dates that such withholding began and ended; and

(6) Interest to Government. Be obligated to pay to the Government an amount equal to interest on the withheld payments (computed in the manner provided in 31 U.S.C.3903(c)(1)), from the 8 thday after receipt of the withheld amounts from the Government until-

(i) The day the identified subcontractor performance deficiency is corrected; or

(ii) The date that any subsequent payment is reduced under paragraph (e)(5)(i) of this clause.

(f) Third-party deficiency reports-

(1) Withholding from subcontractor. If a Contractor, after making payment to a first-tier subcontractor, receives from a supplier or subcontractor of the first-tier subcontractor (hereafter referred to as a "second-tier subcontractor") a written notice in accordance with 40 U.S.C. 3133, asserting a deficiency in such first-tier subcontractor's performance under the contract for which the Contractor may be ultimately liable, and the Contractor determines that all or a portion of future payments otherwise due such first-tier subcontractor is subject to withholding in accordance with the subcontract agreement, the Contractor may, without incurring an obligation to pay an interest penalty under paragraph (e)(6) of this clause-

(i) Furnish to the first-tier subcontractor a notice conforming to the standards of paragraph (g) of this clause as soon as practicable upon making such determination; and

(ii) Withhold from the first-tier subcontractor's next available progress payment or payments an amount not to exceed the amount specified in the notice of withholding furnished under paragraph (f)(1)(i) of this clause.

(2) Subsequent payment or interest charge. As soon as practicable, but not later than 7 days after receipt of satisfactory written notification that the identified subcontract performance deficiency has been corrected, the Contractor shall-

(i) Pay the amount withheld under paragraph (f)(1)(ii) of this clause to such first-tier subcontractor; or

(ii) Incur an obligation to pay a late payment interest penalty to such first-tier subcontractor computed at the rate of interest established by the Secretary of the Treasury, and published in the Federal Register, for interest payments under 41 U.S.C. 7109 in effect at the time the Contractor accrues the obligation to pay an interest penalty.

(g) Written notice of subcontractor withholding. The Contractor shall issue a written notice of any withholding to a subcontractor (with a copy furnished to the Contracting Officer), specifying-

(1) The amount to be withheld;

(2) The specific causes for the withholding under the terms of the subcontract; and

(3) The remedial actions to be taken by the subcontractor in order to receive payment of the amounts withheld.

(h) Subcontractor payment entitlement. The Contractor may not request payment from the Government of any amount withheld or retained in accordance with paragraph (d) of this clause until such time as the Contractor has determined and certified to the Contracting Officer that the subcontractor is entitled to the payment of such amount.

(i) Prime-subcontractor disputes. A dispute between the Contractor and subcontractor relating to the amount or entitlement of a subcontractor to a payment or a late payment interest penalty under a clause included in the subcontract pursuant to paragraph (c) of this clause does not constitute a dispute to which the Government is a party. The Government may not be interpleaded in any judicial or administrative proceeding involving such a dispute.

(j) Preservation of prime-subcontractor rights. Except as provided in paragraph (i) of this clause, this clause shall not limit or impair any contractual, administrative, or judicial remedies otherwise available to the Contractor or a subcontractor in the event of a dispute involving late payment or nonpayment by the Contractor or deficient subcontract performance or nonperformance by a subcontractor.

(k) Non-recourse for prime contractor interest penalty. The Contractor's obligation to pay an interest penalty to a subcontractor pursuant to the clauses included in a subcontract under paragraph (c) of this clause shall not be construed to be an obligation of the Government for such interest penalty. A cost-reimbursement claim may not include any amount for reimbursement of such interest penalty.

(l) Overpayments. If the Contractor becomes aware of a duplicate contract financing or invoice payment or that the Government has otherwise overpaid on a contract financing or invoice payment, the Contractor shall-

(1) Remit the overpayment amount to the payment office cited in the contract along with a description of the overpayment including the-

(i) Circumstances of the overpayment (e.g., duplicate payment, erroneous payment, liquidation errors, date(s) of overpayment);

(ii) Affected contract number and delivery order number if applicable;

(iii) Affected line item or subline item, if applicable; and

(iv) Contractor point of contact.

(2) Provide a copy of the remittance and supporting documentation to the Contracting Officer.

(End of clause)

52.236-1 Performance of Work by the Contractor.

(Apr 1984)

The Contractor shall perform on the site, and with its own organization, work equivalent to at least **30 percent** of the total amount of work to be performed under the contract. This percentage may be reduced by a supplemental agreement to this contract if, during performing the work, the Contractor requests a reduction and the Contracting Officer determines that the reduction would be to the advantage of the Government.

(End of clause)

52.236-4 Physical Data.

(Apr 1984)

As prescribed in 36.504 , insert the following clause in solicitations and contracts when a fixed-price construction contract is contemplated and physical data (e.g., test borings, hydrographic, weather conditions data) will be furnished or made available to offerors. All information to be furnished or made available to offerors before award that pertains to the performance of the work should be identified in the clause. When paragraphs are not applicable they may be deleted.

Physical Data (Apr 1984)

Data and information furnished or referred to below is for the Contractor's information. The Government shall not be responsible for any interpretation of or conclusion drawn from the data or information by the Contractor.

(a) The indications of physical conditions on the drawings and in the specifications are the result of site investigations by **Core borings are available. See Section(s) 00 31 32 and 01 11 00 of this contract.**

(b) Weather conditions **see Section 00 33 50 of this contract.**

(c) Transportation facilities **see Section 01 11 00 and drawings of this contract.**

(End of clause)

52.236-26 Preconstruction Conference.

(Feb 1995)

As prescribed in 36.522 , insert the following clause:

Preconstruction Conference (Feb 1995)

If the Contracting Officer decides to conduct a preconstruction conference, the successful offeror will be notified and will be required to attend. The Contracting Officer's notification will include specific details regarding the date, time, and location of the conference, any need for attendance by subcontractors, and information regarding the items to be discussed.

(End of clause)

52.246-21 Warranty of Construction.

(Mar 1994)

As prescribed in 46.710(e)(1), the contracting officer may insert a clause substantially as follows in solicitations and contracts when a fixed-price construction contract (see 46.705 (c)) is contemplated, and the use of a warranty clause has been approved under agency procedures:

Warranty of Construction (Mar 1994)

(a) In addition to any other warranties in this contract, the Contractor warrants, except as provided in paragraph (i) of this clause, that work performed under this contract conforms to the contract requirements and is free of any defect in equipment, material, or design furnished, or workmanship performed by the Contractor or any subcontractor or supplier at any tier.

(b) This warranty shall continue for a period of 1 year from the date of final acceptance of the work. If the Government takes possession of any part of the work before final acceptance, this warranty shall continue for a period of 1 year from the date the Government takes possession.

(c) The Contractor shall remedy at the Contractor's expense any failure to conform, or any defect. In addition, the Contractor shall remedy at the Contractor's expense any damage to Government-owned or controlled real or personal property, when that damage is the result of-

(1) The Contractor's failure to conform to contract requirements; or

(2) Any defect of equipment, material, workmanship, or design furnished.

(d) The Contractor shall restore any work damaged in fulfilling the terms and conditions of this clause. The Contractor's warranty with respect to work repaired or replaced will run for 1 year from the date of repair or replacement.

(e) The Contracting Officer shall notify the Contractor, in writing, within a reasonable time after the discovery of any failure, defect, or damage.

(f) If the Contractor fails to remedy any failure, defect, or damage within a reasonable time after receipt of notice, the Government shall have the right to replace, repair, or otherwise remedy the failure, defect, or damage at the Contractor's expense.

(g) With respect to all warranties, express or implied, from subcontractors, manufacturers, or suppliers for work performed and materials furnished under this contract, the Contractor shall-

(1) Obtain all warranties that would be given in normal commercial practice;

(2) Require all warranties to be executed, in writing, for the benefit of the Government, if directed by the Contracting Officer; and

(3) Enforce all warranties for the benefit of the Government, if directed by the Contracting Officer.

(h) In the event the Contractor's warranty under paragraph (b) of this clause has expired, the Government may bring suit at its expense to enforce a subcontractor's, manufacturer's, or supplier's warranty.

(i) Unless a defect is caused by the negligence of the Contractor or subcontractor or supplier at any tier, the Contractor shall not be liable for the repair of any defects of material or design furnished by the Government nor for the repair of any damage that results from any defect in Government-furnished material or design.

(j) This warranty shall not limit the Government's rights under the Inspection and Acceptance clause of this contract with respect to latent defects, gross mistakes, or fraud.

(End of clause)

52.248-3 Value Engineering-Construction.

(Oct 2020)

As prescribed in 48.202 , insert the following clause:

Value Engineering-Construction (Oct 2020)

(a) General. The Contractor is encouraged to develop, prepare, and submit value engineering change proposals (VECP's) voluntarily. The Contractor shall share in any instant contract savings realized from accepted VECP's, in accordance with paragraph (f) of this clause.

(b) Definitions. "Collateral costs," as used in this clause, means agency costs of operation, maintenance, logistic support, or Government-furnished property.

Collateral savings, as used in this clause, means those measurable net reductions resulting from a VECP in the agency's overall projected collateral costs, exclusive of acquisition savings, whether or not the acquisition cost changes.

Contractor's development and implementation costs, as used in this clause, means those costs the Contractor incurs on a VECP specifically in developing, testing, preparing, and submitting the VECP, as well as those costs the Contractor incurs to make the contractual changes required by Government acceptance of a VECP.

Government costs, as used in this clause, means those agency costs that result directly from developing and implementing the VECP, such as any net increases in the cost of testing, operations, maintenance, and logistic support. The term does not include the normal administrative costs of processing the VECP.

Instant contract savings, as used in this clause, means the estimated reduction in Contractor cost of performance resulting from acceptance of the VECP, minus allowable Contractor's development and implementation costs, including subcontractors' development and implementation costs (see paragraph (h) of this clause).

Value engineering change proposal (VECP) means a proposal that-

(1) Requires a change to this, the instant contract, to implement; and

(2) Results in reducing the contract price or estimated cost without impairing essential functions or characteristics; provided, that it does not involve a change-

(i) In deliverable end item quantities only; or

(ii) To the contract type only.

(c) VECF preparation. As a minimum, the Contractor shall include in each VECF the information described in paragraphs (c)(1) through (7) of this clause. If the proposed change is affected by contractually required configuration management or similar procedures, the instructions in those procedures relating to format, identification, and priority assignment shall govern VECF preparation. The VECF shall include the following:

(1) A description of the difference between the existing contract requirement and that proposed, the comparative advantages and disadvantages of each, a justification when an item's function or characteristics are being altered, and the effect of the change on the end item's performance.

(2) A list and analysis of the contract requirements that must be changed if the VECF is accepted, including any suggested specification revisions.

(3) A separate, detailed cost estimate for (i) the affected portions of the existing contract requirement and (ii) the VECF. The cost reduction associated with the VECF shall take into account the Contractor's allowable development and implementation costs, including any amount attributable to subcontracts under paragraph (h) of this clause.

(4) A description and estimate of costs the Government may incur in implementing the VECF, such as test and evaluation and operating and support costs.

(5) A prediction of any effects the proposed change would have on collateral costs to the agency.

(6) A statement of the time by which a contract modification accepting the VECF must be issued in order to achieve the maximum cost reduction, noting any effect on the contract completion time or delivery schedule.

(7) Identification of any previous submissions of the VECF, including the dates submitted, the agencies and contract numbers involved, and previous Government actions, if known.

(d) Submission. The Contractor shall submit VECF's to the Resident Engineer at the worksite, with a copy to the Contracting Officer.

(e) Government action.

(1) The Contracting Officer will notify the Contractor of the status of the VECF within 45 calendar days after the contracting office receives it. If additional time is required, the Contracting Officer will notify the Contractor within the 45-day period and provide the reason for the delay and the expected date of the decision. The Government will process VECF's expeditiously; however, it will not be liable for any delay in acting upon a VECF.

(2) If the VECF is not accepted, the Contracting Officer will notify the Contractor in writing, explaining the reasons for rejection. The Contractor may withdraw any VECF, in whole or in part, at any time before it is accepted by the Government. The Contracting Officer may require that the Contractor provide written notification before undertaking significant expenditures for VECF effort.

(3) Any VECF may be accepted, in whole or in part, by the Contracting Officer's award of a modification to this contract citing this clause. The Contracting Officer may accept the VECF, even though an agreement on price reduction has not been reached, by issuing the Contractor a notice to proceed with the change. Until a notice to proceed is issued or a contract modification applies a VECF to this contract, the Contractor shall perform in accordance with the existing contract. The decision to accept or reject all or part of any VECF is a unilateral decision made solely at the discretion of the Contracting Officer.

(f) Sharing-

(1) Rates. The Government's share of savings is determined by subtracting Government costs from instant contract savings and multiplying the result by-

(i) 45 percent for fixed-price contracts; or

(ii) 75 percent for cost-reimbursement contracts.

(2) Payment. Payment of any share due the Contractor for use of a VECF on this contract shall be authorized by a modification to this contract to-

(i) Accept the VECF;

(ii) Reduce the contract price or estimated cost by the amount of instant contract savings; and

(iii) Provide the Contractor's share of savings by adding the amount calculated to the contract price or fee.

(g) Collateral savings. If a VECF is accepted, the Contracting Officer will increase the instant contract amount by 20 percent of any projected collateral savings determined to be realized in a typical year of use after subtracting any Government costs not previously offset. However, the Contractor's share of collateral savings will not exceed the contract's firm-fixed-price or estimated cost, at the time the VECF is accepted, or

\$100,000, whichever is greater. The Contracting Officer is the sole determiner of the amount of collateral savings.

(h) Subcontracts. The Contractor shall include an appropriate value engineering clause in any subcontract of \$75,000 or more and may include one in subcontracts of lesser value. In computing any adjustment in this contract's price under paragraph (f) of this clause, the Contractor's allowable development and implementation costs shall include any subcontractor's allowable development and implementation costs clearly resulting from a VECP accepted by the Government under this contract, but shall exclude any value engineering incentive payments to a subcontractor. The Contractor may choose any arrangement for subcontractor value engineering incentive payments; provided, that these payments shall not reduce the Government's share of the savings resulting from the VECP.

(i) Data. The Contractor may restrict the Government's right to use any part of a VECP or the supporting data by marking the following legend on the affected parts:

These data, furnished under the Value Engineering-Construction clause of contract ____, shall not be disclosed outside the Government or duplicated, used, or disclosed, in whole or in part, for any purpose other than to evaluate a value engineering change proposal submitted under the clause. This restriction does not limit the Government's right to use information contained in these data if it has been obtained or is otherwise available from the Contractor or from another source without limitations.

If a VECP is accepted, the Contractor hereby grants the Government unlimited rights in the VECP and supporting data, except that, with respect to data qualifying and submitted as limited rights technical data, the Government shall have the rights specified in the contract modification implementing the VECP and shall appropriately mark the data. (The terms "unlimited rights" and "limited rights" are defined in part 27 of the Federal Acquisition Regulation.)

(End of clause)

52.252-2 Clauses Incorporated by Reference.

(Feb 1998)

As prescribed in 52.107(b), insert the following clause:

Clauses Incorporated By Reference (Feb 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

<https://www.acquisition.gov/content/regulations>

(End of clause)

52.252-4 Alterations in Contract.

(Apr 1984)

Alterations in Contract (Apr 1984)

Portions of this contract are altered as follows:

(End of clause)

52.252-6 Authorized Deviations in Clauses.

(Nov 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any **Defense Acquisition Regulation** (48 CFR **2**) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of clause)

DFARS Clauses Incorporated by Full Text

252.215-7008 Only One Offer.

(Dec 2022)

As prescribed at 215.408(3), use the following provision:

ONLY ONE OFFER (DEC 2022)

(a) Cost or pricing data requirements. After initial submission of offers, if the Contracting Officer notifies the Offeror that only one offer was received, the Offeror agrees to-

(1) Submit any additional cost or pricing data that is required in order to determine whether the price is fair and reasonable (10 U.S.C. 3705) or to comply with the statutory requirement for certified cost or pricing data (10 U.S.C. 3702 and FAR 15.403-3); and

(2) Except as provided in paragraph (b) of this provision, if the acquisition exceeds the certified cost or pricing data threshold and an exception to the requirement for certified cost or pricing data at FAR 15.403-1(b)(2) through (5) does not apply, certify all cost or pricing data in accordance with paragraph (c) of DFARS provision 252.215-7010, Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data, of this solicitation.

(b) Canadian Commercial Corporation. If the Offeror is the Canadian Commercial Corporation, certified cost or pricing data are not required. If the Contracting Officer notifies the Canadian Commercial Corporation that additional data other than certified cost or pricing data are required in accordance with DFARS 225.870-4(c), the Canadian Commercial Corporation shall obtain and provide the following:

(1) Profit rate or fee (as applicable).

(2) Analysis provided by Public Works and Government Services Canada to the Canadian Commercial Corporation to determine a fair and reasonable price (comparable to the analysis required at FAR 15.404-1).

(3) Data other than certified cost or pricing data necessary to permit a determination by the U.S. Contracting Officer that the proposed price is fair and reasonable ____ [U.S. Contracting Officer to provide description of the data required in accordance with FAR 15.403-3(a)(1) with the notification].

(4) As specified in FAR 15.403-3(a)(4), an offeror who does not comply with a requirement to submit data that the U.S. Contracting Officer has deemed necessary to determine price reasonableness or cost realism is ineligible for award unless the head of the contracting activity determines that it is in the best interest of the Government to make the award to that offeror.

(c) Subcontracts. Unless the Offeror is the Canadian Commercial Corporation, the Offeror shall insert the substance of this provision, including this paragraph (c), in all subcontracts exceeding the simplified acquisition threshold defined in FAR part 2.

(End of provision)

252.222-7000 Restrictions on Employment of Personnel

(Mar 2000)

As prescribed in 222.7004, use the following clause:

RESTRICTIONS ON EMPLOYMENT OF PERSONNEL (MAR 2000)

(a) The Contractor shall employ, for the purpose of performing that portion of the contract work in ____, individuals who are residents thereof and who, in the case of any craft or trade, possess or would be able to acquire promptly the necessary skills to perform the contract.

(b) The Contractor shall insert the substance of this clause, including this paragraph (b), in each subcontract awarded under this contract.

(End of clause)

252.232-7006 Wide Area WorkFlow Payment Instructions.

(Jan 2023)

As prescribed in 232.7004(b), use the following clause:

WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023)

(a) Definitions. As used in this clause-

"Department of Defense Activity Address Code (DoDAAC)" is a six position code that uniquely identifies a unit, activity, or organization.

"Document type" means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

"Local processing office (LPO)" is the office responsible for payment certification when payment certification is done external to the entitlement system.

"Payment request" and "receiving report" are defined in the clause at 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(b) Electronic invoicing. The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) WAWF access. To access WAWF, the Contractor shall-

(1) Have a designated electronic business point of contact in the System for Award Management at <https://www.sam.gov>; and

(2) Be registered to use WAWF at <https://wawf.eb.mil/> following the step-by-step procedures for self-registration available at this web site.

(d) WAWF training. The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the "Web Based Training" link on the WAWF home page at <https://wawf.eb.mil/>

(e) WAWF methods of document submission. Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) WAWF payment instructions. The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) Document type. The Contractor shall submit payment requests using the following document type(s):

(i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.

(ii) For fixed price line items-

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

(Contracting Officer: Insert applicable invoice and receiving report document type(s) for fixed price line items that require shipment of a deliverable.)

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

(Contracting Officer: Insert either "Invoice 2in1" or the applicable invoice and receiving report document type(s) for fixed price line items for services.)

(iii) For customary progress payments based on costs incurred, submit a progress payment request.

(iv) For performance based payments, submit a performance based payment request.

(v) For commercial financing, submit a commercial financing request.

(2)) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

[Note: The Contractor may use a WAWF "combo" document type to create some combinations of invoice and receiving report in one step.]

(3) Document routing. The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table*

Field Name in WAWF	Data to be entered in WAWF
Pay Official DoDAAC	_____
Issue By DoDAAC	_____
Admin DoDAAC	_____
Inspect By DoDAAC	_____
Ship To Code	_____
Ship From Code	_____
Mark For Code	_____
Service Approver (DoDAAC)	_____
Service Acceptor (DoDAAC)	_____
Accept at Other DoDAAC	_____
LPO DoDAAC	_____
DCAA Auditor DoDAAC	_____
Other DoDAAC(s)	_____

(*Contracting Officer: Insert applicable DoDAAC information. If multiple ship to/acceptance locations apply, insert "See Schedule" or "Not applicable.")

(**Contracting Officer: If the contract provides for progress payments or performance-based payments, insert the DoDAAC for the contract administration office assigned the functions under FAR 42.302(a)(13).)

(4) Payment request. The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) Receiving report. The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) WAWF point of contact.

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

(Contracting Officer: Insert applicable information or "Not applicable.")

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)

252.236-7001 Contract Drawings and Specifications.

(Aug 2000)

(a) The Government will provide to the Contractor, without charge, one set of contract drawings and specifications, except publications incorporated into the technical provisions by reference, in electronic or paper media as chosen by the Contracting Officer.

(b) The Contractor shall-

- (1) Check all drawings furnished immediately upon receipt;
- (2) Compare all drawings and verify the figures before laying out the work;
- (3) Promptly notify the Contracting Officer of any discrepancies;
- (4) Be responsible for any errors that might have been avoided by complying with this paragraph (b); and
- (5) Reproduce and print contract drawings and specifications as needed.

(c) In general--

- (1) Large-scale drawings shall govern small-scale drawings; and
- (2) The Contractor shall follow figures marked on drawings in preference to scale measurements.

(d) Omissions from the drawings or specifications or the misdescription of details of work that are manifestly necessary to carry out the intent of the drawings and specifications, or that are customarily performed, shall not relieve the Contractor from performing such omitted or misdescribed details of the work. The Contractor shall perform such details as if fully and correctly set forth and described in the drawings and specifications.

(e) The work shall conform to the specifications and the contract drawings identified on the following index of drawings:

Title	File		Drawing No.
<u>Rio Puerto Nuevo Flood Control Project, Supplemental Contract 3: Channel Bottom And Wall Improvements, San Juan, Puerto Rico</u>	<u>W51DQV25RA002</u>		<u>N/A</u>

(End of clause)

252.236-7004 Payment for Mobilization and Demobilization.

(Dec 1991)

As prescribed in 236.570(b)(2), use the following clause:

PAYMENT FOR MOBILIZATION AND DEMOBILIZATION (DEC 1991)

(a) The Government will pay all costs for the mobilization and demobilization of all of the Contractor's plant and equipment at the contract lump sum price for this item.

- (1) **60 percent** of the lump sum price upon completion of the contractor's mobilization at the work site.
- (2) The remaining **40 percent** upon completion of demobilization.

(b) The Contracting Officer may require the Contractor to furnish cost data to justify this portion of the bid if the Contracting Officer believes that the percentages in paragraphs (a)(1) and (2) of this clause do not bear a reasonable relation to the cost of the work in this contract.

(1) Failure to justify such price to the satisfaction of the Contracting Officer will result in payment, as determined by the Contracting Officer, of-

(i) Actual mobilization costs at completion of mobilization;

(ii) Actual demobilization costs at completion of demobilization; and

(iii) The remainder of this item in the final payment under this contract.

(2) The Contracting Officer's determination of the actual costs in paragraph (b)(1) of this clause is not subject to appeal.

(End of clause)

Section 00 73 00 - Supplementary Conditions

CONTRACTING OFFICER'S PROJECT BUSINESS ADDRESS: Once the contract is awarded, all communication, submittals, and inquiries by the Contractor regarding the project shall be directed and addressed to:

US Army Corps of Engineer
Caribbean District-Antilles Area Office
Fund. Angel Ramos
Annex Building, Ste. 202
Franklin Delano Roosevelt Ave. #383
San Juan, Puerto Rico 00918

All communications must be submitted in the English language.

NOTICE OF FEDERAL, STATE, AND LOCAL TAXES--CONTRACTSPERFORMED IN PUERTO RICO: This contract includes following clauses: FAR52.229-3, Federal, State, And Local Taxes. This clauses place responsibility for taxes on the Contractor. Offerors are hereby strongly advised to check with the various Puerto Rican taxing authorities to determine which, if any, local taxes they will have to pay. The Government is aware that each municipality in Puerto Rico has the authority to assess a tax on Government contractors working within the municipality. The tax rate varies from municipality to municipality. Additionally, the Government is aware that the Commonwealth imposes a tax on equipment brought onto the island. This notice is intended to advise offerors that local taxes may be imposed. Questions concerning taxes must be directed to Puerto Rican taxing authorities. The Government does not have the ability to answer questions regarding local taxes.

Overall Contract Inspection/Acceptance Locations

0001	Inspection and Acceptance Location Both Destination Instructions: IAW the PWS. DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0002	Inspection and Acceptance Location Both Destination Instructions: IAW the PWS. DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO

0003	Inspection and Acceptance Location Both Destination Instructions: IAW the PWS. DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
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0007	Inspection and Acceptance Location Both Destination Instructions: IAW the PWS. DoDAAC: W51DQV

	CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0008	Inspection and Acceptance Location Both Destination Instructions: IAW the PWS. DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0009	Inspection and Acceptance Location Both Destination Instructions: IAW the PWS. DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0010	Inspection and Acceptance Location Both Destination Instructions: IAW the PWS. DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0011	Inspection and Acceptance Location Both Destination Instructions: IAW the PWS. DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO

0012	Inspection and Acceptance Location Both Destination Instructions: IAW the PWS. DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0013	Inspection and Acceptance Location Both Destination Instructions: IAW the PWS. DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0014	Inspection and Acceptance Location Both Destination Instructions: IAW the PWS. DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0015	Inspection and Acceptance Location Both Destination Instructions: IAW the PWS. DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0016	Inspection and Acceptance Location Both Destination Instructions: IAW the PWS. DoDAAC: W51DQV CountryCode: PRI

	W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0017	Inspection and Acceptance Location Both Destination Instructions: IAW the PWS. DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0018	Inspection and Acceptance Location Both Destination Instructions: IAW the PWS. DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0019	Inspection and Acceptance Location Both Destination Instructions: IAW the PWS. DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0020	Inspection and Acceptance Location Both Destination Instructions: IAW the PWS. DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO

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0022	Inspection and Acceptance Location Both Destination Instructions: IAW the PWS. DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0023	Inspection and Acceptance Location Both Destination Instructions: IAW the PWS. DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0024	Inspection and Acceptance Location Both Destination Instructions: IAW the PWS. DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0025	Inspection and Acceptance Location Both Destination Instructions: IAW the PWS. DoDAAC: W51DQV CountryCode: PRI

	W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0026	Inspection and Acceptance Location Both Destination Instructions: IAW the PWS. DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0027	Inspection and Acceptance Location Both Destination Instructions: IAW the PWS. DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0028	Inspection and Acceptance Location Both Destination Instructions: IAW the PWS. DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0029	Inspection and Acceptance Location Both Destination Instructions: IAW the PWS. DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO

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0031	Inspection and Acceptance Location Both Destination Instructions: IAW the PWS. DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0032	Inspection and Acceptance Location Both Destination Instructions: IAW the PWS. DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
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0034	Inspection and Acceptance Location Both Destination Instructions: IAW the PWS. DoDAAC: W51DQV CountryCode: PRI

	W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0035	Inspection and Acceptance Location Both Destination Instructions: IAW the PWS. DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0036	Inspection and Acceptance Location Both Destination Instructions: IAW the PWS. DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
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0041	Inspection and Acceptance Location Both Destination Instructions: IAW the PWS. DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0042	Inspection and Acceptance Location Both Destination Instructions: IAW the PWS. DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0043	Inspection and Acceptance Location Both Destination Instructions: IAW the PWS. DoDAAC: W51DQV CountryCode: PRI

	W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0044	Inspection and Acceptance Location Both Destination Instructions: IAW the PWS. DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0045	Inspection and Acceptance Location Both Destination Instructions: IAW the PWS. DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0046	Inspection and Acceptance Location Both Destination Instructions: IAW the PWS. DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0047	Inspection and Acceptance Location Both Destination Instructions: IAW the PWS. DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO

0048	Inspection and Acceptance Location Both Destination Instructions: IAW the PWS. DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0049	Inspection and Acceptance Location Both Destination Instructions: IAW the PWS. DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0050	Inspection and Acceptance Location Both Destination Instructions: IAW the PWS. DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0051	Inspection and Acceptance Location Both Destination Instructions: IAW the PWS. DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0052	Inspection and Acceptance Location Both Destination Instructions: IAW the PWS. DoDAAC: W51DQV CountryCode: PRI

	W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0053	Inspection and Acceptance Location Both Destination Instructions: IAW the PWS. DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0054	Inspection and Acceptance Location Both Destination Instructions: IAW the PWS. DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0055	Inspection and Acceptance Location Both Destination Instructions: IAW the PWS. DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0056	Inspection and Acceptance Location Both Destination Instructions: IAW the PWS. DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO

0057	Inspection and Acceptance Location Both Destination Instructions: IAW the PWS. DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0058	Inspection and Acceptance Location Both Destination Instructions: IAW the PWS. DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0059	Inspection and Acceptance Location Both Destination Instructions: IAW the PWS. DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0060	Inspection and Acceptance Location Both Destination Instructions: IAW the PWS. DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0061	Inspection and Acceptance Location Both Destination Instructions: IAW the PWS. DoDAAC: W51DQV CountryCode: PRI

	W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0062	Inspection and Acceptance Location Both Destination Instructions: IAW the PWS. DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0063	Inspection and Acceptance Location Both Destination Instructions: IAW the PWS. DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0064	Inspection and Acceptance Location Both Destination Instructions: IAW the PWS. DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0065	Inspection and Acceptance Location Both Destination Instructions: IAW the PWS. DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO

0066	Inspection and Acceptance Location Both Destination Instructions: IAW the PWS. DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0067	Inspection and Acceptance Location Both Destination Instructions: IAW the PWS. DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0068	Inspection and Acceptance Location Both Destination Instructions: IAW the PWS. DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0069	Inspection and Acceptance Location Both Destination Instructions: IAW the PWS. DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0070	Inspection and Acceptance Location Both Destination Instructions: IAW the PWS. DoDAAC: W51DQV CountryCode: PRI

	W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0071	Inspection and Acceptance Location Both Destination Instructions: IAW the PWS. DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0072	Inspection and Acceptance Location Both Destination Instructions: IAW the PWS. DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0073	Inspection and Acceptance Location Both Destination Instructions: IAW the PWS. DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0074	Inspection and Acceptance Location Both Destination Instructions: IAW the PWS. DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO

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0076	Inspection and Acceptance Location Both Destination Instructions: IAW the PWS. DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0077	Inspection and Acceptance Location Both Destination Instructions: IAW the PWS. DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0078	Inspection and Acceptance Location Both Destination Instructions: IAW the PWS. DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0079	Inspection and Acceptance Location Both Destination Instructions: IAW the PWS. DoDAAC: W51DQV CountryCode: PRI

	W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0080	Inspection and Acceptance Location Both Destination Instructions: IAW the PWS. DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0081	Inspection and Acceptance Location Both Destination Instructions: IAW the PWS. DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0082	Inspection and Acceptance Location Both Destination Instructions: IAW the PWS. DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0083	Inspection and Acceptance Location Both Destination Instructions: IAW the PWS. DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO

0084	Inspection and Acceptance Location Both Destination Instructions: IAW the PWS. DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0085	Inspection and Acceptance Location Both Destination Instructions: IAW the PWS. DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0086	Inspection and Acceptance Location Both Destination Instructions: IAW the PWS. DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0087	Inspection and Acceptance Location Both Destination Instructions: IAW the PWS. DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0088	Inspection and Acceptance Location Both Destination Instructions: IAW the PWS. DoDAAC: W51DQV CountryCode: PRI

	W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0089	Inspection and Acceptance Location Both Destination Instructions: IAW the PWS. DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0090	Inspection and Acceptance Location Both Destination Instructions: IAW the PWS. DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0091	Inspection and Acceptance Location Both Destination Instructions: IAW the PWS. DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO

Overall Contract Delivery Period

Delivery Month

Delivery Date 01 Oct 2025

Delivery Month 2025-10

From date of lead time event to beginning of performance

10 Calendar Days

Date of Notice to Proceed Receipt

From date of lead time event to completion of performance

2190 Calendar Days

Date of Notice to Proceed Receipt

Line Item	Delivery Schedule	Quantity	Address and POC
0001	Delivery Month Delivery Month 2025-10	1 Job	Place of Performance DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0002	Delivery Month Delivery Month 2025-10	1 Job	Place of Performance DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0003	Delivery Month Delivery Month 2025-10	1 Job	Place of Performance DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0004	Delivery Month Delivery Month 2025-10	1 Job	Place of Performance DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0005	Delivery Month Delivery Month 2025-10	1 Job	Place of Performance DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
	Delivery Month Delivery Month 2025-10	68 Months	Place of Performance DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS)

0006			383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0007	Delivery Month Delivery Month 2025-10	11 Each	Place of Performance DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0008	Delivery Month Delivery Month 2025-10	1 Job	Place of Performance DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0009	Delivery Month Delivery Month 2025-10	25 Acre	Place of Performance DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0010	Delivery Month Delivery Month 2025-10	1 Job	Place of Performance DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0011	Delivery Month Delivery Month 2025-10	1 Job	Place of Performance DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
	Delivery Month Delivery Month 2025-10	324,552 Square Foot	Place of Performance DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS)

0012			383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0013	Delivery Month Delivery Month 2025-10	27,765 Square Foot	Place of Performance DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0014	Delivery Month Delivery Month 2025-10	24,857 Square Foot	Place of Performance DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0015	Delivery Month Delivery Month 2025-10	7,947 Square Foot	Place of Performance DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0016	Delivery Month Delivery Month 2025-10	1 Job	Place of Performance DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0017	Delivery Month Delivery Month 2025-10	30,729 Linear Foot	Place of Performance DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
	Delivery Month Delivery Month 2025-10	82,560 Linear Foot	Place of Performance DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS)

0018			383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0019	Delivery Month Delivery Month 2025-10	78,554 Linear Foot	Place of Performance DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0020	Delivery Month Delivery Month 2025-10	612 Linear Foot	Place of Performance DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0021	Delivery Month Delivery Month 2025-10	1 Job	Place of Performance DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0022	Delivery Month Delivery Month 2025-10	3,589 Linear Foot	Place of Performance DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0023	Delivery Month Delivery Month 2025-10	1 Job	Place of Performance DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
	Delivery Month Delivery Month 2025-10	3,206 Linear Foot	Place of Performance DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS)

0024			383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0025	Delivery Month Delivery Month 2025-10	4,417 Linear Foot	Place of Performance DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0026	Delivery Month Delivery Month 2025-10	260,274 Cubic Yard	Place of Performance DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0027	Delivery Month Delivery Month 2025-10	119,337 Cubic Yard	Place of Performance DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0028	Delivery Month Delivery Month 2025-10	208,182 Cubic Yard	Place of Performance DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0029	Delivery Month Delivery Month 2025-10	5,045 Cubic Yard	Place of Performance DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
	Delivery Month Delivery Month 2025-10	30,249 Cubic Yard	Place of Performance DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS)

0030			383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0031	Delivery Month Delivery Month 2025-10	9,445 Linear Foot	Place of Performance DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0032	Delivery Month Delivery Month 2025-10	54,931 Square Yard	Place of Performance DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0033	Delivery Month Delivery Month 2025-10	4,623 Each	Place of Performance DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0034	Delivery Month Delivery Month 2025-10	15,105 Square Foot	Place of Performance DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0035	Delivery Month Delivery Month 2025-10	3,961 Short Ton	Place of Performance DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
	Delivery Month Delivery Month 2025-10	9,573 Short Ton	Place of Performance DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS)

0036			383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0037	Delivery Month Delivery Month 2025-10	8,379 Short Ton	Place of Performance DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0038	Delivery Month Delivery Month 2025-10	1,272 Short Ton	Place of Performance DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0039	Delivery Month Delivery Month 2025-10	31,974 Square Foot	Place of Performance DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0040	Delivery Month Delivery Month 2025-10	15,105 Square Foot	Place of Performance DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0041	Delivery Month Delivery Month 2025-10	1 Each	Place of Performance DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
	Delivery Month Delivery Month 2025-10	1 Each	Place of Performance DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS)

0042			383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0043	Delivery Month Delivery Month 2025-10	1 Each	Place of Performance DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0044	Delivery Month Delivery Month 2025-10	106 Linear Foot	Place of Performance DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0045	Delivery Month Delivery Month 2025-10	132 Linear Foot	Place of Performance DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0046	Delivery Month Delivery Month 2025-10	317 Linear Foot	Place of Performance DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0047	Delivery Month Delivery Month 2025-10	45 Linear Foot	Place of Performance DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
	Delivery Month Delivery Month 2025-10	190 Linear Foot	Place of Performance DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS)

0048			383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0049	Delivery Month Delivery Month 2025-10	92 Linear Foot	Place of Performance DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0050	Delivery Month Delivery Month 2025-10	37 Linear Foot	Place of Performance DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0051	Delivery Month Delivery Month 2025-10	11 Linear Foot	Place of Performance DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0052	Delivery Month Delivery Month 2025-10	1 Job	Place of Performance DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0053	Delivery Month Delivery Month 2025-10	3 Each	Place of Performance DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
	Delivery Month Delivery Month 2025-10	6 Each	Place of Performance DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS)

0054			383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0055	Delivery Month Delivery Month 2025-10	4 Each	Place of Performance DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0056	Delivery Month Delivery Month 2025-10	1 Each	Place of Performance DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0057	Delivery Month Delivery Month 2025-10	1 Each	Place of Performance DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0058	Delivery Month Delivery Month 2025-10	33 Each	Place of Performance DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0059	Delivery Month Delivery Month 2025-10	1 Job	Place of Performance DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
	Delivery Month Delivery Month 2025-10	365 Square Yard	Place of Performance DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS)

0060			383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0061	Delivery Month Delivery Month 2025-10	82 Linear Foot	Place of Performance DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0062	Delivery Month Delivery Month 2025-10	4 Each	Place of Performance DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0063	Delivery Month Delivery Month 2025-10	1 Job	Place of Performance DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0064	Delivery Month Delivery Month 2025-10	1 Job	Place of Performance DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0065	Delivery Month Delivery Month 2025-10	1 Job	Place of Performance DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
	Delivery Month Delivery Month 2025-10	1 Job	Place of Performance DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS)

0066			383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0067	Delivery Month Delivery Month 2025-10	16,077 Square Yard	Place of Performance DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0068	Delivery Month Delivery Month 2025-10	2,653 Short Ton	Place of Performance DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0069	Delivery Month Delivery Month 2025-10	16,077 Square Yard	Place of Performance DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0070	Delivery Month Delivery Month 2025-10	1 Job	Place of Performance DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0071	Delivery Month Delivery Month 2025-10	3,994 Square Yard	Place of Performance DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
	Delivery Month Delivery Month 2025-10	2,512 Linear Foot	Place of Performance DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS)

0072			383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0073	Delivery Month Delivery Month 2025-10	481 Linear Foot	Place of Performance DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0074	Delivery Month Delivery Month 2025-10	1 Job	Place of Performance DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0075	Delivery Month Delivery Month 2025-10	3 Each	Place of Performance DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0076	Delivery Month Delivery Month 2025-10	17 Each	Place of Performance DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0077	Delivery Month Delivery Month 2025-10	25,974 Square Yard	Place of Performance DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
	Delivery Month Delivery Month 2025-10	28,958 Square Yard	Place of Performance DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS)

0078			383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0079	Delivery Month Delivery Month 2025-10	1 Job	Place of Performance DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0080	Delivery Month Delivery Month 2025-10	2 Each	Place of Performance DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0081	Delivery Month Delivery Month 2025-10	4 Months	Place of Performance DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0082	Delivery Month Delivery Month 2025-10	1 Job	Place of Performance DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0083	Delivery Month Delivery Month 2025-10	1 Job	Place of Performance DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
	Delivery Month Delivery Month 2025-10	1 Job	Place of Performance DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS)

0084			383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0085	Delivery Month Delivery Month 2025-10	1 Job	Place of Performance DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0086	Delivery Month Delivery Month 2025-10	1 Job	Place of Performance DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0087	Delivery Month Delivery Month 2025-10	1 Job	Place of Performance DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0088	Delivery Month Delivery Month 2025-10	1 Job	Place of Performance DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0089	Delivery Month Delivery Month 2025-10	1 Job	Place of Performance DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
	Delivery Month Delivery Month 2025-10	100 Short Ton	Place of Performance DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS)

0090			383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO
0091	Delivery Month Delivery Month 2025-10	1 Job	Place of Performance DoDAAC: W51DQV CountryCode: PRI W2SR ENDIST CARIBBEAN(PROVIS) 383 FRANKLIN D ROOSEVELT AVENUE, SAN JUAN PR 00918-0000 SAN JUAN 00918-0000 PUERTO RICO